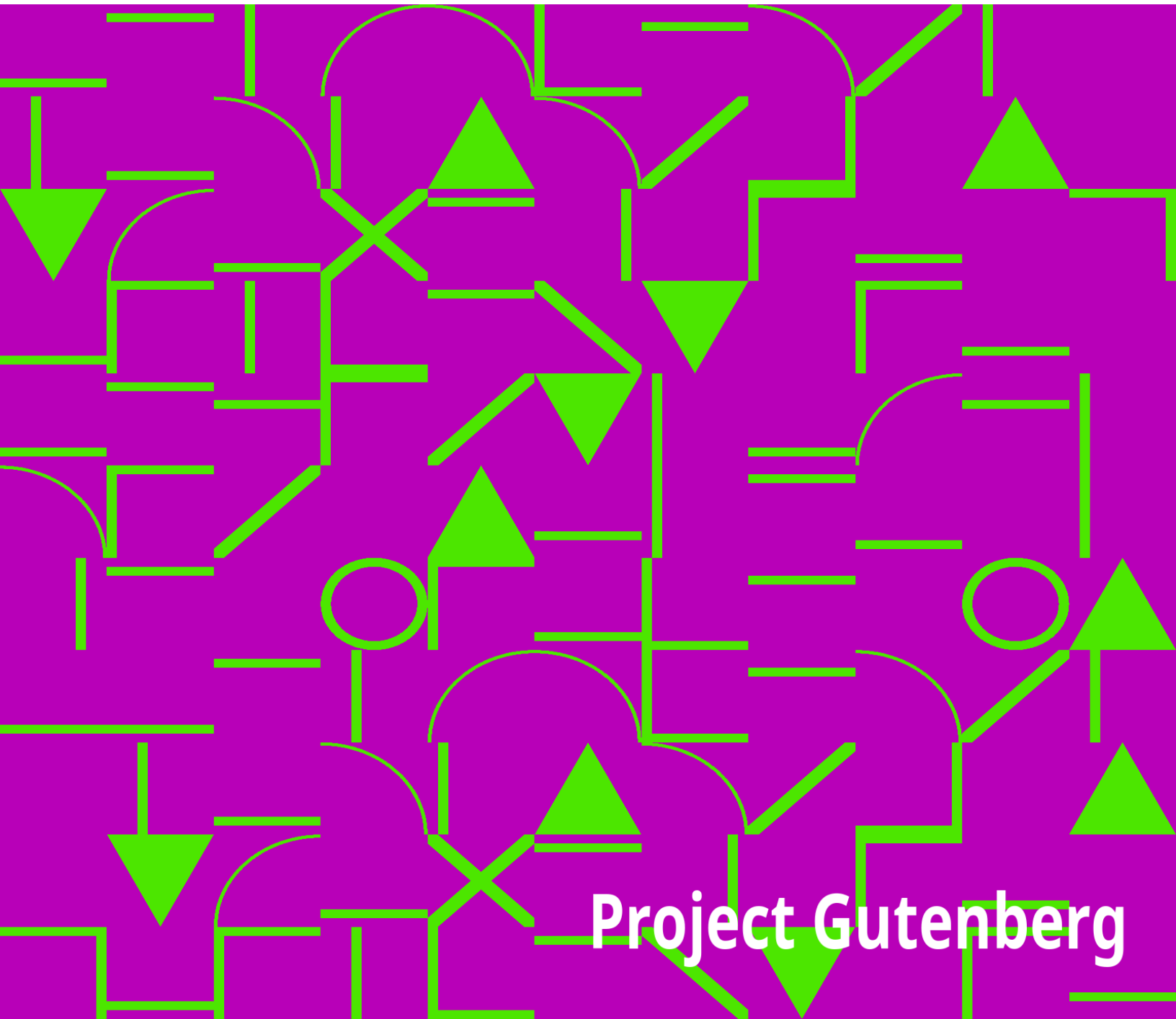


# Rebuilding Britain: A Survey of Problems of Reconstruction After the World War

Sir Alfred Hopkinson



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BRITAIN: A SURVEY OF PROBLEMS OF RECONSTRUCTION AFTER  
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# **Rebuilding Britain**

**A Survey of Problems of Reconstruction after the World War**

**By**

# **Sir Alfred Hopkinson, K.C.**

**Cassell and Company, Ltd London, New York and Melbourne 1918**

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# **Part I**

## **THE COURSE**

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# CHAPTER I

## ASPIRATIONS AND FOUNDATIONS

*I think I see, as it were above the hill-tops of time, the glimmerings of the dawn of a better and a nobler day for the country and the people that I love so well.—*  
JOHN BRIGHT.

The suggestion has been made to me that in these days of rapid development, when proposals, so bewildering in their extent, for change and for reconstruction are being made, it would be useful to present in popular form and in the compass of a small volume some general statement of the character of the varied problems which have arisen and of the principles which should guide in their solution. Possibly it seemed that a long and varied life engaged in law, politics, and education, which also had touched to some slight extent on the actual work of certain departments of Government, and had offered opportunities for travel in European countries and in the East, might furnish some qualifications for such a task. It is not one that can be undertaken without a sense of inadequate knowledge, and still more inadequate power of expression; but such a challenge cannot be refused, provided that whoever accepts it believes that he has some things to say which ought to be said, some lines of thought which ought to be indicated, something to urge, the truth of which he is thoroughly convinced of. Without such conviction prevenient, "we doubt not" that books on serious subjects, even if clever, and public speech either from platform or pulpit, "do verily have the nature of sin," and the more eloquent they are the worse the offence; with it, the very incompleteness and imperfection in the mode of presentation may even stimulate others to more thought, and to make up deficiencies all the better for themselves.

In attempting such a task, it must be recognised that during the last three years the attention of so many minds has been devoted to problems of

"reconstruction" after the War, so much has been written and said about them, so many suggestions made and schemes propounded, so many commissions of inquiry appointed and reports prepared, that an attempt at full treatment of the questions involved would require a cyclopaedia rather than a small volume. No one person would be able ever to read half of the valuable material already collected bearing on these problems. To deal effectively with them all would demand several lifetimes of preliminary special training. The difficulty is increased by the fact that every week brings something new or some change in the situation. Some new fact comes to light, some book or article is published, some speech made, some report issued, or even some Act passed, which calls for consideration, and it may be for comment.

The effect of the War has undoubtedly been to evoke far more serious thought on the real problems of life, and also practical activity in dealing with many of them. The mass of literature, including of course the considered utterances of men whose words exercise the most influence in moulding the opinions and guiding the action of others, grows from day to day. If that literature consisted mainly of bitter and empty controversy, of the expression of mere opinions, the spinning of plausible theories or clever presentation of interesting speculations, it would not be necessary to trouble much about it; but so large a part contains the statement of important facts or the results of serious study and of the actual experience of those who are experts in the special subjects of which they treat, that it is impossible to pass lightly over what they write or say. There is about a large portion of this literature an air of reality, an earnest desire to get to the heart of a matter, to contribute to true knowledge of the various subjects to which the writers have devoted their attention and to find a practical solution of the problems involved. Sensationalism or mere writing for effect is the exception, not the general characteristic of what is thus being constantly published on various aspects of national reconstruction.

It is inevitable, therefore, that in any attempt to treat the subject as a whole some important suggestions will appear to have been overlooked or neglected, and that valuable sources of information and useful proposals will have escaped notice, while in other cases there will appear to be repetition, even without acknowledgment of what has already been said, and said better by others.

The justification for the attempt made in the following pages is that there are many people who have not the time or inclination to follow up special questions fully, but may be glad of a summary, and that a mere sketch-plan of the whole ground to be covered, filled in here and there in more detail, may have its use as a kind of bird's-eye view by which the relations of a number of subjects to each other and the general character of each may be seen.

For convenience of treatment and as an aid to memory the various problems to be discussed are arranged under three heads; following the old Victorian watchwords of the party which claimed to be progressive—Peace, Retrenchment, Reform.

The policy once indicated by these terms may in many cases have been discarded, and no doubt they were often used in a sense very different from that in which they must serve in our classification. "Peace" and "Retrenchment" have been used to cover a policy which by reducing the Navy would have left us naked to our enemies and a prey to starvation within a few months from the outbreak of war; "Reform" to denote changes which pedantry or envy may urge, but which could lead to no useful practical result. In spite of this, the three words do in fact, like the words Liberty, Equality, Fraternity—whatever crimes may have been committed in their name—indicate and express three ideas that we must have definitely before us in considering what the lines of reconstruction ought to be.

The spirit—the tone of mind in which the work of reconstruction is approached—will count for much. First of all, it is essential to have hope—a real expectation not only that by strenuous effort and wise foresight the country will meet and overcome the trials which are inevitable, and the perils which threaten after as well as during the War, but also that a better and brighter future is in store. Plans must be framed and action taken under the inspiration of a firm trust that the ideals we aim at are to be realised, that the "things hoped for" have a potential actuality. Fatalism in politics—we use the term in the original sense including ethics—is deadly, whether it is the fatalism due to a sloppy optimism which is satisfied that somehow things will come right whatever we do or leave undone, or to a paralysing pessimism which in cowardly despair accepts the triumph of evil as ordained and gives up the struggle when the prospects of victory seem dark.

It would be folly not to recognise that not only now, but for years to come there will be enormous difficulties and terrible dangers to be faced; but it is possible for our hearts and minds to be filled too much with the contemplation of them instead of looking to the goal we aim at, and the steps we must take one by one to reach it.

Be not over-exquisite  
To cast the fashion of uncertain evils.  
What need a man forestall his date of grief  
And run to meet what he would most avoid?

There may be rocks and breakers—"a ferment of revolution"—ahead, but the task of the pilot and the crew is to keep their eyes on the channel through them, and to work the ship in its course to the haven where they would be.

Secondly, there must be a faith to inspire action, based on a belief in an essential goodness of human nature and in its capacity for improvement. Unless such a belief were well founded, democracy would be a thing to be dreaded and resisted by every means in our power. As ground for his belief in a better day, Bright speaks—and his language is prophetic—of the people "sublime in their resolution." It is that resolution which, in spite of our unprepared condition and of all the mistakes that have been made, as well as of disasters that could not have been foreseen, and of a power in the enemy far greater and a wickedness more diabolical than anyone dreamed of, will "bring victory home."

To have watched the action of the electorate during the last fifty years leads to the conclusion that in spite of apparent vacillations it has been characterised by good sense and good feeling, and that its judgment, so far as conditions from time to time permitted of its true expression, has been sound. To go about the country now and see what earnest and useful work is being quietly done, what loss and suffering bravely borne, confirms and renews the trust in our fellow-countrymen which might be shaken if we listened only to the utterances in the Press and in Parliament.

"Trust in the people" should be a habit of mind—a rule of action tacitly adopted—not a party watchword. Tell a man or boy—more than once—that

you trust him, and he will probably take it—and not without a warrant—that you don't, that in fact you have grave doubts but do not wholly despair. The phrase might be taboo on the platform to raise cheap cheers but silently recognised in the Cabinet as a guide in action. How much better would it have been all through the War, and how much better now, if there were no concealment, except when information given might assist the enemy, if we knew at once even when things went wrong! There have been times when it was necessary, in order to know at all what was really going on, to read the German reports rather than our own, subject of course to a discount. The difficulty with those German preparations is to determine whether the discount for intentional falsification should be 5 per cent. or 90 per cent. Candour, however, leads us rather to admit the former as generally nearer the mark when military operations have been the subject of them, at least until the Germans began to suffer serious defeats in the field.

It would have been far better, too, to have assumed—there was real ground for the assumption—that the nation was ready and willing at once to make any sacrifice, to submit to privation, to rouse itself to any effort if only the necessity for it were made clear, and if it could be satisfied that so far as possible the burdens would be distributed equally among all.

Increased taxation properly adjusted has almost been a general demand, but unfairness in its incidence even on comparatively small matters is intensely resented. The Food Control Ministry whose orders affect everybody's daily comfort is positively popular, while the profiteer and the food-hoarder arouse the bitterest, though perhaps not always discriminating, indignation. Skilled workmen have been almost driven to strike, not from want of patriotism, nor from desire for profit out of the War, but because of the unfairness of leaving their wage at a level often below that of the unskilled and even of casual importations. The fatal delays which were sometimes quite unnecessary, in dealing with complaints have added to the feeling of unrest. Suspicions were even aroused sometimes that delays were intentional.

A like spirit of confidence is required in the statement of "War Aims." The higher our aims are put—if put honestly—the more earnest and complete is the response. Stated as they were by Mr. Asquith, with his usual masterly precision of language, they received a practically unanimous and

enthusiastic approval. There was nothing sordid in the motives which induced the best of our youth to offer their lives for their country's cause.

Before the War it was a lack of "Trust in the people" which contributed to our unprepared condition. How much nearer would victory have been—possibly, indeed, there would have been no war—if our Government and leading men had, instead of carping at the great man who had true insight, stated plainly and calmly that great perils were threatened, that it was necessary to set our house in order, to make military training more general, to use all available knowledge in making ready the machinery which would be necessary in case war was thrust upon us suddenly! It was not "the people" who were responsible for the fact that the storm found us so unprepared. They would not have resented being told the truth, and asked to act accordingly. Even a candidate for Parliament may sometimes say what he really thinks, and yet not repel the electors, as witness one who, being asked long ago what was his view about "one man one vote," answered, "It is a good question for a school debating society. Let us talk about something important. Our first need is a strong navy; without that we should be starving, perhaps eating each other, or submitting to the most degrading terms, within a few months of the outbreak of war, and the second is the increased production of food at home to make us more self-supporting in time of need. Let us think of these things." He was elected by the votes of the artisans and agricultural labourers in a constituency where at the election before there had been a great majority for the opposing candidate, though he had no personal influence, had spent nothing in "nursing the constituency," and refused to give pledges or act as a delegate to register the instructions of any caucus. He died, politically, without abjuring his faith. It was not the electors who hastened his decease.

When a democratic Government is definitely established as in England now, the alternatives for trust are either to hold aloof in despair awaiting the débâcle, to resist to the bitter end with a result like that which Stephenson said would occur if a cow attempted to stop his locomotive, or to try humbug and flattery. You do not flatter those you trust. We are not speaking of that delightful flattery practised by Irishmen out of exuberant spirits or to create a genial atmosphere, but which is so easily succeeded by equally picturesque and imaginative denunciation. To resent is as foolish as to believe either, though we must admit that it is often a pleasure to be a

recipient of the one and to hear the other *façon de parler* addressed to our opponents. For the stolid Saxon it is a good maxim to tell the truth as pleasantly as possible, but to tell it plainly, and to be honest in admitting defects and recognising dangers. We are on the whole rather an ignorant nation—probably not more so than others, if we except the Germans and possibly the Scandinavians. We are not, as a rule, clear-headed or accurate thinkers, though we have generally a large fund of practical good sense. We lack constructive imagination, but have a certain originality and real power of initiative in dealing with practical problems as they arise, and much dogged perseverance in "carrying a thing through." These, like most other general propositions, are subject to exceptions and open to many objections, but they contain a sufficient element of truth to be worth noting.

It is well plainly to recognise that if democracy is to be a blessing instead of a curse there are three conditions necessary to control and guide its action. First, with the consciousness of power there must be a deep sense of responsibility. Secondly, with freedom of action there must be a law-abiding spirit, a habit of obedience to those laws of action which control the arbitrary changeful will of the moment. The prayer of the old Greek poet is one for all time:

May my lot be to keep a reverence pure in word and deed,  
Controlled by laws, lofty, heaven-born,  
Of which the father is God alone,  
Not by the mortal nature of man begotten  
Never in oblivion lulled to sleep!  
God is mighty within them and grows not old.

Thirdly, there should be an ideal of what we aim at, of what we wish the nation to become and to do, carefully thought out, and consciously set before us—its attainment the object of our efforts—and with that must be combined patient attention and steady work in planning and in taking each practical step which will tend towards its realisation. Mere captivating phrases are a will-of-the-wisp leading us to that "dangerous quag" of revolutionary change into which "even if a good man fall he will find no bottom for his feet to stand on." Reformation and revolution are "contraries" though not perhaps "contradictories." Either for the individual or the nation vague aspiration not followed by beneficent action is the kind

of stimulant which destroys virility. It renders even virtue sterile, and engenders no new birth.

The Reign of Law is the best protection of Liberty. Arbitrariness—the term seems the nearest we have to express the idea, but it is not quite happy, and the use of the more expressive German word "Willkür" might be pardoned—is as great a danger in a democracy as in an autocracy, and it is less capable of remedy. The "divine right of the odd man" "to govern wrong" is too often assumed as an article of political faith. A new generation may think that to quote from an early Victorian writer is to appeal to the "dark ages"; but is there not a warning for all time in Hallam's words, "the absolute Government of the majority is in general the most tyrannical of any"? It is possible to decapitate a king who sets himself above the law, or to deport or destroy a reactionary and tyrannous aristocracy, but against the crimes or follies of an unrestrained majority there is no appeal. Chaos, "red ruin, and the breaking up of laws" follow in their steps. A general and deep sense of responsibility as well as consciousness of power among "the masses" is a necessary condition for welfare in a country with democratic government.

More of the nation's life and development has been concentrated within the last four years than would occupy fifty years of Europe or a "cycle of Cathay" in ordinary times. It has borne sorrows and losses which would have been overwhelming had it been known beforehand how great they would be; the call for tremendous efforts for which it was totally unprepared has been answered with steady resolve and heroic sacrifice. Faith in human nature has been confirmed. Where there has been failure it has not been through want of courage or any shrinking from duty on the part of the rank and file, but rather from deficiencies in leadership. Imaginative grasp of a position, clear and accurate thinking, leading to prompt and definite action, can hardly be claimed as special characteristics of our race, but once satisfied that a thing has got to be done, that it is "up to them" to do it, checks or defeats, labour or risks do not count. Sooner or later the task is performed. The "recoil" of the British again and again after being pressed back is the striking feature in their history. The spring is not easily wound up, but it has enormous power, and the events of to-day show that it has not lost its elasticity. But how much more might have been accomplished, how much loss and suffering prevented, had knowledge

awakened more interest and a prophetic imagination guided and inspired action directed to a definite goal, had we set our ideals clearly before us and carefully thought out the steps to be taken one by one towards their realisation!

The recognition of these conditions is needed now, and will in the coming changes be needed more and more. Enthusiasm and sanity must be united to carry us safely forward. Tradition and custom will count for less either in maintaining or in preventing what is evil. Many old modes of thought, many old habits which checked us in the downward as well as hindered us in the upward path, will have been destroyed by the fire through which we have been passing. We need a conscious plan more than ever for rebuilding and good workmanship in execution detail by detail.

Image the whole, then execute the parts.  
Fancy the fabric  
Quite ere you build, ere steel strike fire from quartz,  
Ere mortar dab brick.

Then take the trowel and see that brick by brick each course is truly laid.

But we are not building a new city on unoccupied ground; there are some foundations truly laid which have withstood the fire and storm and which cannot be disturbed without both risk and useless toil. There are still edifices standing to which time has given a beauty and tradition a sanctity which newer creations cannot possess. They cannot be removed without irreparable loss. Like any other metaphor, that of rebuilding a city as compared with the action of a state, of a nation, after a time of change and trouble, is misleading if pressed too far. Progress for a nation must rather be the growth and development of a living organism adapting itself to new conditions or altered environment. We should "lop the moulder'd branch away," amputate the diseased tissue, as the true Conservative policy, and tend and foster the healthy growths with utmost care, as the true method for the Liberal who aims at improvement and fuller life.

One other thing must be said of the spirit in which the work of Reconstruction should be undertaken, which goes to the root of the whole matter, and a word must be used which we would have avoided if possible

—"the word is too often profaned for me to profane it." But search for a substitute has been unavailing.

There are some words which are better unspoken, except in case of necessity, that become soiled by common use. The too ready employment of them may savour indeed of that unctuous tone which makes ordinary Englishmen and boys squirm. "Conscience" is one. When a man speaks of his conscience you at once, and quite rightly, begin to suspect him. He is probably going to refuse some hard task which others are undertaking, to do something which is offensive to his fellows, or at best, in sheer obstinacy to insist on a course of conduct which he knows cannot be justified by reason. Someone has defined "conscience" as the "deification of our prejudices"; the giving of a kind of divine authority to something we will insist on doing though it brings no good, even causes harm, to ourselves and offends and injures others, or the giving a name which should be sacred as commanding what we want to do for other reasons. A staunch Nonconformist—one of the clearest thinkers and probably the finest preacher of the last generation—how he would have hated the phrase, but one cannot pause for another!—truly said of the passive resisters in his day, "There is a deal more of politics than of conscience in their action." Yet there are times when even the word conscience may have to be used, and no other will suffice. Another is "Duty"—so often put forward as the excuse for people doing something stupid, probably something they have been in the habit of doing and seem unable to give up, but which is really only a nuisance to themselves and also to others. Yet there are under the abused words ideas which should be the guide of life.

The third is "Love"—an earnest and intense desire for the welfare of our fellow-men, keen joy in their happiness, keen sorrow in their troubles. The word is out and shall not, except perhaps in a quotation, be used again. To use the word lightly or without grave reason seems almost a breach of the third clause of the Decalogue, remembering what is said to be its equivalent by one who of all men who have lived had the most intimate means of knowing. All work of reconstruction must be inspired by a spirit of true philanthropy; without that the labour is in vain. There is no other motive power that can move the world in the path of true progress.

It will be said that this is both obvious and to be ignored—a platitude with a flavour of cant. Is it? Do we not hear again and again the appeal to envy and hatred as motives of action, a desire in social life to pull down, if levelling up is not immediately practicable? Is not jealousy of the success of others, whether individuals or classes or states, again and again what really prompts a policy? Even in dealing with the countries which are our declared enemies, the desire to injure ought not to be our guide. If and when they relinquish the aims and cease from such acts as forced us into war with them and make restitution for the wrongs they have committed, the right policy is, as far as possible, having due regard to the just claims and interest of our friends, to do what will be for their true benefit also in the long run. No doubt there is a disgraceful and fatal policy, sometimes adopted by English Governments, to be resolutely withstood—the policy of trying "to conciliate our enemies by giving away our friends." We shall hear of it again in dealing both with Ireland and with certain colonies when Germany claims their return. On the other hand, the first maxim in all negotiation, the first principle of sound diplomacy, is always to give to the other side, and give without grudging, all he wants, provided it does not interfere with what it is important for your side to secure. Never be afraid of giving the opposing party too much, provided you get what your side really ought to have. How often has one heard in discussing a settlement the objection raised that the other party is getting too much! It is an old-time fallacy to think that practical good sense and the highest philanthropy are antagonistic; only be certain that if in any case they seem to be so, the latter is to prevail.

With a good map you may safely have Mr. Worldly Wiseman's company to the village of Morality, and visit the "judicious gentleman named Legality" and "his charming son Civility"—yet find a straight road thence to the Celestial City without deviating to the "great town" of Carnal Policy. An apology perhaps is due in the twentieth century for using the language of an earlier day; but everyone naturally thinks in the language in which he was brought up, and education is now no doubt sufficiently general to make allusion recognisable and translation easy. There are still some survivals from a past generation who prefer even the "minor prophets" as literature to the most "up-to-date" modern utterances, though they have long ago relinquished the idea that there is the slightest personal merit in doing so.

Even when the older language was half forgotten there were within our memory some who would use it if they could, and perhaps did so when they felt strongly, as a Scotsman in strange lands may, when deeply moved, revert to what convention insists on calling his "native doric."

The question may fairly be put to all who are dealing with proposals for reconstruction: "Is the aim you have in view definitely and clearly to promote the general benefit?" Most would no doubt be able quite honestly to answer, "Yes, that is my desire"; but we must go a step farther, "Are you willing to make that object paramount? If it were proved that in order to provide decent housing for a number of workers your dividends would be reduced, are you prepared still to urge that the required accommodation shall be provided? If the removal or the imposition of a particular tariff will benefit the community as a whole, are you prepared to vote for such a change, though owing to it the business in which you are personally interested may make less profit?" There are some men whose conduct shows that an answer could be given by them in the affirmative. When the great majority can so answer with truth, we need have no fear that the rebuilding of Britain, even if mistakes are made, will be on sound foundations.

To sum up: in considering each proposal we must first examine the spirit and the aim. Try the spirit, test the aims put before us by every means in our power; venture to measure them by the moral canons of the great thinkers and seers which have stood the test of time. Adopt the rules to which the acts of those who have benefited mankind have conformed or which have received the consent of the best—the "golden" rule, hard though it be to apply rightly and thoroughly, or Kant's principle that each act of the individual (or community) is to be tested by the standard whether or no it can be made of universal application, whether it can command approval if taken as a guide for their actions by other men or other nations as well as our own. Goodwill and Charity, to be strong and true, must begin at home, but for their full fruition require a field which has no bounds.

That man's the best Cosmopolite  
Who loves his native country best.

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# **Part II**

## **PEACE**

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## ***A.—INTERNATIONAL PEACE***

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## CHAPTER II

### LEAGUE OF NATIONS—THE NEED

*Unless a nation, like an individual, have some purpose, some ideal, some motive which lies outside of and beyond self-interest and self-aggrandisement, war must continue on the face of this earth until the day when the last and strongest man shall look out upon a world that has been depopulated in its pursuit of a false ideal.—*  
NICHOLAS MURRAY BUTLER.

Paramount in importance above everything else is the establishment and maintenance of peace between nations. No remedies for disease, no rules for healthy life will avail, if the arteries through which the life-blood is pouring away remain open still or are only temporarily closed and liable after a brief interval to burst out anew. The vitality of the nation would be gone beyond recovery if another generation of its best manhood were to be sacrificed and its material resources again squandered to meet the necessities of a great war.

Every day that the War lasts forces on us more clearly the fact that Science, not only natural science—physics and chemistry—but also the scientific organisation of the State as an instrument of war, has so developed the means of destruction as either to blot out humanity or to leave the greater part of mankind in abject and bitter slavery to the powers that can wield most effectively the instruments of death and of torture, if war between the leading nations breaks out again after an interval of seeming peace. How warfare has changed within living memory! Five-and-twenty years ago the highest authority on naval construction spoke with contempt of the submarine as a factor in war at sea. No one then had solved the old world problem of aerial flight. Some of the most distinguished men of science regarded the attempts which were then being made as hopeless. It then

seemed still to be a mere dream of poets. Wireless telegraphy was only a matter of speculation, a thing which a few only thought of as a possibility of the future. Man has indeed plucked the fruit of the tree of knowledge for his own destruction. What may be the result of another quarter of a century of like advancement of the knowledge of the means of spreading "death throughout the world and bitter woe"? It may not be, as Dr. Murray Butler says, that the strongest man will remain alone in a depopulated world. The strongest may succumb to the inventions for destruction and the survivors may be a few of those maimed or weakened by disease whom the storm has passed over as too obscure, of too little importance even for the messengers of Death to remember and to relieve from their misery. This is not rhetorical exaggeration. The weapons of offence regularly win in their race with the weapons of defence. Fortresses that took years to construct are shattered in a day. The ironclad is sunk by the torpedo. How very little margin lay between this country and starvation through action of submarines! Suppose the enemy had possessed five times as many submarines from the first, would our defensive measures have prevailed? How small an extension in the enemy's power in the air would have enabled him in a single night to leave London a mass of ruins, its whole population which had not fled dying in torment from poisonous gases! Another five-and-twenty years of advance in scientific knowledge equal to that of the last five-and-twenty years may easily make such a result possible.

But some man—one of those who never look beyond the next year and their own street, and expects always to carry on business as usual—will say that the nations will be exhausted and tired of war, and this War will be the last. Dare any country trust to that unless a new spirit is infused into the nations and definite steps are taken to prevent war? Did those who had the best means of knowledge—the Government of the day—imagine that such a war as this would break out suddenly? If they did, they would be guilty of a crime almost unparalleled in leaving us so unprepared and fiddling with such questions—"Welsh Disestablishment" and the like—as occupied their time and attention and excited the political controversies of the months and years immediately preceding the War.

Assume even that no new war does break out again actually, dare any nation neglect to keep up its naval and military armaments on a scale far greater than before? How is the burden to be met when every penny that

can be raised as revenue will be needed to meet the charge on our gigantic debt and the necessary claims for carrying on Government, to say nothing of improving the conditions of life? We cannot, nor can other nations, go on using up capital and borrowing indefinitely. The choice is between assured peace and certain ruin, even if no war actually occurs. How can peace be assured? It would be well for some of those with the requisite historical knowledge and insight to trace carefully the causes which have led to war in the past, to attempt a diagnosis of the disease which has again and again devastated the world. A vain classification might perhaps be made into religious wars, dynastic wars, trade wars; but is there not one element common almost to all, namely, the will to power, the desire and intention of some man or set of men to impose their will on others, regardless of justice, which forbids the exercise of force to prevent each thinking, speaking, acting as he will, provided he does not injure the rights of others? It was the assertion of a claim to dominate which led to the eighty years' war when Spain tried to impose her yoke on the Netherlands, and blended with desire for gain a crusade against the faiths which rejected the supremacy of Rome. Was the Thirty years War a religious war or a struggle between rulers to assert and extend their powers? Take any one of the series of long wars, such as those of Louis XIV. or of Napoleon, under what head of such a classification do they fall? Does not the common element above mentioned apply to all of them?

The urgency of taking definite steps to secure peace has been recognised already, much thought has been devoted to it, and schemes even in some detail have been suggested for dealing with it. The idea of a League of Nations to secure peace is occupying the attention of many of the wisest minds and of the statesmen who hold the most responsible positions. It is meeting with strong popular support, at all events in Britain and in the United States. France and Italy are examining the proposal. It is well, however, where attractive phrases are used and schemes proposed, to subject them carefully to the double test: how far they cover the ground and meet the real difficulties; and, secondly, how they would work out in practice in the circumstances which are likely to arise. We want to look at the question as a whole, to see exactly what we have to aim at, sometimes to reiterate what seem almost useless truisms. The obvious is too often overlooked. First we need to recognise the actual facts, then let the right

spirit grow up and become general, and after that attempt to plan the best machinery and test its probable effect and efficiency by seeing how it would be expected to work in various special cases.

There are now in the world two fundamentally different ways of looking at international relations. On the one hand, we have the assertions expressed definitely in words by many Germans and acted upon consistently without qualification by the German Government, that justice is the interest of the stronger; that power and force may be, and indeed ought to be, exerted by a State without any check on moral grounds; that a strong nation must realise itself, develop and use its strength without regard to the so-called rights of the weaker; that "those should take who have the power, and those should keep who can." To them Reason, Common Sense, even the Divine Law seem to say: "Assert thyself; have the will to power." Where such a spirit exists there can be no binding force in agreements, rules of international law are a farce, but convenient perhaps at times for embarrassing the action of opponents who wish to treat them with respect. The dictates of humanity may be set aside at discretion. With that spirit argument is useless. With those who are inspired by it there can be no compromise, no truce. It must be met by force inspired by moral earnestness. In that struggle the alternative for the world is victory or death. Every man who falls fighting against such a foe dies a martyr, witnessing by his death that so far as in him lies the embodied powers of evil shall not prevail. Unless the Power which thus claims to dominate is defeated it is useless to talk of peace. On the other hand, it is essential to recognise, and keep ever before us, the spirit which is opposed to this claim for domination, this denial of the existence of justice, and to renew in the whole nation the spirit in which it entered into the War.

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# CHAPTER III

## LEAGUE OF NATIONS—THE SCHEME

*If any peace after the War is to be permanent there must be a settlement not only between territorial claims but an arrangement with regard to the machinery by which peace will be maintained in the future.*

Perhaps the most convenient way to gain a more definite idea of what the proposal for a League of Nations really means, to understand both its advantages and the difficulties involved in it, may be to follow the debate on the subject initiated by Lord Parmoor in the House of Lords in March of 1918. It shows that the idea of a League of Nations to prevent war is taking definite shape, and is not regarded by practical men—statesmen with experience of the actual conduct of international affairs, and lawyers who as members of the judicial committee of the Privy Council have had to devote their attention to questions of international law—as outside the range of practical politics. It shows also that the idea will stand the test of discussion and calm criticism.

Lord Lansdowne—to whom, whatever may be thought of some recent utterances, the country owes a debt of gratitude too little recognised, especially for his conduct of foreign affairs at a most difficult period during the Boer War—stated his opinion that "in a league pronouncing a sentence of international outlawry upon any one country that broke away from its obligations you would have a material guarantee for the maintenance of peace." He pointed out how "the existence of such a league might perhaps have prevented the War in July of 1914, as it was impossible in that time of clamour and confusion when one suggestion after another made by those who, like Sir Edward Grey, were working for peace was rejected, to put forward a definite proposal for dealing with the dispute in a manner provided for by previous agreement." Lord Parker, whose authority carries

the greatest weight with jurists everywhere, having the true lawyer's instinct for putting vague proposals into definite shape, actually presented a draft of heads of agreement for the establishment of a League.<sup>[1]</sup> These heads would, to say the least, form the basis for discussion leading to practical results. One or two of his proposed clauses may be quoted as expressing in definite language the fundamental principles which must be the basis of any such League. The first may appear perhaps only a "pious opinion." It is really very much more. Assent to it means the complete repudiation of the ideas which have guided German policy—the ideas which made world war inevitable, and which will inevitably lead to war in the future unless they are abandoned. Any nation which assents to the clause tells the world that it expressly rejects those ideas and agrees that its action shall be guided by principles diametrically opposed to them. Assent to a declaration of the kind suggested would certainly affect the spirit in which international questions are approached in future, and probably the resulting action also. It runs:

"The League to recognise that war from whatever cause is a danger to our common civilisation, and that international disputes ought to be settled on principles of right and justice and not by force of arms." The last clause dealing with the admission of new members of the League is the complement of this. There is to be power "to admit a nation as a member of the League, if satisfied in each case that the nation bona fide accepts the principle on which the League is founded, and bona fide intends that international disputes shall thereafter be settled by peaceful means." It is contemplated, and rightly contemplated, that there should be a possibility for the Central Empires to join the League sooner or later, but it can only be on terms of their rulers at the time saying expressly, "We abjure in the sight of the world and of our own people those principles of action which German rulers and leaders of thought have been inculcating for two generations." The choice for Germany would be either to stand excommunicated from the brotherhood of nations for ever, or to say plainly, "I declare what my professors and schoolmasters have for half a century had to teach to be false; the doctrines of Treitschke and of his disciple von Bernhardi are anathema; it is infamous to adopt the statement of the German writer that 'It is of no importance to me whether an action is just or unjust,' or that 'If I am powerful enough to perform any deed, then I am justified in doing it.' I renounce such leaders and teachers and all their

words and works, so that I will not follow or be led by them." It may be urged that the recantation might not be sincere, but it would discredit the authority of those who attempt to revive the damnable doctrines.<sup>[2]</sup>

The great difficulty, of course, arises as to the means of enforcing the agreement against war, of finding some proper and effective sanction to secure its observance. It may be well to note that throughout this discussion the word sanction is used in the strict legal sense, meaning some definite penalty or punishment to be inflicted on a wrong-doer. It is the existence of such a "sanction" which is the clearest way of enforcing obedience, and gives a rule of conduct the force of law.

Two definite proposals are made in Lord Parker's scheme. (1) "If an act of war be committed against any member of the League, the Council is to notify it, and thereupon every member should (a) break off diplomatic relations with the nation guilty of such act; (b) prohibit and take effective steps to prevent all trade and commerce between itself and the guilty party; (c) place an embargo upon all ships and property of the guilty nation found in its territorial waters or within its territories."

A very similar suggestion, though not quite so definite, was made by the present writer in an article on "Sanction in International Law," which appeared in the Italian Journal "Scientia" in 1916. "The nations might agree that any belligerent which wilfully violates or invades neutral territory shall be treated as a moral leper. Without actually going to war they should cease to have dealings with the invader, forbid all intercourse of their subjects with the country which violates the neutral territory."

For the sake of brevity this may be called the "economic boycott," but it is really very much more than simply economic pressure. It is a common habit in political discussions to confuse very different things, to which the same name is given, and the term "economic boycott" is being used to cover three proposals of very different character. (a) It may mean a permanent exclusion of Germany from the markets of the world to punish its people for supporting the crimes of its rulers and incidentally to secure for ourselves a valuable extension of trade by reason of the exclusion of a rival. (b) It may mean a temporary measure to insure that agreed terms of peace are observed by those who disregard "mere scraps of paper," to act as a

guarantee that restitution shall be made for wrongs done, to check the revival and extension of the enemy's armaments, to make the German people feel the disadvantages and loss caused by their action, and the desirability of joining with others in repudiating war as a means of settling disputes or asserting national claims. (c) It may mean a sanction for breach of the stipulations contained in the agreement on which the League of Nations is founded, i.e., a punishment to be inflicted on anyone who infringes the agreement he has made—a means of insuring performance of its terms. It is in this last sense that it is used in the present discussion.

(2) The second sanction proposed in the scheme is of a still more serious character. The clause to embody it runs as follows:

"Certain members of the League specified in a schedule and to consist of the chief military and naval powers, should agree, if required to do so by a resolution of the League, to commence war against the guilty nation, and to prosecute such war by land and sea until the guilty nation shall have accepted terms which shall be approved by the League."

This proposal might more effectually prevent wrong-doing, but, even if carefully guarded as Lord Parker proposes, appears open to serious objections. There seems grave reason to fear that while intended to prevent war, it might really be the cause of disputes, and possibly of war of the most deadly kind. Such a stipulation might cast a terrible burden on a strong naval power like Great Britain, and have most disastrous consequences. We are bound to maintain a strong navy to keep open communication between the different parts of the Empire and also to protect our food supplies. Without sea power Britain could in a few months be starved into submission to any terms in case of war, but to maintain a large navy to be at the beck and call of a Council representing all the nations who cared to join the proposed League would be intolerable. Suppose, for example, the United States demanded satisfaction for some outrage on American subjects, or suppose American subjects were threatened with massacre in some unsettled country such as Mexico, and in order to obtain satisfaction or to protect its subjects sent some warships to a Mexican port and landed an armed force, not with any object of aggression, but to prevent irreparable injuries. Suppose Great Britain was of opinion that the American demand was amply justified, but that a majority of representatives of the League, or

even, as Lord Parker's scheme suggests, a majority of the powers named in the Schedule, took a contrary view and called on Great Britain to fulfil the agreement to use her naval force and commence and prosecute to the bitter end a war against the United States because its Government had acted at once instead of waiting while the representatives of a score of other nations were discussing whether any action was permissible. Would not the alternative between breaking the engagement and undertaking a bitter and ruinous war against a powerful and friendly nation put us in an intolerable position? Half a dozen States in the League might for one reason or another wish to resist the claim of the United States for redress. Names of States which might possibly so combine could be given, but it is better to refrain. It is not inconceivable that German penetration and intrigue at some future time might promote a combination of the kind. All sorts of influences might be brought to bear on certain of the States and on their representatives. Dynastic claims might even affect them.

Unless it be with some country which she can trust and whose Government and its aims she can thoroughly rely upon, and then only for some limited and specific purpose, Great Britain, or any other naval or military power, ought not to bind itself to go to war and employ its forces. We must be free to reduce those forces or to refrain from employing them in making war. An engagement which might in circumstances, the real character of which no one can foresee at present, compel us to undertake a war at the bidding of others is a thing to which we ought never to consent. Engagements to make war are not a safe way of promoting peace. They may possibly be justified where there is some clearly specified object, some defined case in which nations ally themselves to prevent some particular wrong, such, for example, as guaranteeing the neutrality of Belgium. Even for a single specific agreement of this kind a very strong case is required, but that is a totally different thing from agreeing to provide a kind of world police to enforce and execute the orders of a Council of heterogeneous States under conditions the nature of which no one can predict now. We cannot tell beforehand with any certainty what will be the real character of the proposed League Council, nor what motives may inspire its members at some future time, nor whom the majority of them will in fact represent. It does not necessarily follow that there can be no sanction of any kind to enforce the rules of International Law or the decisions of a League of

Nations to prevent a breach of international peace, no penalty attaching to those who disregard those rules or are guilty of breaking that peace. As already stated, the economic boycott, every member of the League agreeing to treat an aggressor as an outlaw, and without actually going to war ceasing to have any dealings with him, and forbidding all intercourse of its subjects with the peace-breaker, is likely to be really effective. Lord Shaw, whose interest in the subject is no new thing, and who has devoted long and careful consideration to it, later in the debate gave the weight of his authority as to the efficacy of such measures. "Let it," he said, "be known once and for all that from the moment a nation becomes a traitor to the League it becomes, *ipso facto*, an economic outlaw, then the motive both for being included within and for remaining within the League will be increased a hundredfold, and wholly for the benefit of mankind."

Of course, logically many of the objections which can be urged against an agreement to make war might also be urged against an agreement for a boycott of this kind, but in practice the risks in the case of the boycott would be far less serious. Members of a club might well agree to expel and to cut a member who assaults another, but it would be a different matter to agree that, they should be able to order the strongest man in the club to go to his house and thrash the offender until he makes such compensation as may seem satisfactory to them. A man who objected to be put on a "schedule" of members liable to be deputed for such a mission would not necessarily be a coward. He might possibly think that the member assaulted did in fact deserve a horse-whipping, though he might deprecate such a proceeding, and consider that the affair, or the dispute between the parties, ought to have been dealt with by the club committee as a case for expulsion. A hatred of injustice, resentment against wrong, if it really exists in nations and individuals, will make itself felt. Without it, formal agreements will be found to be of little use. The objections to a League of Nations having power practically to order certain of its members to make war do not in any way prevent the establishment of international tribunals being followed by useful results. Without any express sanctions to enforce them as above suggested, their decisions will usually be obeyed in practice. There is and will be plenty of scope for the action of such tribunals. A nation may hate war, may recognise its perils and the inevitable losses involved, but may feel that an unwarrantable claim is being made against it which it is bound

to resist. It may, however, be perfectly willing to submit the point to any tribunal which even purports to be impartial, and abide by its decision. In this way some systems of law have grown up. They began by regulating procedure. Each of two parties claimed something as his property, was ready to fight to maintain his right; but such contests might result in injustice, and were certainly injurious to the peace of the State. In early Roman Law each party who claimed the object in dispute touched it with his spear, showing his readiness to fight for it; then some respected citizen—*vir pietate gravis*—stepped in, and each party, without fear that his refraining from fighting would expose him to future encroachments on his rights, could agree to abide by his decision. As time goes on, what was merely the casual intervention of an arbitrator becomes an habitual rule, and eventually the fixed law of the land. Custom develops by general consent into law. Trial by combat may become obsolete in practice even long before it becomes illegal. There are many cases in which a man (or a nation) dare not give way, though he knows that it will cost him more to fight the case. A rough Lancashire manufacturer was once advised against fighting a difficult case on the ground that the result was uncertain, and the costs would in any event be very heavy, more than the value of the matter in dispute. He said afterwards to his solicitor with some force, "If I give in in this, that —— will come into my kitchen, kick me, and ask what business I have there. No, I'll fight him now." He brought his action and won, and found the prediction as to costs was only too fully borne out, even though judgment in the Court of Appeal was finally given in his favour. The man who says he will not fight in any circumstances invites injuries, though the man who fights when he could honourably avoid it is pretty sure to rue his decision.

Where two high-spirited persons are engaged in a dispute, and each is ready to maintain his cause with the sword, the intervention of a third may save both from the disasters of a battle. The words of the Douglas when intervening in a heated contest, "The first who strikes shall be my foe," may sometimes be a model for the real peacemaker. But he would certainly have resented the idea of agreeing to keep prepared, ready armed to fight at the bidding of a number of other chiefs, anyone who used force to prevent or punish some injury to himself.

## FOOTNOTES:

[1]

The death of Lord Parker, which occurred soon after these words were written, has deprived the country of the services of one of the few great jurists at a time when they are most sorely needed. There are many good lawyers, many judicial minds acute in seizing the really relevant points in a complicated case, but very few, perhaps none, who united to legal learning and judicial penetration so broad a grasp of principle and appreciation of the larger issues involved in decisions given.

[2]

A passage in Mr. Brailsford's book on a "League of Nations," published some months before the debate took place, but which I had not seen when the above lines were written, puts the point most forcibly:

"We set out to destroy Prussian militarism. It will be destroyed at the moment when a German Government pledges itself to enter a league based on arbitration and conciliation."

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## CHAPTER IV

### LEAGUE OF NATIONS—THE CONDITIONS

After an adjourned debate on June 27th, 1918, in which Lord Curzon pointed out several practical difficulties that would have to be faced, the House of Lords, surely not a body to be carried away by any ephemeral current of popular feeling<sup>[3]</sup> or captivated by a vague phrase, passed with practical unanimity a resolution in these terms, "That this House approves of the principle of a League of Nations, and commends to His Majesty's Government a study of the conditions required for its realisation." It in effect declared the "preamble proved," and proposed that "the clauses" should be considered. At the suggestion of Lord Bryce—a true friend of peace, if ever there was one—certain words contained in the original resolution proposing that there should be a tribunal constituted "whose orders shall be enforceable by adequate sanction" were omitted. The question of sanction is, no doubt, a crucial one, but it seemed better to substitute the more general words urging an inquiry into the conditions necessary for the establishment of a League, in fact to see generally—looking at the question as a whole—what definite and practical steps should be taken to bring the League into existence and define its constitution, aims and powers. In passing such a resolution the House of Lords was expressing the feeling of the nation. Its great importance was that by an assembly so critical, containing men of such varied experience and-with special knowledge both of law and of foreign affairs, a resolution supporting the idea of a League was accepted with real unanimity.

It would be most unfortunate if the approval of the proposal to give the League powers to direct the use of the naval and military forces of certain of its members were to be made a condition precedent to approval of the principle of a League and as necessarily implied in it. Earnest advocates of that principle may dissent entirely from Viscount Grey's statement in his pamphlet, published about the time when the debate took place, that "those

States that have power must be ready to use all the force, economic, military or naval, that they possess." *"Anything less than this is of no value."* They may hold, on the contrary, that a League might be of great value without any agreement binding certain of its members to employ—which implies an obligation to maintain—naval and military forces and armaments at the bidding of the League Council on a scale and in the manner which would either be settled from time to time by representatives of other nations or be the subject of some preliminary agreement. Settling the terms of such an agreement might involve serious disputes and delay the establishment of the League indefinitely. The moral influence due to the existence of a League embracing all nations which regard war as an evil to be stopped if possible, would be great. A Declaration of Faith, in which those who hold a common belief give expression to it, has its effect. An agreement between nations or individuals, even where there is no legal sanction, would be regarded as something that they will try to carry out. The breach of such an agreement would excite the "resentment which is the life-blood of law." Still the risk of disregard of the obligations is great unless there is a definite material sanction, an evil imposed by force on a wrong-doer, and no doubt it will be urged that some objections to employ military and naval power to enforce the obligations imposed by the League may be raised against the less drastic proposal for an economic boycott, but in actual working the two things, as already pointed out, differ enormously. The suggested economic boycott imposes a similar obligation on all members of the League; all alike can immediately forbid all intercourse by their subjects with the aggressor, instead of imposing on certain members the duty of going to war. Secondly, it does not imply the maintenance of great armaments by any State.

It is constantly found that a penalty of smaller amount, a less severe punishment, is more likely to prevent a wrong than a heavier one, provided that it is prompt and certain. Had Germany known a few months sooner that Britain would assuredly go to war and put into such war her whole resources if Belgium were invaded, it is not improbable that that outrage would never have been committed; but had Germany also known that the moment her troops crossed the Belgian frontier every German ship in the United States would be interned, every American citizen punished as a criminal by the United States Government if he traded with Germany, that

"intercourse" with the aggressor would be at once forbidden, and that these restraints would be continued until complete restitution had been made, is it not morally certain that Belgium would not have been invaded? War might have been prevented. In fear of such an injury to German trade and commerce, the bankers of Berlin and Frankfort would have denounced war; the merchants of Hamburg and Bremen would have been the strongest advocates of peace. A like test might be applied to other cases of aggression. The effects of breaking off diplomatic—and, still more, commercial—relationships, although no shot is fired and no regiment mobilised, and of mere neutrality differ *toto coelo*. The very people who are least influenced by moral restraints, who scorn justice, will be most influenced by the financial losses and the destruction of their trade.

It was, no doubt, right "to commend a study of the question" to His Majesty's Government, but it is also well to commend to the Government the desirability of consultation with those outside the Government departments who have given study to it already. Like other problems, it should be considered in advance during the War. As Lord Shaw forcibly pointed out, "The project does not mean the slackening of our efforts or a weakening of our forces or timidity in our policy in the present War. If it did I would not be associated with it for one hour."

To quote Lord Grey's words, Germany has to be convinced that force does not pay, that the aims and policy of her military rulers inflict intolerable and also unnecessary suffering upon her. The regeneration of Germany, a real new birth, is necessary if the peace of the world is to be secured; and surely by now we might have learned that such regeneration will never come unless Germany is beaten in this War. As Lord Grey says, "Recent military success and the ascendancy of Prussian militarism have reduced the advocates of anything but force to silence" in Germany. As these words are written comes the report of the sinking of the hospital ship *Llandovery Castle*, followed by cold-blooded and deliberate murder. The mass of German crime grows daily.

The "economic boycott" above referred to differs absolutely in its aim and character from the proposal to impose a permanent and continuous boycott on German commerce to maintain and extend British or other trade at the expense of Germany. Phrases are sometimes used here which seem to be

almost a repetition of those so dear to the Pan-German party. "Destroy British commerce that German may replace it," is echoed back as "Destroy German commerce that British may replace it." The whole idea that the progress and extension of the trade and industry of one country is an injury to another is radically false. A spirit of jealousy, regarding the prosperity of others as involving injury to ourselves, is a curse to the individual, to the class, or to the nation which is imbued with it.

To put these questions on the highest moral basis—on a true religious basis, if you will—is not cant, but only a recognition of the real facts. The world will without doubt everlastingly perish unless this true faith is maintained and acted upon. Self-interest and self-aggrandisement as dominant motives inevitably lead to destruction, hastened by every advance in the knowledge and in the efficiency of those who take them as their guides.

#### FOOTNOTES:

[3]

These words were written before July 9th, and perhaps now require some modification.

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## CHAPTER V

### LEAGUE OF NATIONS—ITS SCOPE AND AIM

*Just so while it is highly important to have controversies between nations settled by arbitration rather than by war, and the growth of sentiment in favour of that peaceable method of settlement is one of the great advances in civilisation of this generation; yet the true basis of peace among men is to be found in a just and considerate spirit among the people who rule our modern democracies, in their regard for the rights of other countries and in their desire to be fair and kindly in the treatment of the subjects which give rise to international controversies. The basis of peace and order is "the self-restraint of the thousands of people who make up the community, and their willingness to obey the law and regard the rights of others."—ELIHU ROOT.*

No League of Peace, however, can be sufficient guarantee against a power which is highly organised, vigorous and united, if it desires war. Either such a power must be so defeated and so weakened as to be unable to renew hostilities, or its character so altered as to make it give up the desire for aggression and domination. As Mr. Gerard points out, "It is only by an evolution of Germany herself towards Liberalism that the world will be given such guarantees of future peace as will justify the termination of this War. Liberalism in this sense does not mean violent revolution, but does mean a spirit opposed to that which animates the present Government of Germany, and will continue to do so if no change is made in that Government." "The whole world," as Mr. Gerard says, "feels that peace made with its present Government would not be lasting, that such a peace would mean the detachment of some of the Allies from the present world

alliance against Germany, preparation by Germany in light of her needs as disclosed by the War, and the declaration of a new war in which there would be no battle of the Marne to turn back the tide of German world conquest." No such change of government can be imposed from without. Every German would resent, and rightly, any such interference. Mr. Balfour has declared expressly that a claim to change the form of government in Germany is not one of our war aims. The change must be a change of spirit, which will not come unless facts prove that the violent assertion of the claim to domination, to override justice where self-interest appears to be served thereby, has led to disaster, and is in reality opposed to self-interest in the long run. As a means of carrying out the ideas of Germany in its relations with other countries, it must be admitted that its Government is a singularly effective machine. It is those ideas which must be given up if a real change is to be made. The clever devil could have invented nothing better than the highly organised machinery of the German Government for doing his work. There are two conditions, at all events, which are necessary in regard to any such change if permanent peace is to result.

First, that we should not look for a disruption of settled and orderly government in Germany. The anarchy of Russia does not make for world peace. Would not a reasonable man, however liberal his views, prefer for his country the rule of the Kaiser and his devotees to the rule of a Lenin and of Bolsheviks?

Second, it must be clear that we do not desire the destruction of Germany—a futile desire, even if not wicked—but its regeneration. No doubt for a time, whatever happens in Germany, it will be impossible to forget the crimes that have been committed. British sailors will naturally refuse all association with those who have been guilty of the series of murders at sea. Any attempt, however, to exclude Germany from the markets of the world, permanently to destroy German commerce for all time, would make permanent peace impossible. To make that a war aim would be to strengthen every evil influence in Germany, and if done with the object of securing gain to ourselves by forcible means, would degrade us almost to the level of those who forced this War upon the world. It was the purity of our aims that united all the best elements of the nation in entering upon and in prosecuting the War, and in facing its losses. It was that which has confirmed the stability of the alliance, and from the beginning of the War

made the best and most enlightened Americans earnest supporters of our cause, and has finally brought in the whole American nation, sworn to see the accomplishment of those aims. The aims with which Britain entered on the War appealed irresistibly to the people of the whole Empire, and not least to the imagination of the Indian races. An Indian friend of wide experience and calm and independent judgment wrote to me at the time, saying he had never seen anything like the spirit of intense loyalty called out by the belief of Indians that Britain was taking up a heavy burden to protect weaker nations from aggression and to maintain justice.<sup>[4]</sup> Let us keep those aims pure to the end. It would, of course, be affectation to suggest that our object in the War is now simply a chivalrous desire to protect the weak or maintain justice. We now know that it is also to preserve our own existence as a nation, and that it would be better for us and our children that Britain should be sunk beneath the sea than that Germany should achieve a complete victory.

It must be reiterated that until Germans and Austrians can be admitted to free intercourse with other nations we can have no complete world peace. For such admission the conditions precedent above stated are essential. But if these are complied with, we must make our choice between the possibility of general peace with a League of Nations embracing all and a state of "veiled and suspended warfare." This pregnant phrase caught my eye after the foregoing paragraphs were written. It is one to be remembered.

Although there is no sign at present of a changed spirit in the German rulers, or in the party which is now dominant in Germany, the prospect of an alteration in the spirit of the German people is not hopeless, unless they emerge from the War victorious. A significant passage from a German paper is quoted by Sir Dugald Clerk in the most valuable and encouraging address on the "Stability of Britain," delivered by him to the Royal Society of Arts in 1916. "So the Germans are awakening to a consciousness of the futility of their dream of domination founded upon the idea of might, irrespective of the rights of other nations, and they will ultimately be forced to accept the idea, so strange to them hitherto, that honesty between nations is as necessary as between man and man." The whole address should be read as an antidote by any who take a "gloomy joy in depreciation," as a tonic by those who are depressed by our failures and apprehensive of our future.

To maintain a real peace based on goodwill, we want to get rid of the jealous spirit which regards the prosperity of one nation as an injury to others. "The economic and financial strength of this country is founded upon the welfare not merely of the British people, but practically of all countries." "Commerce is not a war. It will be found that wealth increases simultaneously in industrious nations." "We must not even forget that a poverty-stricken Germany and Austria would react on the whole world." "Punish the Germans and Austrians by all means—they thoroughly deserve it—but do not imagine that by cutting those nations out of the world's commerce the other nations can be rendered more wealthy." These general statements do not exclude, of course, the possibility that it may be found necessary for a time by "economic pressure" to secure performance by the enemy of certain terms, nor that, during a period of reconstruction and readjustment, the conditions affecting certain industries may not demand some special temporary protection for them. There may for a time have to be restrictions on certain imports from the enemy countries, and on certain exports to them, but all such proposals ought to be very jealously scrutinised, not only in regard to their effect on the particular trades directly affected, but on the country as a whole. The use of such weapons often injures those who use them more than those against whom they are used. Would not a German Minister of Propaganda, or a German Committee on War Aims, wishing to stimulate active support for the War among the German masses, be well advised to circulate some of the resolutions that have been passed by certain bodies in England and scatter them broadcast in Central Europe, with a few careful glosses and comments to point the moral? They would be a valuable asset for a German "ginger group." The open door into and out of this country for commodities generally has made it an emporium for world trade, and been one of the main causes why, in spite of deficient home production of necessities, we have been able to stand the economic strain of the War. Striking off the fetters that it has been found necessary to impose—sometimes with undue strictness and pedantic minuteness—on British commerce and industry will be one of the first things to be hoped for from peace. It is impossible to give detailed examples here. Ask any merchant, he will give you specific instances of the need for a recovered freedom. Questions are so closely involved with each other that we may seem to be mixing up national trade interests with the ideal striving for peace and goodwill. Yet, after all, self-interest rightly

understood and regard for the interests of others, with an honest wish for their welfare, are not feelings mutually exclusive. There is high authority for saying that "serving the Lord" is not incompatible with "diligence in business."

It is quite possible to lay too much stress on the necessity for definite and formal sanctions to enforce agreements. There are cases in which the enforcement of a definite penalty for a wrongful act or for breach of an agreement is very difficult, but in which the "sense of moral obligation," "respect for public opinion," and "reliance on principles of mutual consent" do regularly operate so strongly that the rules of conduct laid down are in fact observed. On the Manchester Exchange thousands of agreements involving millions of money are made, the breach of which could not be made the ground of a successful action at law. The number of cases of repudiation of such agreements is almost negligible. To plead the Statute of Frauds in an action for non-delivery or non-acceptance of goods under such informal agreements might be a defence in the law courts, but would not save the defendant from the indeterminate but effective penalties due to the feeling of his fellows that he was acting dishonourably. It is instructive to notice that in dealing with the question of industrial disputes, which are in many ways analogous to international, at least where they arise between organised bodies of employers and of workpeople, the Whitley Committee, in a supplemental report issued in January, 1918, expressed the opinion: (1) that no attempt should be made to establish compulsory arbitration or compulsory legislation to prevent strikes and lock-outs; (2) that there should be standing arbitration councils or panels of arbitrators to whom disputes arising could be voluntarily referred; (3) that provision should be made for independent inquiry and report as to the merits of trade disputes; (4) that legal penalties for breach of an award or of an agreement made to settle a trade dispute should not be imposed; (5) that the decisions of industrial tribunals and arbitrators should be co-ordinated as far as possible, and that there should be opportunity for interchange of opinion between the arbitrators whose awards should be circulated. A body of customary law on the subject would thus grow up without legal sanction, but of great value in promoting uniformity and preventing the ill-feeling which would arise from conflicting decisions in different cases involving similar questions. Those who have taken any part in deciding questions affecting wages or trade

conditions have found the need of some standard to appeal to, and felt the danger likely to arise from giving decisions either less or more favourable to either party than had been given in other districts in similar circumstances. In an analogous way, decisions of the prize court of one country are quoted in the courts of other countries, although they are not binding on them. International Law did exist, and had an important practical influence. Diplomats did appeal to it, and the prize tribunals, in administering the law, stated distinctly that they would be guided by and would apply the principles of that law, even if the orders issued by the administrative Government of their own country were at variance with it. The decision of the Privy Council in the case of the *Zamora* establishes the principle that the law which prize courts will follow is International Law, and that they will do so though some Order in Council may conflict with it.

#### FOOTNOTES:

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How strong this belief was among many of those who had often been in opposition to the British Government was shown at a meeting in Bombay early in the War. The enthusiastic speech of the chairman, the late Sir Pherozeshah Mehta, one of the ablest and most persistent critics of British rule in India for very many years, is one to be remembered.

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# CHAPTER VI

## CONCLUSIONS REACHED

We may now state in order certain definite conclusions which appear to follow from the arguments urged above:—

1.—It is to be expected that during the next thirty years, a period less than that which has elapsed since the Franco-German War, the scientific knowledge of the means of carrying on offensive warfare will have made such advances and become so generally applied, that, if another world war breaks out, not only will material damage be caused which can never be repaired, but the best part of the human race will either be destroyed or suffer deterioration as disastrous as complete destruction, and that this result will be accompanied by appalling misery.

2.—Unless there is a real assurance of peace, even if actual war does not break out, the maintenance of armaments and the preparation for war would place a burden which would be absolutely intolerable on the leading nations of mankind.

3.—Owing to the close connection through modern means of communication between one nation and another and the way in which their interests are interlocked, a war between two States is liable to develop into a world war. If one nation endeavours to promote its interests by imposing its will by force on another, the other nations must either stand by while the injury is done, in which case it is almost certain that the injury will be repeated by subsequent attacks on some of them, or the nations must league themselves together to prevent aggression and the assertion of the claim to ascendancy.

4.—The complete defeat of Germany, and the punishment thereby inflicted on the German rulers and the people who have supported them, will be the best vindication of the principles of international justice possible, and will

operate as a sanction for international morality and a warning against future aggressions or claims to dominate put forward by Germany or any other State.

5.—The defeat of Germany in the present War, followed by subsequent pressure on Germany through economic boycott or else by a clearly proved change in the principles and aims of the German nation, accompanied by a definite repudiation of the persons and the policy and organisation which have led to the War, is absolutely essential for the future peace of the world.

6.—The formation of a League of Nations willing to bind themselves together for common objects, of which the prevention of war is the most important, may not only be the most effective way of securing peace but also provide a means for the consideration and adoption of measures intended for the common welfare of all. Such a League may, probably must, come into existence, and its aims and methods be formulated, before Germany and her Allies could be admitted to it; but as soon as Germany and her Allies can give adequate assurances that they will adopt and be bound by the principles laid down as the foundation of the League, they should be admitted to it. Until this is possible the League must partake of the nature of a defensive alliance rather than of a world-wide league of peace.

7.—Whether any definite sanction for enforcing the principles on which the League is founded and the stipulations which it contains can be imposed or not, the League may be of great value by giving the weight of international opinion expressly to those principles. Public opinion of the nations so expressed might often be effective even though not enforced by a definite sanction.

8.—Of the two definite sanctions proposed, namely, (*a*) the so-called "economic boycott" and (*b*) the use of the naval and military forces of the leagued States or of certain States selected from them by arrangement, the economic boycott which can readily be applied by all members of the League alike, and that without keeping up any large armaments, is likely to be effective and is free from the most serious objections against the other sanction suggested.

9.—So many difficulties would arise in fixing the terms of any stipulations as to the employment of military and naval forces to carry into effect the requirements of the League, that to make such provisions a necessary preliminary condition to the existence of the League from the outset might indefinitely delay the formation of such a League, and, further, the discussion of such terms would be likely to lead to friction. The obligation imposed on certain States might involve a very heavy burden, first, in keeping up armaments and possibly, later, in actually going to war. Such stipulations, for reasons above stated and illustrated, might place the leading powers in a position of great embarrassment, and might actually themselves become the cause of serious wars.

10.—The practice of making Secret Treaties by which the Sovereigns, the Foreign Ministers, or the diplomatists of any nation can bind it ought to be discontinued. The experience of the action of this country as well as of others during the present War, as well as before it, supports this conclusion. Negotiations must no doubt be carried on through the ordinary diplomatic channels, but before a complete and binding agreement is entered into, the duly constituted representatives of the popular will should know and give their sanction to what is being done. On the other hand, for unauthorised persons or any self-constituted bodies or conferences to attempt to pre-judge such questions and to carry on negotiations either with regular or irregular representatives of other nations is pernicious. Such action is likely both to lead to confusion and to hamper the action of the authorised representatives of the nation, and is really opposed to sound principles of democracy, which must be based on the duly expressed will of the nation as a whole, and not of any section.

11.—Much may be done in settling the terms of peace after the War by acting so as to remove probable causes of war in the future. The adoption of some of the methods used in the past, as, for example, at the Congress at Vienna, is sure to lead to future difficulties. Terms of peace should not be matters for the kind of bargaining between the powerful States by which one gives up something in consideration of another giving up something else in exchange, and the contracting parties treat smaller States or weaker nations as "pawns" in the game. Each territory about which any question arises, each subject which has to be dealt with, should be treated independently in accordance with the requirements of justice, and

especially having regard to the welfare of the people most directly affected by it. No claim, for example, on the part of Germany to be compensated for evacuating and making reparation to Belgium by having some advantage in some other part of the world should be entertained for a moment. To do so would be equivalent to bargaining with a criminal as to the compensation to be paid to him for giving up what he has acquired by his crimes. It is, however, legitimate in considering the question of self-determination by the people of any territory to consider how far such people have established or can establish a peaceful and orderly government, and how far the arrangements to be made as regards any country or district will affect the safety of contiguous countries or may give rise to future disputes and really be productive of war.

12.—Whether a League is established or not, treaties for submitting disputes to arbitration, and if possible to tribunals permanently constituted, will still be valuable in the future as in the past. The decisions of regular tribunals composed of impartial persons who inspire respect will gradually form a body of customary law, and be precedents guiding action in the future. The attempt of Germany to override not only precedents but also express agreements with regard to the conduct of war, if it fails, does not discredit the value of such attempts as were made at The Hague to embody in definite form the international law on the subjects with which they endeavoured to deal. A careful revision of the provisions agreed to at The Hague in light of subsequent knowledge is desirable. They only become a dead letter if one nation utterly disregards them and does so without incurring a penalty in some form.

13.—It is not desirable to attempt to go into exact detail in all the arrangements so made. For example, the attempt to enumerate a list of articles which are to be deemed contraband, as was tried in the Declaration of London, has led to preposterous results. Articles which at one time were of no use in war have become, through the advance in scientific knowledge, the material for making the most deadly and most cruel instruments in the course of the present War.

14.—An attempt must be made to secure at least partial disarmament. Provision as to the disarmament of Germany should be one of the terms of peace. The extent and character of any arrangements as to general

disarmament require separate and detailed consideration. It would naturally be one of the subjects to be discussed by any League which may be formed. It is well to note from the outset (a) that a fleet is essential to the British Empire for purely defensive purposes, and for maintaining connection between the different parts of the Empire, but a great reduction in the size of the fleet may be possible by arrangement. The Allied Powers will recognise that it was the existence of the British fleet that saved them from defeat, and in some cases from utter destruction. (6) That for a nation to train its citizens as a defensive force on the Swiss model may actually tend to preserve peace, and also have a very useful influence on the morale of a nation. A defensive force of this kind would not have the character or the aims which make a great professional army a menace to peace.

15.—Lastly, it is undesirable and would be futile to attempt to set up a "supernational sovereign authority." The scope of any League—its powers and its objects—should be clearly defined, and the independent sovereign States should bind themselves, as contracting parties, to carry out the terms agreed, and all should agree beforehand as to the steps they would take to prevent or to punish any violation of those terms.

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## CHAPTER VII

### VICTORY AND PEACE

*Toi qui nous apportas l'épée—  
Le glaive de Justice—  
Et nous ordonnas de l'acheter  
Fût ce au prix de nos tuniques,  
Toi qui renversas les tables des marchands  
Installés sous Tes portiques,  
Donne à nos bras la foi et la rage à nos coeurs  
Afin que la Victoire couronne de fleurs  
Le front de nos enfants.—*

EMILE CAMMAERTS,  
"Prière Pâques,"  
1915.

A few still perhaps remain of those who, as under-graduates at the time of the Franco-German War, remember Dean Stanley's first sermons after many years of exclusion from the Oxford University pulpit. Using in one of them his favourite plan of giving life to ancient literature by modern illustrations and conversely making modern tendencies clearer by references to ancient thought, he took the words of the Hebrew prophet, applying them to the troubles and strife of the time. "Who is this that cometh from Edom with dyed garments from Bozrah?" What will emerge from the bloodshed of war and the chaos of communal revolution? The answer was given—"It may be, it must be a united Germany; it may be, it must be a regenerate France."

Truly it has been a regenerate France that, with firm resolve and calm courage, has suffered and withstood invasion, far different from the France which in 1870 went to war with light heart, excited and unprepared, anticipating easy victory. War shattered the Empire and the true soul of France was found.

Well might the "Song before Sunrise" again greet the purified France:—

Who is this that rises red with wounds and splendid.  
All her breast and brow made beautiful with scars?

May we soon be able to add the conclusion!—

In her eyes the light and fire of long pain ended,  
In her lips a song as of the morning stars.

The prophecy in both parts was fulfilled. Germany did indeed become united, united not only by closer political ties between all its divisions, but united in its aims and in its methods, conscious of union and of strength, marvellous in its power of organisation, fitting each member into his special position in the consolidated state, and moulding him for the place he was to occupy; drilled from earliest youth how to act and how to think, his commonest acts done, and every gestures made, according to rule. Yet they, too, had their ideals. I remember in 1871, the year after the Franco-German War, meeting a party of Germans who were unveiling a tablet by the Pasterze Glacier in memory of a comrade fallen in the war—Karl Hoffman, a pioneer of mountaineering in the Glockner district—and hearing their impassioned speeches. The mountains of Austrian Tyrol were to them "die Alpen seines Vaterlandes," and the song with the refrain, "Lieb Vaterland muss grösser sein" echoed from the rocks, "My beloved Fatherland must be greater"; may not this be the expression of a noble patriotism? But it so easily turns to "my country must have more, must take more," and becomes the very watchword of greed. "Deutschland über Alles" might perhaps mean first to the German "My country before everything to me." *Corruptio optimi pessima*, it easily becomes "Germany over all,"—the country which dominates an inferior world and is thus the condensed motto of supreme insolence. "Insolence breeds the tyrant," and the doom the ancient poet prophesies is the divine ordinance to be fulfilled by the action of man. "Insolence, swollen with vain thought, mounts to the highest place, and is hurled down to the doom decreed."

Insolence seems the nearest equivalent for the Greek word [Greek: hybris], which implies much more. Some translate it "pride." It is a sense of superiority, greater strength, higher culture, leading to a claim to dominate

the minds and the lives, the destinies, of others, and then in its arrogant self-assertion to override all laws and all restraints imposed by justice. It is the exact opposite of the Christian precept: "Let each esteem other better than himself." This, like some other Christian precepts, may never have been meant to express the whole truth, but only that side which men are naturally apt to neglect. It was hardly necessary to insist that men should defend themselves against attack, maintain their rights, and keep their self-respect. There are some crimes, too, which it required no special revelation to condemn; man revolts from them as *contra naturam*. One of these crimes is refusal to aid their fellow-countrymen who are fighting against aggression.

With the spirit that claims to dominate in its "will to power," to override the eternal laws of justice, there can be no compromise. Until that spirit is vanquished, the answer to the question, "Is it peace?" must be, "What hast thou to do with peace, so long as thy brutal acts and thy tyrannies are so many?" The order is given to smite. With profit now we may recall the old narrative,— "And he smote thrice, and stayed. And the man of God was wroth with him, and said, Thou shouldest have smitten five or six times; then hadst thou smitten" the enemy till thou hadst destroyed his evil will. The work must be completed thoroughly; but that task once accomplished, to continue war, whether open or veiled, either to satisfy national hatred and the mere wish for vengeance, or, still more, in the desire of gain, would be to become—to use George Herbert's words—"parcel devils in damnation" with those who have driven or beguiled Germany to crime against humanity and to her own undoing. It is but too easy for heroic effort and firm determination to defend the right, to be corrupted either by a spirit of insolence or greed. Even as we sow the seeds for a fruitful harvest of good, the arch-enemy may be sowing the tares. On the other hand, to cease from work and from struggle, either through fear or slackness or weariness, or even from that pacific temperament which shrinks from contest of any kind, may have results almost equally fatal. That other prayer of the Greek poet is for us also. "But I ask that the god will never relax that struggle which is for the State's true welfare"—"the contest in which citizen vies with citizen who shall best serve the State."

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## ***B.—POLITICAL PEACE***

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## CHAPTER VIII

### PEACE AND THE CONSTITUTION

*The question for the British nation is—Can we work our course pacifically on firm land into the New Era, or must it be for us as for others, through the black abysses of Anarchy, hardly escaping, if we do with all our struggles escape, the jaws of eternal death?—*  
THOMAS CARLYLE.

It is not only international peace that must be assured. As a necessary condition for reconstruction comes the need for Peace, peace real and lasting, and peace all round. There may be times when the nation or the individual needs the bracing stimulus, if not of war, at least of competition and of conflict in the realm of thought and in the realm of action; times when old institutions, old creeds, old systems, old customs, are fiercely attacked and vigorously defended. The storm clears the air, and the struggle ends in the survival of the fittest. After the War the nations, and our own not least, wearied of strife, exhausted by losses, will need all their energies to repair those losses, to rebuild, often in quite new form, what the havoc of war has destroyed, and to adapt themselves to the changed conditions of an altered world. It will be a time neither for contest nor for rest, but for co-operation, mutual help in the work, not merely of restoration, but of building up something better in its place, where the old has been destroyed, or shown its defects under the strain. For this, Peace is needed, peace not only between the nations, but peace between different classes and opposing parties, and even divergent Churches; international, industrial, political and religious peace. There will be so much that ought by general agreement to be done, the ideals to be set before us will have so much in common, their realisation will need so much work in concert, such concurrence as to the practical steps to be taken, such goodwill among those who must work together with a common aim, that a "truce of God" between those who were

once opponents may be called for. For a time at least old shibboleths might be forgotten, and the old so-called "principles," round which so many barren contests of the past have been waged, might cease to hamper us in adopting the practical measures which the exigencies of the time demand.

It is a significant fact, a note of sure and certain hope of the ultimate result in the struggle against the powers of darkness, that men are ready now to think and to act on the assumption that complete victory will be achieved, and that the foundations for reconstruction may now be laid, even while war is raging most fiercely. This work of preparation to meet the difficulties that will arise after the War need not interfere in any way with the paramount necessity of carrying on the War to a successful issue, or divert the attention of those who are engaged in that task. It is indeed matter for congratulation that in the present Parliament, in spite of necessary preoccupation with matters directly affecting the conduct of the War, a great Parliamentary Reform, changing and enlarging the basis of representation, has been carried through, and that the way to a great advance in Education has been made possible.

These great changes have been made with something approaching to general concurrence. On one question unfortunately proposals made as part of their considered scheme for electoral reform by a representative conference were set aside. The influence of old party machinery and a sluggish reluctance to take the trouble to understand either its character or its importance prevented the introduction of a system of proportional representation. The representatives of the caucuses scored a success towards slamming the door of the House of Commons in the face of the detached judgment, moderation of language, and independence of character which Parliament needs. The electors desire to have such qualities in their representatives, but care is taken to prevent their giving effect to it. But it is better to let even that question rest for a time.

It would have been most unfortunate if it had been necessary, after the War, when delay in dealing with many matters which will be most urgent would be disastrous, to arouse contests about alterations in the electorate and mode of election. The new Parliament may, after all, turn out to be fairly representative of the nation, and may set about the practical work of reconstruction at once. It would have been an advantage if the Reform of

the House of Lords could also have been disposed of in the present Parliament, but it is not one of the questions upon which the welfare of the country will immediately depend. Everyone admits the need for reform; the abolition of the "backwoods-man" must come; but it is the men of most experience in public affairs who regularly attend sittings of the House of Lords, and they contribute even now a valuable element in promoting useful legislation as well as in revising and amending the Bills initiated in another place. Most of the amendments of the Law which marked the latter half of the nineteenth century were first introduced in the House of Lords.

During this time of severe test, it cannot be denied that the House of Lords has gained in the respect of the nation, that its debates have not only been dignified but often useful and enlightening, nor that, as at other times in its past history, it has shown itself to be quite as ready as the other House to be a guardian of law and of liberty. The business ability of many of its members has also been conspicuous, and the value of the experience of those who have taken part in the government of British possessions beyond the seas and of their knowledge of other countries has been demonstrated.

Of the Crown and its influence it is unnecessary, perhaps unbecoming, to say much. It has made for the unity of the Empire, not only as a symbol, but, so far as the strict limitations of our Constitution permit, as an active force. The existence of the monarchy and the character of three successive sovereigns, and their real personal interest in its people, are among the causes why India has been, and especially why the Native States have been, as a rule, so loyal in this time of danger, when the support of the whole Empire was so much needed. In our own country the example set of ever ready and earnest sympathy with all who are suffering from the effects of the War, feeling its strain and bearing its burdens, from the highest to the humblest, and also of that simplicity of life now so vitally important for all in the time of general self-denial, which is necessary or, at any rate, a duty for all, has been one of the real factors in knitting all classes of the nation together in useful service and willing sacrifice. Could anyone read the royal speech to the nation on July 6th, 1918, and the words of the Archbishop of Canterbury at St. Paul's, and of the leaders in Parliament, without feeling what a mighty influence for good there is in the British monarchy? Those words were not decorous platitudes demanded by convention, but the expression of genuine and intense feeling.

The sober freedom out of which there springs  
Our loyal passion for our temperate kings

is an inheritance of our country which no theoretical discussions about forms of government can interfere with, unless we are insane enough to abandon the practical good sense that has brought the nation safely through so many perils, in deference to some *a priori* argument about the best form of government, and the logical result of some so-called principles. In politics—always using the term in its broad meaning, and not as denoting the disputes and manoeuvres of parties, like the contests between the green and blue factions of Byzantium—there is a strong presumption that whatever is recommended as "logical" is also foolish. It would be well to prescribe a severe course of Burke for the *a priori* theorists, and while they are occupied with it, set ourselves to the real work. We should not forget, too, that Court influence, which in some past times fostered corruption in political life, has for eighty years been as a rule a purifying influence. It would not be easy for any Minister, pressed by the political exigencies of the hour, to submit, even for formal approval, to a sovereign who has only the national interest to think of, perhaps most difficult of all to a high-minded and clear-headed woman, a course of action that was dishonourable or mean.

However important the influence of the Crown and the functions of a Second Chamber may be, it is the House of Commons which is the cornerstone of the Constitution. Through it the will of the nation must be expressed, and embodied in definite action. The representatives in that House are those chosen by the nation by regular and legal methods to exercise their judgment, to enact laws, and to control acts of the executive. It is essential not only to maintain, but to restore the position of the House of Commons, and insure for it the respect and confidence of the people. It is impossible to deny that respect and confidence have been shaken, and that the position of the House is threatened from two opposite quarters. We hear it daily spoken of as "that talking shop"; it has been said that it would be better, instead of having a fine statue of Cromwell outside, to have a living Cromwell inside to purge it thoroughly. The story of the officer who, on returning to England after long residence in the East, asked his father if "that nonsense was going on still," represents a feeling which is widespread. The present House of Commons, the existence of which has been

necessarily prolonged, has been the subject of bitter and contemptuous criticism. Much of that criticism is unfair. In spite of the fact that its attention had first to be directed to questions directly affecting the War, it has passed the largest extension of the franchise ever made, and in doing so without doubt carried out the wish of the nation. It got rid of the fetters imposed on the free expression of the will of the electors, and the restrictions placed on the free selection of candidates of small means, by putting the expenses of returning officers on public funds, and also by making better provision for the revision of the register of voters. A number of useful Bills have been passed, and it has been a means of eliciting information from the Government which the country ought to have, but which would otherwise have been withheld. It has voted the necessary supplies for carrying on the War, and freely and readily assented to the increased taxation that was essential. Unfortunately it is the practice in a portion of the Press always to give prominence to the strange antics of certain members and the vicious attempts made by some to embarrass the Government in carrying on the War. A scene in the House of Commons is fully reported; the good work done, especially by certain useful committees, passes almost unnoticed. It is true, however, that the character of many of the debates has been regrettable, and that as regards what is perhaps its most important function, namely, the control of expenditure, the House has not been able to exercise its functions as it should.

It was pointed out years ago that the House of Commons was in practice ceasing to be what it ought, according to Constitutional theory, to be, "a deliberative assembly of the representatives of the nation discussing and forming judgments on national policy, instituting legislation and determining its form," and was becoming simply "a body for registering the decrees of a Cabinet." In practice it was assumed to be "the duty of the minority in opposition to find objections to the proposals of the Government, representing the majority, and to occupy time in voting against them as often as possible, and on the other hand that it is the duty of the majority to refrain from discussion, to applaud Ministers, and to make sure that whatever they propose shall be carried by undiminished numbers." In this respect the present House is no worse than its predecessors for the last thirty years; the political truce has indeed improved matters in some respects. It is at least doubtful whether under "pre-War conditions" either

the Representation of the People Bill or the Education Bill could have been carried, certainly they would not have been passed in a form to secure so much general consent. Instead of such consent, some measure strongly opposed by a minority might have been forced through by free use of the closure. A new danger has arisen, however, of a still more serious kind, threatening the position of the House of Commons. It is that, instead of national policy being controlled by legislation, settled by a recognised constitutional body elected according to definite rules and representing the nation, the real power of initiative and real directing force may pass to some other body or bodies unknown to the law and representing only a class or even to certain writers in the popular Press. The House of Commons, unless its constitutional powers and its independence are maintained or restored, may become a body for registering and giving legal sanction to the resolutions of some conference or convention indefinite in its constitution, but highly organised for the purpose of making representatives in Parliament mere delegates to carry out the proposals of the majority of those who themselves had acted as delegates of a section only of the community.

The course of revolution in Russia should be a warning to all. Russia is passing through the Valley of the Shadow of Death, where is heard "the continual howling and yelling of a people under unutterable misery, who sit there bound in affliction and iron, and over it hang the discouraging clouds of confusion; death also does always spread his wings over it. In a word it is every whit a dreadful being utterly without order." Had there been in Russia a regularly constituted assembly possessing adequate power and representing the nation as a whole, including the "bourgeoisie"—who also "are God's creatures"—as well as workmen, instead of irregular bodies appealing to the greed and hatred of a class, most of the misery through which Russia is passing might have been prevented, and the prospects of early restoration would have been assured. The British nation is too sane, too used to orderly freedom, to adopt either the spirit or the methods of the Bolsheviks, but we may hear of them even in this country. They may perhaps give serious trouble and interfere with progress on sound lines. The historic House of Commons must be the means of carrying out Reconstruction so far as legislation, and of controlling it so far as State action is required. Some changes in its methods will be discussed in the

chapters on Reform, but the maintenance of the Constitution as the best instrument for promoting orderly, peaceful, and real progress is essential.

The peace we need would only be uselessly disturbed, and the practical reforms most urgently required would only be delayed by raising controversial questions about the form of the Constitution. We may well let them alone, and get on with something that will be of real benefit.

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## CHAPTER IX

### PEACE AND DEMOCRACY

*There is no more unsafe politician than a conscientiously rigid doctrinaire, nothing more sure to end in disaster than a theoretic volume of policy that admits of no pliability for contingencies.—J.R. LOWELL.*

It is often assumed that a change in the form of Government in Germany would completely alter the attitude and conduct of the nation, and secure permanent peace, but that alone would not be sufficient. It would undoubtedly help; for under a more popular Government it would be easier for a different spirit in the German nation to assert itself. Democracies, however, have from time to time been aggressive, and have claimed to dominate their neighbours. A change far deeper than a change in the form of Government is needed. The claim put forward both by word and deed to impose the German will on others by organised force of any kind must be abandoned utterly, if the world is to be really at peace with Germany and with those whom Germany has been able to compel or to beguile into alliance with her. The conflict is not simply between autocracy or oligarchy and democracy, but between different ideals and diametrically opposed notions of duty. The conception of their State as an organisation carefully arranged to impose its will on others regardless of their feelings and their rights must be eradicated. Democracy and Liberty do not necessarily go together. There may be democracy without liberty, and it is possible though not probable that there may be real liberty without the form of democracy. An enlightened monarch, governing as well as reigning, may express the real will of a nation more truly than the vote of a majority of representatives; and individual liberty may be more secure under such a monarch than when it is dependent on the result of divisions taken when party passion is running high. But such a rule must lack the element of

stability. The Antonines pass away and Commodus and Heliogabalus rule in their place. Permanent strength and settled liberty are best secured when the acts of Government are the expression of the conscious will of the nation as a whole, where the people think out for themselves the general lines of action and the Government is their minister. It is not enough that there should be a just rule in which they acquiesce, but it is they themselves who should act—through agents, no doubt—and learn the habit of forming right judgments and acting justly. To deny him a share in political life—that is, in deciding the action of the State to which he belongs—is to deprive a man of one of those "activities of the soul which constitute happiness," to take from him one of the things that makes a full life for those who really live among their fellows. There may always be a few who live apart, contemplative souls

insphered

In regions mild, of calm and serene air,  
Above the smoke and stir of this dim spot  
Which men call earth.

Some may build themselves a Palace of Art where they may live alone; some may sink themselves in luxury or repose in sluggish indifference, careless of the life of others round them, with neither the heart to feel nor head to understand anything beyond their own immediate wants. But the highest aim and fullest life for man generally—as "an animal more social than the bee"—is

To go and join head and heart and hand,  
Active and firm to fight the bloodless fight  
Of science, freedom, and the truth in Christ.

Political action may be one of the means of carrying on that fight. Is it not one of the "rights of man" to be allowed to join in it?

It is, however, not to be forgotten that men acting in the mass, just as men acting individually, may act under sudden impulse, may do under the influence of temporary passion, even of a generous emotion, things which they would regret afterwards, and feel to be an error. Some checks on such sudden action are most essential in a democracy, because there is no appeal

from its decision. A reverence for tradition, for those rules of conduct which have stood the test of time, is one restraining influence, but more formal restraints on sudden decisions and violent changes are necessary. A single vote of a popular assembly may not represent the well-considered judgment and permanent will of the people. Steps may be taken which it is impossible to recall. To insist on an appeal from "Philip drunk to Philip sober" is not to deprive him of his real liberty. It is a safeguard, not an infringement of the principles of true democracy, to provide some body of men of experience who can exercise an independent judgment, and who, when some violent change is proposed, have the right and the duty to reply in effect:

Old things may not be therefore true,  
Oh brother men, nor yet the new;  
Ah, still awhile the old thought retain,  
And yet consider it again.

Such a justification, such a statement of the function of a Second Chamber, not directly elected, may provoke a histrionic smile among extreme advocates of so-called popular rights, but has never evoked an argument which can displace it as based on sound reason and common sense. There are some changes, too, which ought not to be made without a specific appeal to the people on that particular issue. To make them as part of the programme, as one plank in the platform of a party dominant for the moment, is not to execute but to evade the real will of the nation. We know by experience how the vote of a popular representative assembly may represent the opinion of "a bare majority of a bare majority;" conceivably anything over one-eighth of the nation. A committee is elected by some eager partisans supposed to represent a party. That party perhaps represents a bare majority of the constituency. The caucus chooses a candidate whose views suit a bare majority of its members who hold the most extreme views. He and others go to Parliament as representing one party, and a majority of such members decides what policy shall be adopted. Party discipline compels the acquiescence of the rest. The machine is cleverly constructed to make the will of certain party managers of mere sections of the constituencies the dominant factor. No wonder that they denounce Proportional Representation as a dangerous fad. Undoubtedly the will of the people must prevail, but the exercise of that will should depend on and be

the result of their own deliberate judgment. Whether what is done is a blessing or curse depends not on whether it is the act of an autocrat, of an aristocracy, or of a democracy, but on the character of the act and the spirit which prompts it. A great audience in London recently heard the true position summed up in few words—I quote Dr. Campbell Morgan from memory—"It is said we want to make the world safe for democracy. What we really need is to make democracy safe for the world."

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## ***C.—INDUSTRIAL PEACE***

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# CHAPTER X

## INDUSTRIAL COUNCILS

*To secure industrial peace on terms just and honourable to both sides would be to double the national strength whether in industry or citizenship.—*  
MEMORANDUM OF THE GARTON  
FOUNDATION.

Under this head it will be convenient to treat not only of the steps to be taken to prevent disputes or secure their settlement by peaceful means, and to promote a more hearty co-operation of employer and employed, but also of various other questions affecting industry, such, for example, as increased production and increased saving. Without industrial peace there will be no industrial or commercial prosperity, and without a fair amount of prosperity it will be very difficult if not impossible to preserve industrial peace. As the War proceeds these questions become more and more urgent; after it, they will be more serious and more pressing than ever. Already the need for taking certain steps at once and for preparing a future policy is recognised. Anyone who wishes to have before him a clear statement of the industrial situation and of the effects of the War upon it, cannot do better than read, and read with care, the revised memorandum prepared under the auspices of the Garton Foundation and published in October, 1916. Singularly impartial and judicious, it does not gloss over the difficulties and perils which must be faced, but throughout there is a note of hopefulness—an anticipation of a better state of things—if while "the forces of change are visibly at work we do not allow them to hurry us blindly with them," but "direct them along the path of ordered progress." Some of the specific remedies suggested, of the proposals adumbrated, may be open to criticism—criticism is, indeed, invited—but it is evident that nothing is suggested that has not been the subject of careful consideration of the facts. Some of the proposals have already been put into fairly definite form in the Whitley

Report, and have received the approval of the Government. Industrial Councils are to be established. The object of them will be to consider "constructive measures for the improvement of industrial conditions and the increase of efficiency." They will not be confined to specific points of dispute. They are to be established in industries which are "highly organised," where the employer and employed already possess some definite association or union which represents them respectively. There are to be national, district, and workshop councils set up. Their object differs from that of the Conciliation Boards for Arbitration or the Trade Boards established to settle some specific question such as a minimum wage to be paid, or some question that has given rise to a dispute between employers and employed. Such a mode of settlement is a great advance on leaving differences to be settled by an industrial war—a strike or lock-out. The Boards will still be needed, just as arbitration tribunals will be required to settle specific disputes between nations. The aim in both cases is to substitute arbitration for war (or its equivalent) or threats of war. Something more is aimed at in the establishment of Industrial Councils. They contemplate a "continuous and constructive co-operation of Capital and Management on the one hand and Labour on the other." They are not tribunals for the settlement of disputes which have arisen, but joint committees which can discuss and propose methods of dealing with any question affecting working-conditions generally, e.g., the introduction of new machinery and its effect on employment and the status as well as the wages of the workpeople, and even its economic effect generally. Suggestions can be made as to changes which may "increase output or economise effort" and eliminate waste. The effect of any alterations on the health of those engaged in any industry would be within their purview. The idea is to promote co-operation, to make all recognise certain common interests, not merely to adjust competing claims. In international affairs the nearest analogy would be a League of Nations for promoting the common interest of all. While, of course, the main object of such a league is common action to prevent breaches of the international peace by restraining wrong-doers, it should not be the sole object. In the case of Industrial Councils the object is to promote the general welfare of all engaged in the trade and to increase productive efficiency, as well as to secure fair terms between the parties and prevent disputes. If such a Council has been established for any industry Government Departments will consult it, and not the Trade Board,

on any questions affecting that industry; but the constitution of the Council should make provision by which Trade Boards can be consulted. Roughly speaking, "the functions of the Trade Board will be called into operation mainly in the case of the less organised trades, and the highly organised trades will be the sphere of the Industrial Councils." These, in their most developed form, will be national, district, and local.

A memorandum which has official sanction states that the chief duty of the Trade Boards, on the other hand, is to fix minimum rates of wages which can be imposed by law. They are needed primarily to insure that in trades where the workers have no official organisation to guard their interest a living wage shall be secured for all. They are statutory bodies set up under an Act of Parliament just passed, and will be connected with the Ministry of Labour, by which their members are largely nominated. The work of such Boards is being extended.

Detailed discussion of the character of the work which may be expected to be done by the councils and of its probable effects would be beyond the scope of this volume, and would require special knowledge of the industries concerned. It will vary in different industries and in different places. In some, success may be confidently expected, in others there will probably be failures. The aim of the proposal is certainly one to be desired, and the method for attaining it promises many beneficial results. There appear to be some dangers involved which it may be well to consider. Useful work may be hindered owing to, first, the time and attention required for the meetings and discussions of the various councils, and the risk that clever and fluent talkers may prolong debate and generate friction and may perhaps exercise an undue influence. Probably this will not be found a serious danger. Experience over a considerable district shows that those who are chosen by the Trade Unions to represent them are usually clear-headed and businesslike men, who grasp a point quickly and, while carefully guarding the interests of those whom they represent, are fair-minded and ready to do all they can to promote the national interest also. Secondly, there may be a tendency to interfere too much in questions of management, even where full and detailed knowledge of trade conditions of the moment and of possible appliances that may be used is required, and prompt action may be necessary. A man steering a boat in a storm would hardly succeed if he had to consult a committee before moving the helm. The object of the councils

would not be to undertake the general management of the business, but should be directed to the relation of workers and management, to secure efficiency and greater production, a fair participation in and distribution of the benefits derived from success, and wholesome conditions for those engaged in the work, and to avoid dispute by agreeing action beforehand wherever possible. Thirdly, in this as in most other cases where power is given to representatives of organised bodies, there is a risk of undue interference with the liberty of those who do not belong to them or who are in a minority. A dead level of uniformity may be secured, experiments and new lines of action by enterprising and original minds may be interfered with. The old problem of reconciling high organisation and corporate action with individual liberty may present itself in an acute form.

Already before the War the tendency to crush out individuality was becoming stronger and stronger, the private firms of manufacturers were being squeezed out by highly organised combines, or tempted by high prices offered to hand over their businesses to them. In banking, similarly, the absorption and amalgamation of smaller banks has been going on with startling rapidity. The personal relationship between the customer and the banker, who would grant loans and overdrafts because he knew the character and position of the borrower in each case, will no longer exist. The business was safe enough when the manager of a country bank probably knew whether a customer's butcher's bills were becoming excessive. Now everything must be referred to London for decision according to some fixed general rule. The convenience and the accommodation of the man with a small account count for very little. A more serious question is the effect which these amalgamations may have on the relations between bankers and those who are engaged in manufacturing business.

The old personal relationship between the mill-owner and his employees, when his garden adjoined the mill yard, when they spoke of him by his Christian name, and he knew their family affairs and was ready to help in time of difficulty and distress and to take a lead in any local effort or support any local charity, has been rapidly disappearing. There still are, however, many employers to whom the happiness and welfare of their workpeople is a matter of deepest concern. They have a human interest in them, and take a pride in improving the conditions of their life. They have

other aims than simply securing as big a dividend as possible for the eager shareholders of a huge combine. It is, no doubt, usually large employers of labour who are thus able and willing to make provision for the welfare of the people in their employ. Some have established libraries and reading-rooms, and have provided classes for giving instruction likely to be useful to the boys and young men engaged in their works. Conditions of labour would be greatly improved if the example of the best firms in such matters were generally followed.

The more complete organisation of trades under powerful councils may tend to a virtual monopoly being obtained by a limited number of large and influential firms, and the result may be prejudicial to the consumer by limiting competition. That is not certainly the object, but it may be an incidental effect of the organisation which is needed for full development of the system of councils. In some cases State support and control acting in conjunction with private firms of great influence is to be introduced to unify an industry under one management. Support and control may possibly be necessary in some cases, but the extension of such methods should be jealously watched. In the manufacture of dyes, for example, it seems that the Government and a very powerful manufacturing firm or combination are arranging to act together. Those outside this combination will have no chance of competing. In this particular case the scheme may be useful, but careful provision is necessary to protect customers for the commodities produced. It may become a very serious thing for manufacturers of piece goods when struggling to maintain their position in the world markets, and the slightest addition to cost of production may close a market to them, if they find that they cannot purchase the dyes they require in the cheapest market, or those who dye goods for them must increase their charges, because one organisation can fix prices, and import from abroad is prohibited in order to protect a special home industry.

Possibly it may be necessary for a time to give such protection to certain industries, involving a preliminary expenditure of a large capital; but the fact that the dye industry had gone from England to Germany was, in the opinion of many, due not so much to free and open competition as to the circumstances that (1) the German producers paid more attention to systematic chemical research bearing on the industry, and (2) that our absurd patent law operated to throttle English production. The founder of

the successful firm of Levinstein, Limited, Mr. Ivan Levinstein, seeing by his own experience how our patent laws prevented the development of the dye industry in England, devoted years of work to obtain an alteration of these laws, but with only partial success. The Government, after very long delays, attempted to deal with the matter, but it is not yet satisfactorily settled. A Bill on the subject is now before Parliament. A list can be given of more than a dozen cases—there may have been many others—in which the Badische-Anilin Fabrik was plaintiff against firms in this country. The result was to aid the rapid development of the huge works near Mannheim now used to manufacture poisonous gases, while the works in this country were crippled. Strangely enough, it was an English chemist (Sir W. Perkin) who made the discoveries which led to the development of this industry; but it is generally possible where competition is keen to take out subsidiary patents for small improvements which really enable the subsequent patentee to command the market. Sometimes the root invention for some reason cannot be made the subject of a valid patent, or the patent for it expires before its full commercial value has been realised, and the minor improvements give the holder of patents for them a virtual monopoly.

All along the line, too, the big firm is favoured at the expense of the smaller. The position of the small tradesman is often a very hard one. The shopkeeper in a village or small town near the metropolis pays heavy rates for the upkeep of roads which are torn to pieces by the heavy motors of the great distributing firms delivering goods to those who would otherwise be his customers, perhaps with petrol specially exempted from taxation. The firm which by widespread advertisements can induce people to buy an article with some familiar name attached, reaps a gigantic fortune, while the man who makes the same article and cannot spend money on advertisement gains a mere pittance. The advertisements which disfigure the country are not taxed, as in other countries, and the issue of advertising circulars has been subsidised by the Post Office, which delivered them at a rate lower than that charged for delivery of the letters, or even the postcards, of the poorest, though the trouble involved is the same. The patent laws, again, have been exploited to protect the large manufacturer, who fences some form of production by taking out a string of patents often where there is no meritorious invention at all. The rubbishy specifications are flourished in the face of a poor competitor, and form a basis for threats which a man who

is not wealthy dare not resist, knowing the heavy cost of fighting any patent action whether successful or not. "To him that hath shall be given" ought not to be a maxim to guide legislators or any department of Government.

To return from this digression. One great advantage of the councils would be that those who represent the workmen upon them will probably be men who are actually engaged in manual work in the trades concerned, or have been so engaged, and who will look at each question practically. The agitator who lives on grievances and disputes, the politician "on the make," or the well-meaning and half-informed enthusiast from outside, is not likely to find a place on councils whose object it is to see how interests which investors, managers, and workmen have in common can best be promoted, and how the share of each in the work and its profits can be more fairly assigned and distributed instead of attention being concentrated on matters in which their interests seem to be in conflict.

Another difficulty of more direct importance with regard to the proposed councils is already arising. The relative powers and position of the shop stewards chosen by the men in each works and of the unions representing industry as a whole in any district have to be settled. There are also overlapping unions competing for influence and support, and sometimes doing so by making excessive demands. The events of the next few months may lead either to an accentuation or to a partial solution of these questions which are perhaps the most serious at present affecting industrial peace. It is better not to anticipate. Prophecy might be falsified too soon and too palpably, and the position, which changes from week to week, is too critical for anyone to discuss unless he has full and exact knowledge of the facts and clear understanding of the way in which undercurrents are setting.

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# CHAPTER XI

## LONG HOURS

*Our life is turned  
Out of her course wherever man is made  
An offering, or a sacrifice, a tool  
Or implement, a passive thing employed  
As a brute mean, without acknowledgment  
Of common right or interest in the end.*

—WILLIAM  
WORD  
SWOR  
TH.

There is no doubt that among the causes of unrest one of the most serious, probably much more so than either employers or workmen are generally conscious of, is the long hours of work. Those who have had to hear questions arising out of labour disputes have noticed the state of tension produced by the weariness and strain of too prolonged and continuous work. Even in the domestic circle an overworked man is often found less amiable and more ready to find fault. A harassed manager and a deputation of jaded workmen may be really very good fellows and yet find that some comparatively small question raises strong feeling and mutual recrimination, and then leads to rash action resulting in open strife, strikes, and lock-outs, and the judicial proceedings which may be necessary in consequence of them. "A Skilled Labourer," writing in the *Quarterly Review*, mentions as the first of the four principal grievances of workmen—"the hours are too long." Long hours have been accepted on both sides partly because during the War the call of the country for increased output, especially of munitions, was so urgent, and partly because it was thought that higher profits would thereby be obtained, and certainly higher wages

earned. It seems, however, well established that longer hours do not necessarily mean increased output. There is a limit to the time during which a man can do even routine work effectively. If men were to be regarded only as machines for turning out work of a certain class, very long hours would be bad business. Where the work involves special skill and thought the evil results of long hours, even measured simply by the gross amount done, are still more serious. Everyone who has had to do with young students and still more with parents disappointed by their sons' failures must again and again have found that the cause of failure was too many hours devoted to reading. The students acquired the habit of sitting over their books worrying their minds, but really absorbing nothing. A senior wrangler has been known to find five or six hours a day of real work at mathematics as much as he could stand. Of course, work involving little hard physical exertion and hardly any mental effort can go on much longer, but the very monotony which in some ways makes it easy, has a deadening effect. A factory operative minding a "mule" being asked: "Is it not very hard work always watching and piecing threads?" answered, "No, but it is very dree work." But the evil effects of too long hours are not confined to the fact that unrest or disputes arise from the state of feeling produced nor to the diminution of production due to fatigue. Recurrent strains continued over a long period indeed deteriorate even things which are inanimate. The "fatigue of metals" has been the subject of careful investigations. It is time that fatigue of human beings, even looked at as machines, were more fully considered.<sup>[5]</sup>

The great and often permanent physical injury caused by too prolonged work is specially serious for women. Many women are such willing workers that they go on overtaking their strength. Among girls and women students the fatigue from overstrain in preparing for examinations, from which boys and men may rapidly recover, often results in permanent physical and even mental degeneration. Many who have watched the effects of such continuous study would advocate a complete sabbatical year in which systematic study should be suspended entirely for girls at some period between fourteen and eighteen.

It is impossible to have a healthy nation if the majority, or any very large part of it, work for excessive hours even in the factories where the best methods are employed to make the conditions as healthy as possible.

Medical men of the highest authority regard the influence of too prolonged hours of work as one which urgently demands attention. Enlightened and experienced men of business like Lord Leverhulme have expressed very strong views on the subject. Man, however, cannot be looked on as a mere machine for production, nor is even health the only question for him as a human being. He must have time for other pursuits, for recreation, for a fuller life. As civilisation and education advance this need becomes stronger. The duller the work the greater the need for those who have any natural mental activity to find resources of interest outside. The pleasure derived from literature and science should be open to all. No one who knows working people can deny that the demand for it exists. A fitter on weekly wages used to show in a poor cottage one of the best collections of British butterflies and moths, made entirely by himself. Many of them had been captured late at night on Chat Moss. A hair-dresser has told how to watch the habits of birds was the delight of his Sunday bicycle rides; his assistant called attention to some little known poet whose works had a special appeal for him; another said it was the study in his rare holidays at the seaside and in local museums of some form of animal life—the name of it, now forgotten, would convey no meaning to most University graduates—that made his interest in life. You may find a large audience of workmen interested in a lecture on Shelley, and some of them as well acquainted with his poems as the lecturer. Such cases as these may perhaps be exceptional, but given opportunity and sympathetic help and advice, they might be multiplied almost indefinitely. Other men want time for cultivation of allotments, which ought to be within the reach of thousands of urban workers who find in them a perennial source of interest. A growing number take a keen pleasure in seeing something of the beauties of their own country. Tramping through the Yorkshire dales and knowing them well, it was interesting to meet one who knew them better, and to find that he was a chimney-sweep, who saved up his earnings to spend his holidays regularly there.

The success of the Workers' Educational Association shows both the strength of the demand among the workmen, and sometimes, too, among working women, for intellectual life and their capacity to make use of any opportunities offered for regular study. It is to be hoped that its promoters will not forget that some branches of natural science and literature, opening

new realms of interest removed from the ordinary cares of life, are at least as important subjects for study as economic and social problems, and that one of the most important of such problems is how to give those who must earn their daily bread by work that is often dull and wearisome, the opportunity of sharing as far as possible in the intellectual life. We may well wish Mr. Mansbridge and his friends success as pioneers in the work of reconstruction, and renewed and extended activity when the pressure of War requirements is removed. It is to be hoped that the original ideals of the Association may never be forgotten.

The aim of the Association is neither technical, i.e., to make workmen better qualified for their special work, nor to attain a higher general education with a view to their obtaining employment of a different class and ceasing to be manual workers. It is to enable them, while continuing to earn their living by manual work, to participate in the fuller life given by intellectual activity. There are some subjects which can be pursued and studied *thoroughly* with pleasure and profit without any long or exact preliminary training. With some wise guidance in reading and some stimulating criticism to help him, the workman can really obtain all that is important from the study of the literature of his own language—to learn to know and to enjoy the best that has been written. It is of no importance that he will probably not become a "literary expert," able to trace the influence of this or that obscure writer of one age or country on the literature of another. It is to be hoped that he will not learn the kind of literary jargon affected by so many modern critics, or attempt in his essays to imitate those who think that obscurity indicates profundity. There are some sciences, too, especially certain branches of natural science, which can be pursued by men whose time is mainly taken up by manual work.

The idea of erecting an educational ladder by which all will proceed from the elementary to the secondary school and thence to the University, is a false one. Any such ladder must continue to be narrow at the top. It is impossible in any economic conditions that we are likely to see in our time that the majority of our people will be able to devote their whole lives to study until the age at which a University course can be finished. Indeed, for all classes there is a modern tendency to prolong the school period unduly, to keep boys under the discipline and following the methods of the secondary school until nineteen years of age, so that they finish a University

course, which is also becoming more prolonged, after twenty-three, and then at last take up their vocational training. Neither parents nor the nation can afford to make such a course the normal one. It is no doubt of the greatest importance to secure a career for special talent so that poverty shall not prevent a really able boy or girl following such a course of study as would enable his or her talents to have their full scope. The old Grammar Schools, especially in the North of England, afford many examples of poor boys who by means of their school and University scholarships were enabled to obtain the best training the country could give, and so attain the highest positions in Church and State. These must necessarily be the few. It is a cruelty by means of scholarships to tempt those who have neither the financial means nor exceptional talent to try for a career in which there will really be no opening for them. Even with the limited number of scholarships which local authorities have been able to offer, there have been many cases in which bitter complaints have been raised that young people had been induced to prepare themselves for some walk in life in which there was no demand for their services. Of course, the more knowledge is required in various industries the more scope there will be for those who have had a long training, but there is nothing more injurious to the State than to turn out a number of persons who have had a prolonged academic training, but who are not able to do something for which there is a demand, and for which the world is willing to pay. The results of such a course of action may be seen on a large scale in India. In one of the colleges of an Indian University in a large manufacturing town, fourteen young men—very agreeable and frank, outspoken fellows—met at random in one of the hostels, were asked what, on completing their college course, they intended to do; twelve answered to become "pleaders," and two hoped for something in the Government service. None proposed to follow manufacturing industry, agriculture, or commerce. The legal profession which they proposed to enter was so crowded that pleaders are said to have been competing with each other to obtain cases by a kind of Dutch auction regarding fees, and also to promote litigation wilfully in order to obtain a living. It is from a kind of "intellectual proletariat" in all countries, that dangerous political agitators are drawn who take up political life not to improve the conditions of their fellows, but to find some sort of a career for themselves, having no useful occupation to turn to.

FOOTNOTES:

[5]

Since the above lines were written I hear that a Committee of Inquiry has been appointed by the Government to report on the subject.

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## CHAPTER XII

### WAGES<sup>[6]</sup>

*How shall we better distribute the product of industry, and allay the unrest of which we hear so much? There's only one way—by improving our methods of production. To effect this the earnest and active co-operation between those engaged in industry must be employed.*

*... No longer must a man be supported by his union when he refuses to mind two lathes because the custom of the factory confines him to one. No longer must an employer assign as a reason for cutting prices that the man's wages are too high.... Each side must endeavour better to understand the outlook of the other.—SIR HUGH BELL.*

The second grievance mentioned in the *Quarterly* article already referred to is: "The wages are too low." To remedy this grievance, increased productivity, along with greater economy in working, is the first essential in order to obtain the funds out of which higher wages can be paid; the second, to get a fair allocation and distribution of the profit made. Increased benefit will also be a stimulus to better work.

For a crowded country like ours to maintain a leading position in industry is obviously a necessary condition either of welfare or progress. It is of first importance to secure work of high quality. A highly civilised and trained nation must hold its own by the superior quality of the articles produced as well as by being able to supply both its own needs and to compete in prices with others by the quantity of output. It may be possible, for example, to hold the market for fine spinning when other countries are well able to supply coarse yarns from their own factories. Hitherto this country has been

able to maintain a lead in industry largely through causes which are no longer operative. Thus, we had (1) a settled Government when Germany and Italy were divided into a number of small and inefficient and often very badly governed States, when France was exhausted and unsettled, and when America was only in its infancy; and (2) the advantage due to the fact that the great discoveries and inventions which advanced industry were mostly made in Britain, when industry was developing at the close of the eighteenth and beginning of the nineteenth century. Many of these inventions were made by manual workers who, by intuitive genius, saw what was needed to meet the requirements that arose in practice. There was not then that fund of accumulated scientific knowledge and experience in existence which anyone must have before he can make any advance or improvement to-day. There was an interesting print published some forty years ago giving portraits of the Englishmen who had made contributions to practical science and who might have been assembled together in one room in 1808. It included many who made their inventions as manual workers. Murdock, who invented a new lathe, and developed the use of coal gas, worked until over forty years old for a wage of a pound a week; Davy had been apprenticed to an apothecary; Bramah, who invented a new hydraulic press, once worked with a village carpenter; Bolton and Watt and Nasmyth, the inventor of the steam hammer, were practical engineers. Never in the world's history has there been such a galaxy of practical talent and inventive power as those whose portraits are shown in this picture. Now a larger amount of preliminary knowledge as to what has already been done and of the sciences is necessary, in most cases at least, before useful inventions can be made. The more widely this scientific knowledge can be made available throughout all classes in the country the greater is the possibility of maintaining our lead. It is also important to maintain, so far as technical education can give it, skill in carrying out methods already established and improving them, and also in making the worker more adaptable to new conditions and altered circumstances instead of being a mere machine able to do one class of work only, and adhering simply to the one rigid method which he may have learnt. But knowledge and training are not all that is wanted. It is essential that all classes connected with industry should realise that increased production in established and well-understood industries is essential, and that it can only be obtained, first, by willing and vigorous work on the part of the workman, aiming at producing as much as possible

in the hours during which labour can be efficiently carried on without detriment to health or depriving the labourer of the opportunities of enjoying a life outside his daily routine; and, secondly, by the increased use of the best machinery and labour-saving appliances and working such machinery to its fullest capacity. Instead of that, it has often been the policy to restrict the production of each man's labour, one reason being lest there should not be enough employment to go round, and also to view the introduction of machinery which might displace labour with hostility and suspicion. In order to give the leisure which the workman needs for a full and healthy life, and to provide a wage which will enable him to secure the comforts which he rightly desires, as well as to obtain adequate remuneration for those who manage businesses, and interest on their money for those whose capital is to be embarked in them, increased production is necessary; but it cannot be expected that workmen will realise this or desire the result unless they know certainly that they will obtain at once a benefit from it. It has too often been the case that where some new invention has been made, or new machinery introduced, or the conditions of trade have enabled an industry to be more profitable, the workman has not shared in the benefits obtained until he has pressed for an increase of wages, even to the extent of striking or threatening to strike. The faults and jealousies leading to restricted production are not all on one side. Cases have arisen when a manager has let out a piece of work to a group of workmen at a price which has resulted in a larger output in a given time at less cost, though the amount paid to each man has been higher owing to increased diligence, yet the employers raised objections, because the wages earned were "more than such men ought to have."

It is essential if the workers are to make it their aim to increase production and to use every effort with that object, that they should know that of a certainty, and at once, they will get a benefit from what is done. At present it is commonly the case that in order to obtain an adequate wage the worker works overtime, and presses to have overtime work, because the rate of pay for overtime is higher, and that during the normal hours of work he does less. Cases have actually been known in which the worst class of workmen play during the greater part of the week, and then have gone, during the War at all events, to work for the week-end, including Sunday, at a very high rate of wages at some other place. In the short time of working at abnormal

rates they have gained as high wages as the steady and efficient workman who keeps steadily at work through the normal hours. As long as such conditions exist we shall not have the shorter hours which are necessary for healthy and happy life, and we shall have the friction and irritation which arise from too long hours of work. A higher rate of wages during shorter hours of work, when the work is done with vigour and efficiency, and the certainty that the wage will be increased if results are favourable, are necessary conditions for industrial welfare and industrial peace. The wage system should be so designed as to make it clear that the wage is a share in the industry's earnings which is to advance as these earnings advance. A "regulated slide of wages rising with the prosperity of the industry as a whole" would help to secure this without friction. Methods of industrial remuneration giving an assurance of thus sharing the benefit of increased or more economical production are required. A valuable work on such methods, which are already very various, was published by the late Mr. David Schloss many years ago. New methods will, no doubt, be found. The problem, however, is one for judicial treatment by those who have devoted special study to it.

The methods already tried include the more general adoption of piece-wage, progressive wage arranged in various ways giving a fixed rate for the hours worked plus an additional sum proportionate to the excess of output over a fixed standard, collective piece-work, contract work, co-operative work, sub-contract, profit-sharing in various forms including special bonus, product-sharing, and industrial co-operation.

Each method should be considered on its merits, in the light of the experience already gained, and having regard to its applicability to each class of industry. The aim and the principles which must guide endeavours to achieve it are clearly stated by Mr. Schloss:

"But while a reduction of hours of labour, say to eight hours in the day, may readily be admitted to be on grounds both economic or social highly desirable, yet it is no less desirable that during those eight hours every working man in the country shall use his best available tools and machinery, and, performing as much labour as he can perform without exerting himself to an extent prejudicial to his health or inconsistent with his reasonable comfort, produce an output as large as possible. In the interest of the people

as a whole it is expedient that the remuneration of the labour of the industrial classes shall be increased, and since this remuneration is paid out of the national income, it is a matter of great importance not only that the working classes shall succeed in obtaining for themselves a far ampler share in the national income than they at present receive, but also that the productive powers of the working classes shall be exercised in a manner calculated to secure that this income shall be of the largest possible dimensions."

#### FOOTNOTES:

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This chapter is intended to refer to what may be regarded as normal conditions. In some cases the recent rise in wages has been excessive. The present position is chaotic, and the ill-advised manner in which the 12-1/2 per cent. advance was made has added to labour troubles and will cause great difficulty in the future.

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## ***D.—RELIGIOUS PEACE***

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# CHAPTER XIII

## CO-OPERATION

*Children of men! the Unseen Power, whose eye  
For ever doth accompany mankind,  
Hath looked on no religion scornfully  
That man did ever find.*

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This is not the place to discuss the merits or demerits of any theological views or of any system of Church government, but the question of the influence of religion on the life of the State and the way in which and conditions under which it can be rightly exercised cannot be overlooked. There is no doubt whatever that religious influence might be a most potent and useful factor in Reconstruction, using the word in the broadest sense. There are some branches of work in which no other known influence can effect what is required. Leaving aside for the moment the fact that there are needs of humanity which religion alone can satisfy, and looking only to social improvement, the power of religion has been proved again and again, especially in dealing with the cases that seem most difficult and almost hopeless. In India, for example, there are certain debased tribes which are habitually criminal, and have, in fact, by tradition devoted themselves to the commission of crime. The only agency which has been able to effect a reclamation and improvement of these tribes is the Salvation Army, which, by general consent, even of those who have no sympathy with its particular religious views, has achieved wonderful results. There is no doubt, too, that

some of the worst parts of certain seaports in our own country have been vastly improved by the same agency. This has been done by a definite appeal made on religious grounds, and those who have made it have been inspired by religious motives. It required, however, a body which had peculiar methods of its own to do it. The basis of the action, also, of such organisations as the Church Army and the Young Men's and Young Women's Christian Associations is definitely religious, and the vigorous and successful way in which their work has been carried on by such associations is due mainly to the influence of religion. It would be well for our present purpose to treat the question from a position, whether real or assumed, of absolute detachment from any particular religious belief, and from any special religious community. Looked at even from such a detached position, it appears that the first condition required to enable religious influence to be effectively exercised is to secure religious peace. It is impossible to deny that there has been a kind of jealousy and hostility between those who hold different opinions about theological and ecclesiastical questions which injures the work of all. Anyone, for example, who was in the habit of meeting educated Indians at the time of the Kikuyu controversy could not have helped noticing the harm done to the cause of the Christian religion by that controversy. There were Indians, whose attitude to Christianity before might almost have been called wistful admiration, seeing the brighter hope and fuller life it opened to all classes, and the universal brotherhood of men which it proclaimed, who then spoke in an altered tone, and their feeling seemed to be tinged with a half-concealed and almost contemptuous pity. How much beneficial action might be taken by religious bodies acting in co-operation! There is a deep truth in a remark once made by the late Bishop of Manchester, Dr. Moorhouse, when speaking of possible co-operation on a certain matter between people belonging to different religious communities: "It would be so easy did we only recognise how large is the area covered by things on which we agree, how important they are, compared with those on which we differ." Some have felt so keenly the injury done by religious differences that schemes have been put forward for corporate union of a number of different Churches. Such union may or may not be possible, but, even if it is, is it best to bring about such a union by any compromise under which one side gives up part of what it regards as useful and important in exchange for a similar concession on the other? May not a kind of

confederation between different bodies for certain purposes, each maintaining its separate existence, be better than formal incorporation? May there not be a unity of spirit and bond of peace between those whose views differ, without either party giving up the iota to which he may attach importance? Forms devoutly prized and helpful to one man may be repellent and a hindrance to others.

There is much to be learnt from a saying quoted by Sir Edwin Pears in writing of certain Mahomedan sects: "The paths leading to God are as numerous as the breaths of His creatures; hence they consider religious toleration as a duty." Toleration does not mean simply abstinence from the thumbscrew and the rack or even the repeal of the Conventicle or the Five Mile Act, but appreciation of the religious opinions and practices of others, and due respect for them. Without formal union there may not only be peace and goodwill between bodies which keep up their separate organisations, they might also act together heartily and effectively both in philanthropic work and in combating certain evils for which the influence of religion is the most effective cure. It is a good sign of the times that a joint volume has already been published on Religion and Reconstruction, containing essays by a number of those whose views no doubt differ widely, but who find no difficulty in uniting in a common undertaking. The book contains essays by Bishop Welldon, Dr. Orchard, Monsignor Pooch, and others representing different communions, and they appear to have had no difficulty at all in a joint enterprise of this kind.

Is there any sufficient reason why the leaders of religious thought belonging to other denominations should not be invited sometimes to speak in the pulpits of the National Church? They would not use the occasion for attacking Episcopacy. Conversely it might be a wholesome thing if a Bishop or other well-known Episcopalian clergyman occasionally spoke to the great congregations in such familiar London meeting-places as the Newington Tabernacle or the City Temple. They might be trusted not to choose Apostolic Succession as their subject. Joint religious services have already been held, and the practice might be extended. The Bishop of London has been seen in Hyde Park on the platform with representative men from the Wesleyans, Independents (it is pleasanter to use the old name rather than "Congregationalist," which may be correct, but is hideous), and Presbyterians, with a band from the Salvation Army in attendance. Such

things do good, and are the best reply to the orators by the Reformers' Tree, whose most effective weapon is to sneer—not unnaturally—at the enmity amongst Christians. A "church" parade for the Volunteers has in a village been held in the Baptist chapel, and many who had never entered a Nonconformist place of worship before, felt how real "unity of spirit" did exist.

Another fruitful opportunity for joint work is in the realm of study and of theological education. This object would be promoted by the establishment in our Universities of theological faculties where a part—it may be a large part but not the whole—of the training of those who intend to enter the ministry or for other reasons to devote themselves to theological study may be carried on. Such a faculty has been instituted with marked success in Manchester. No test is imposed except tests of knowledge, but the faculty has been said to be the most harmonious in the University. Whatever body he belongs to, whatever Church he wishes to serve, the student could not fail to gain profit from studying the language of the New Testament under a scholar like the late Professor Moulton, and would never find anything that—to use the words of the founder of the University—"could be reasonably offensive to the conscience of any student." Already the effect of such a faculty in advancing theological study and still more in uniting members of different communions in the pursuit of truth has been most marked.

There is one point, however, in considering the influence of religion on Reconstruction which must be borne in mind. Untold harm has been done in the past by the intrusion of the lawgiver or the judge into the domain of religion, and, on the other hand, by the intrusion of the minister of religion into the domain of the legislator or the magistrate. It is essential that in dealing with any question of legislation or political action the clergy and ministers of all denominations, if they take part at all, should speak as citizens, and not professionally. They, in virtue of their office, ought not to be, and they have the highest authority for not claiming to be, judges or lawgivers. They have not, and ought not to claim, any authority to decide on the lawfulness of paying tribute to Caesar; any such claim must be strenuously resisted. The use of religious sanctions as weapons of political warfare is not wholly obsolete. We hear of it from across St. George's Channel—it should be condemned like poison gas on the battlefield. And, lastly, it must never be forgotten that there are certain things with regard to

which attempted suppression by law is certain to result in evil and disaster. With regard to these things the influence of religion, on the other hand, may be all-effective if it is kept absolutely distinct from any question of legislation or of legal penalties. The spheres of religion and the criminal law must never be confused. Shakespeare, "the mirror of human nature" for all time, once blended bitter irony with infinite pathos. "Measure for Measure" has its warning for every age. It would be well to study the ugliest as well as the most beautiful parts of that drama, and see what it really means, and what is its lesson.

Exercised within its proper sphere the influence of religion may still be as potent a force now as in the past. It may inspire the right frame of mind in dealing with every question, may encourage hope, sustain faith, and diffuse charity.

Reiterated until wearisome we hear the question asked, "What is wrong with the Church?" sometimes from outside with a tone almost of contempt, with little, or no care, for remedy if anything be wrong; sometimes from within with a note of anxiety, uncertain whether it is safe to confess openly the fact that anything can so be wrong. To the question coming from within the Church, a voice might answer from the outer galilee, "Is not what is wrong with the Church—like what is wrong with most of us—thinking, perhaps talking, too much of itself, considering what figure it makes in the world, rather than in self-forgetful devotion giving itself to the work set before it, to delivering some message in which it intensely believes as necessary for mankind?" It has been likened to a bride; is not the bride too self-conscious, thinking whether her garb is not fine enough or too fine, her possessions too small or too large, her influence too weak or opposition to it too strong? How much discussion is devoted to the question, what phrases must be repeated, what forms adopted, to pass the janitor who guards her doors! As has been truly said, the really useful reform for all of us would be that each should do his appointed work at least ten per cent. better than he has done it before. The work to be done should be the special work assigned to each and for which each is best fitted. We long for peace, but in settling the constitution of a League of Nations it will be the jurist not the churchman who will help us. In aiming at political or industrial peace the practical good sense of the statesman, the employer, and the workman will best point out what is wanted; the Church, as such, is better out of the way

in framing legislation. But suppose even that we establish securely international and political, industrial and social peace, is that peace all we need? Shall we not still in youth be restless, anxious about the future of our own lives and the lives of those nearest to us, unsettled by ambitions for what we may not attain, disappointed at the little progress we make; restless all through life, disturbed by thoughts of what we desire but cannot have; restless, most of all, in age, knowing that attainment is no longer possible, and, if we have attained anything, feeling how little it is worth? Who will take for his proper sphere to show the way to a peace which may pass the understanding of those who, in disappointment and loss and vain endeavour, which will go on even if the dreams of national and social progress and improvement are realised, and alike in failure or success, will need that peace more and more as long as the life of man lasts? Sometimes we see among those round us calm faces the living "index of a mind" at peace, which make us feel that there are those working in our midst in whom that peace exists. Let her tell the way to that and the answer would be, "There is nothing wrong with the Church; she is fulfilling her mission; ever, as of old, will glad welcome greet the footsteps of him that bringeth good tidings, that publisheth peace." [\[7\]](#)

#### FOOTNOTES:

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The word "Church" is used in the sense which each reader chooses to attach to it. Definition in such matters leads to dissension.

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# **Part III**

## **RETRENCHMENT**

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## CHAPTER XIV

### STATE EXPENDITURE AND INCOME

*Political economy, as a branch of the science of a statesman or legislator, proposes two distinct objects, first, to provide plentiful revenue or subsistence for the people or, more properly, to enable them to provide such a revenue or subsistence for themselves, and, secondly, to supply the slate or commonwealth with a revenue sufficient for the public services.—ADAM SMITH.*

Taking first the second of the two objects mentioned by Adam Smith, it will be convenient under the heading of "Retrenchment" to treat not only the question of economy in the expenditure of the State, but also the other side of the account, and consider what general lines of action should be adopted to make revenue balance expenditure, in the first place by reducing expenditure, and, in the second, by increasing revenue, in view of the fact that the absolutely necessary expenditure will be enormously enhanced to meet the interest on the National Debt. Assuming that the War were to end in the spring of 1919, the debt will probably amount to about seven thousand millions after allowing for loans due from the Allies and Dominions so far as they are likely to be then recoverable. Taking interest at 5 per cent. with a sinking fund of only half per cent., it is estimated that the permanent annual charge in respect of the Debt will then be about 380 millions. No doubt part of the Debt bears interest at a lower rate than 5 per cent., but a portion has been borrowed at a higher. This is on the assumption that the War will end within this financial year. Even if the War does end within the financial year, much of the expenditure occasioned by it must go on during the period of demobilisation, and during part of that period the Debt will probably go on growing, as it can hardly be expected that sufficient revenue can be raised by taxation to meet this continued

expenditure directly due to the War. There will also be for many years to come a very heavy expenditure on pensions, and, whatever other savings may be effected, the duty of providing pensions for injured and disabled sailors and soldiers is paramount, and the provision must be made generously.

It seems highly probable, therefore, that the annual Debt service will ultimately amount to nearly 400 millions, and may be much more if the War goes on over 1919. It is a gigantic burden to bear. Mr. Bonar Law has stated in the House of Commons that a loan of one thousand millions represents the labour of ten million men for a whole year, so we may take it that the annual charge for the National Debt will require the whole labour of four million men to meet it, and that this charge will be continuous for many years. The normal expenditure after the War, apart from Debt service, has been reckoned to be 270 millions. It will certainly be more unless rigid economy is practised and all the new schemes which are being proposed involving expenditure of money are carefully scrutinised to see whether the expenditure is such as the country ought to undertake in view of its financial obligations. As the Debt service will be practically constant and irreducible unless revenue largely exceeds the total annual expenditure, which is very improbable, it is clear that a strong effort must be made to reduce this expenditure and also, so far as possible, to increase the State revenue. Unless this is done there will be a deficit even after the War, and the Debt will have to be increased to meet it. There is no question of greater urgency, and it must be resolutely faced. We shall probably find a disposition, both in the Government and in Parliament, to shirk it. The influence of the extension of the electorate will, in all likelihood, be against rather than in favour of economy. There is a common assumption that people can get the State to pay for things instead of paying for them themselves; that there is no need to practise personal economy or to save because the State will provide. Wage-earners who began by practising some self-denial in order to save have said, "What is the use of troubling? The man who saves is really no better off than the man who spends all his earnings, as the State will provide what is required to meet the needs of the latter."

What, then, can be done to reduce expenditure? It is impossible to do more than indicate in outline the machinery by which this expenditure is or might

be controlled. During the War, for various reasons, the regular and ordinary checks on extravagance and waste have almost ceased to operate. The situation seems to have been getting worse until the appointment of a Special Committee of the House of Commons on National Expenditure in July, 1917. The Committee consisted of men with business knowledge, and its reports have furnished valuable suggestions. On such a subject anybody who has not direct access to documents and definite personal knowledge of the work and expenditure of various departments, and also some personal experience in State finance, may well hesitate to express an opinion, and will prefer to quote the views of those who have fuller information and better means of judging. There has been much waste; what has gone on has even been described as a "wild orgy of extravagance." The phrase has been used not only by irresponsible critics, but by business men whose words carry weight. Let us call two witnesses out of many available.

Mr. H. Samuel, in speaking of the work of the Select Committee, as late as June 19, 1918, said, in the House of Commons, "that the Committee had formed the opinion that in some cases the staffs of Government departments had been swollen beyond all estimation; that they were frequently ill-organised; that there was much waste of labour and consequently of money in their establishments; that the Treasury had not risen to the occasion during the War, and the Committee had regretfully come to the conclusion that the War Office had been adopting a deliberately obstructive attitude." Mr. Runciman on the same occasion stated that "lax expenditure and loose control over distribution of public money went far beyond the immediate departments concerned. It went down into every factory, and the general effect was a scale of national extravagance from which we should recover after the War only with the greatest difficulty."

We shall not recover at all except by immediate, determined and, above all, methodical action. Small economies, as Mr. Gladstone long ago pointed out, are not to be despised. It is no doubt right to put up notices in Government offices not to put coal on the fire after three o'clock, but these savings will not go far when half a million can be thrown away on the bogs and rocks round Loch Doon with no useful result of any kind, and yet nobody seems to be made responsible for this waste, nor can anyone say why it was allowed. We hear again and again of improvident contracts and extravagant purchases, and also of absurd cost incurred in supervising

minute details. Why cannot clear general authority to act on the spot in certain matters be given to some responsible person, instead of instituting a system of checks which often cause great delay as well as expense? A water pipe at a camp wants some slight repair, costing less than half a sovereign. No one there has authority to give an order, a well-paid official must be sent a day's journey to inspect, and incurs expenses far exceeding the cost of the work to be done. Why is good agricultural land taken for a site when there is plenty of land near which is waste or of little value? Why does a well-known firm which has a telephone and a post-bag think it worth while to pay £15,000 for an introduction to a Government Department? Why have we heard again and again of prices paid for goods greatly in excess of the price for which they could be obtained from well-established firms in the trade? Such instances could be multiplied, but enough has come to light publicly, and been proved, to show how essential it is to have some authority to deal with such matters and stop the leakage which becomes a torrent. Apparently there has been an improvement lately in many respects, but we are yet a long way from perfection.

There will be an immense dead weight of influence against economy owing to the fact that so many persons are interested in keeping up and increasing expenditure. As was said in the debate above referred to, "It looks as if London were becoming a huge bureaucratic town where everyone will be working in some Government department or other." One might say everyone of all ages, remembering a remark made by someone entering a building near Whitehall, and seeing the crowd of girls and boys in the corridor, "I thought I was coming to a Government office, but it seems to be a crèche."

For efficiency as well as for economy a thorough revision of the executive departments of the Government is necessary. There is no doubt that the present system has grown up at haphazard. It would be difficult for anyone to form a clear idea of the duties assigned to or powers conferred on the various departments, to say who in each department has authority to do certain acts, or is responsible for seeing that they are done properly.

To get the best account of the executive departments in England as they existed before the War we must go to America. Professor A.L. Lowell's book may be taken as the standard work on that subject. The chapters on the

Executive Departments, the Treasury, and the Civil Service give a clear and interesting account of the administrative arrangements of the British Government. He shows how new departments have grown up from time to time to meet some new want as it arose, but their powers are often ill defined. Various Boards were created, but in some cases it became an established practice that the Board should not meet, or a Committee of Council was set up and the work carried on under the supposed direction of "my Lords." It was a mere fiction. There has been no clear and consistent scheme for distributing the work of Government between the various departments on any intelligible principles.

All are spending money, some of them enormous sums. Staffs are growing inordinately, much of the work is duplicated, much consists in communications with other departments which would be unnecessary if the work of each were better defined.

It should be clear in each department who has authority to decide any particular question, to incur expenditure, to enter into binding agreements. The executive government of the country is in a chaotic state, relieved to some extent by the good sense and good feeling of the members of the great army of officials who carry it on. No one can deny that the Civil Service is not only pure, but, taken as a whole, its members individually are both able and industrious. It is better organisation that is required. Some of the new Ministries ought to be scrapped directly the War is over, and the business of others continued only so far as necessary for winding up. But these new departments will die hard.

Since the War new departments have grown up like mushrooms, sometimes without any clear statement of their functions or powers being made, and there has not been time to settle them at leisure by a course of practice. The result is overlapping, friction which would be intolerable but for the good-natured forbearance which English people have for a state of confusion, waste of time and money in sending minutes, and in correspondence between different departments, and often delays which have had most unfortunate results. Does anyone know exactly what are the respective functions and powers of the Ministry of Reconstruction, the Ministry of Labour, the Board of Trade, the Ministry of Pensions, the Ministry of National Service, the Board of Works, the Ministry of Food Control, the

Board of Agriculture and Fisheries, the War Trade Department, the Home Office, the Local Government Board, the Committee on Food Production, the Restriction of Enemy Supply Committee, the Priorities Committees, the Ministry of Munitions, etc., etc. The list might easily be extended.

A thorough revision of the executive departments is necessary if government is to be both efficient and economical. There is plenty of good material in the Civil Service, and it will always be easy to obtain more. It is the system or want of system that is wrong.

The next question is to provide or restore a more effective general control over expenditure and impose checks on the growing expenditure which has been so marked in recent years, even before the War.

The ordinary machinery for dealing with and controlling expenditure is or should be fourfold.

(1) The spending departments make definite estimates or are supposed to do so. Since the War, this has not been the rule. Of course, there are many cases in which it would have been absolutely impossible to let the items of proposed expenditure be published or discussed in the House of Commons; but, as soon as War requirements permit it, proper estimates should again be prepared and pressure put upon the departments to reduce them. At present the pressure is all the other way; the heads of the departments apparently like to have a large establishment as well as to extend their jurisdiction. It is not merely to give their department more importance and a claim therefore to higher salaries; sometimes it is the natural tendency of the vigorous man to enlarge the scope of his influence. *Boni judicis*, says the old maxim, *ampliare jurisdictionem*. ("It is characteristic of the good judge to extend his jurisdiction.") It would be a good thing if instead of estimates being laid directly before a Committee of the whole House of Commons, where some small item is often the subject of long and acrimonious debate and millions are passed without comment or consideration in a few minutes, the estimates of each department were fully considered as a whole by some small competent Committee of the House, uninfluenced by party feeling, and representatives of departments could be asked questions on their estimates.

To compare small things with great, a committee of this kind has been found of the highest value in institutions where there are various departments requiring large expenditure. It is usually then felt by each person who sends in an estimate that it is to the credit of his department not to make claims for expenditure which cannot be justified. When the scale and character of the expenditure have been scrutinised and the estimate has been passed, it is much better to leave a very free hand as to the exact mode of expenditure. Outside control then becomes irritating, and is itself a cause of extravagance; it means more accounts, more correspondence, more consideration of papers.

(2) The Treasury is supposed to have the function of control, but a change appears to have taken place, and it has now to a great extent lost its control, and has even itself become a spending body. Professor A.L. Lowell, in the work above referred to, after speaking of the Treasury as the department which exhibits in the highest degree the merits of the British Government, points out that even ten years ago, "with the waning desire for economy and the growth of other interests, the Treasury has to some extent lost its predominant position; although it will no doubt maintain its control over the details of expenditure, one cannot feel certain that its head will regain the powerful influence upon general or financial policy exerted thirty years ago." A very guarded statement, as was becoming in an author writing in another country at a time when the tendencies to which he alludes were only beginning to show themselves. Things have advanced during the last ten years in the direction Professor Lowell indicated as probable, and it is high time that this advance should be stopped.

We might venture to ask, indeed, the following questions: (i) Has not the Treasury during the last ten years lost a large portion of its control, and since the War almost its whole control over expenditure on a large scale? (ii) Is the Treasury not more concerned with paltry details than in imposing any real check on the extravagance of spending departments? (iii) Has not the policy sometimes been actually to encourage expenditure, and has not there been one case at least, even of introducing vexatious taxation where the amount collected is far less than the cost of collection? (iv) What has the Treasury done to prevent or control "the orgy of extravagance" since the War began? The department of State which has to do with revenue, with getting as much as possible and spending only what is necessary, which has

the duty of "making both ends meet," ought to resume its functions and regain its influence so that the Government may be conducted "on strict business principles," to use Professor Lowell's phrase, "as it was throughout a great part of the nineteenth century."

(3) The Cabinet should exercise more controlling power, and recognise its collective responsibility for keeping down expenditure. As Professor Lowell points out, the position of the Chancellor of the Exchequer in the Cabinet was one of almost commanding influence. In Mr. Gladstone's time his powerful personality, regularly exercised in favour of national economy, did certainly have a great effect in preventing extravagance, and some other Chancellors of the Exchequer no doubt used an influence in that direction, but can it be safely asserted that there is in the Cabinet as a whole sufficient attention given to retrenchment?

(4) Lastly, the House of Commons is supposed to control expenditure. That control has generally been used, and quite rightly, as a means of calling attention to grievances, and as giving an opportunity for criticism of the executive; but the House of Commons should also put pressure on the executive to curtail expenditure, not so much by discussing small details which would be far better dealt with by such a small Estimates Examination Committee as suggested, but by using its influence generally against an increase of expenditure unless a clear case for it is made out. During the War, Parliamentary control, at least until the appointment of the Committee above mentioned, seems almost to have gone. The House of Commons does not now exercise its influence as it ought, to check extravagance, and probably the more widely the electorate is extended, as already said, the less will the House of Commons care to exercise rigid control in favour of economy. It is always an easy way of getting popularity to be what is called "generous" when dealing with other people's money. Everyone who looks after the public interest by trying to prevent expenditure, whether national or local, which is not imperatively called for, is styled mean and narrow-minded, and his task is a thankless one. Everyone who wants money spent will be able to make out a plausible case, either that the amount is so small or the object is so important that what he asks must be granted, and he will have some eager constituents to back him up. The best chance for economy is to have a body of men whose decisions the House will respect and not overrule, except for really good cause, who have both the knowledge and

the strength of character to go through the estimates and call attention to the cases in which substantial reductions could be effected, or proposals for increased expenditure refused. It will not be an agreeable task, and now probably less popular than ever. The masses admire lavish expenditure whether by public bodies or by the private person who spends his money "like a gentleman," and it is to be feared there will not be much help from the women electors, as women, although they may practise economy occasionally themselves, usually regard it as a most objectionable virtue in a man. How often in families do we find the mother and sisters will admire the self-indulgent idle youth who spends money freely even if he borrows from them, rather than the steady, plodding son who, by rigid economy and personal self-denial, helps to provide them with the means of livelihood!

Turning to the other side of the account, what can be done to increase the revenue of the State? It has been estimated that for the year 1919-20 it will amount to £900,000,000, but of this £300,000,000 is excess profits duty, which can hardly continue—in its present form at least—beyond the period during which additional expenditure above the permanent normal requirements is needed, in order to carry out demobilisation. Putting the permanent charge to meet interest on debt and the cost of the public services at £670,000,000, there may be a deficit even if the present rate of taxation is maintained, and the normal expenditure remains at its existing level. There will be no surplus for the reduction of debt, or to meet new demands. Some new sources of revenue must, if possible, be found, and the old ones require readjustment.

Income tax, if levied on the present system, has touched the extreme limit. A rate of taxation willingly borne to meet the cost of war while danger threatened will be felt more and more burdensome as time goes on. To meet a higher income tax there will be pressure to increase salaries paid by the Government and all public authorities. An official salary fixed at £5,000 a year when income tax was one shilling and sixpence, may be thought insufficient when it is nearly ten shillings including super-tax. Persons have incurred liabilities for rent and other fixed payments which they are not able to reduce. All along the line there will be claims for higher payments for services rendered or goods supplied. On the other hand, industrial undertakings will have to pay more for the capital they must borrow to carry on and develop their work, and 6 per cent. instead of 4 per cent. will

have to be paid for debenture capital now raised by the best industrial companies. For those who have money to lend, the burden of tax may thus be practically met by an increased income, but for those whose money is locked up in permanent investments there will be no indirect relief in higher rates of interest. Income tax, house duty, and rates will absorb so much that the margin for voluntary expenditure will be small even out of incomes that are nominally high.

The death duties, especially where a deceased person leaves a large family, already cause much hardship. A general increase in the existing rates of estate duty cannot be made without discouraging thrift. It is a hardship if it is made impossible for parents to make reasonable provision for children some of whom may from various causes be unable to earn for themselves. On the contrary, where there are no children and no widow to be provided for, death duties might be much increased without causing hardship. A very much higher legacy duty might be charged in the case of large sums passing on death to persons other than the widow, direct descendants, or other near relatives of a deceased person. On small legacies the present rates should suffice, but there is no moral claim for distant relatives to be allowed to take large sums. Would there be any real hardship in imposing a heavy duty of, say, 25 per cent. on gifts over, say, £1,000 to collateral relations not dependent on the testator or to strangers? Or there might be a graded scale according to the remoteness of the relationship. In case of intestacy it would be often a real advantage to take the *whole property* for the State, if there were no relations within the third or fourth degree, i.e., uncles and aunts, and nephews and nieces being in the third degree, first cousins in the fourth. Economists for the last hundred years—Bentham, Mill, and others—have advocated such a change. Nearly every judge or officer of the Courts who has to do with the administration of estates would support a change which would do away with much wasteful litigation and disappoint no reasonable expectations. No source of revenue should be neglected if it can truly be said that by imposing the additional taxation proposed there will be (i) no dislocation of trade or hampering of industry or commerce; (ii) no discouragement of thrift; (iii) no real hardship; (iv) no great expense incurred in collection in proportion to the amount raised. It is only sheer stupidity that refuses to adopt a means of raising even a small amount when

the method proposed for doing so would have positively beneficial results in other ways.

The land increment duty should be a warning as regards cost of collection. That cost relatively to the amount produced has been enormous. But actual cost of collection as returned, represents only a small part of the expenditure really caused by the tax. The time taken up in making returns and filling up forms and obtaining the necessary advice in doing so is a burden on those who own even the smallest landed property and causes real hardship and injury. It discourages people from acquiring small properties.

The only other source of additional revenue in immediate contemplation appears to be the luxury tax. If this can be levied so as to fall on articles which are really luxuries, i.e., things not required for full and healthy life, the effect of such a tax should be wholly beneficial. If, notwithstanding the tax, people go on buying such luxuries the State will gain. If, on the other hand, the effect of the tax is to check expenditure on luxuries it will be a gain to the country, because its productive power and its purchasing power will be used to obtain articles which are really valuable and do promote national welfare. The idea that those who spend money on luxuries are helping trade, and so benefiting others, ought to have been exploded long ago. If the industry which has been devoted to producing articles which are really useless were diverted to producing things of utility, the aggregate of human happiness would be greatly increased. A difficulty in applying the tax is that the price of an article is little criterion as to whether it is a luxury or not.

There are two other sources from which additional revenue might be obtained.

First, to impose again an export duty on coal. Such a duty would help rather than hinder British industry. That industry is dependent absolutely on the supply of coal. British Coal Measures are an asset which enables the country to keep industries going, but it is a wasting asset. Deeper and better mining may have upset calculations made by Professor Jevons many years ago when he warned the country of the disastrous consequences of using up our coal supplies, but sooner or later the pinch will come. An export duty ought to be imposed on coal directly the present war restrictions can be

removed. Our stores of coal cannot be indefinitely increased by increased industry. If the duty operated to reduce export of coal British manufacturers would gain, and be able to produce commodities at less cost. If the demand from abroad were so strong that export did not diminish, the country would gain to the whole extent of the duty paid by foreign purchasers. The ordinary arguments in favour of free trade do not support objection to such an export duty as this. There will be ample demand for all the coal that can be produced. Even if there were not, it would be well not to use it up so quickly. There are some kinds of coal, of which the amount available is very limited, yet until the War broke out quantities of such coal were freely sent to other countries, some of it to those who are now at war with us, and so used to help our enemies, who got the precious mineral cheap because we refused to allow the imposition of an export duty. Probably the duty when it was tried was not imposed in the best way, being charged at a fixed rate per ton instead of on an *ad valorem* scale, but this fault could easily be corrected. Special exceptions in favour of Colonies or Allies, or for the supply of certain places, might be made by arrangement in consideration of some equivalent favour, or to meet some particular need.

The other suggestion involves more difficulties, and is of a more far-reaching character. Would it not be possible to replace to some extent the excess profits duty, which cannot be permanent, by a duty on "excess dividends," that is, on the amounts paid out of the profits of a business for the use of capital above a certain percentage? The excess profits duty, in spite of all its anomalies and the difficulties of assessment, has saved the financial situation during the War; a tax on excess dividends might "save the situation" afterwards. When a business is successful, paying, as many businesses have recently done, dividends of 30 to 50 per cent., and sometimes even more, the return made to those who have invested money in them is clearly excessive. From such profitable businesses those who have the responsible management no doubt may generally get better remuneration, possibly the workmen may get a small bonus or share in such profits, but those who by a mere stroke of good luck have embarked their money in these businesses, shareholders who very likely know nothing whatever about the conduct of them, benefit enormously. Such a tax would not discourage thrift or prevent a person from getting a reasonable return on his savings. Take the case, say, of two professional men. Both, by hard work

and using up their lives in the effort, manage to make a fair income and bring up their families. One of them, to make provision for the future, invests £2,000 in safe securities with fixed rate of interest, and £2,000 in some company whose business is of a more or less speculative character, but by good fortune becomes able to pay a dividend of 30 per cent. The other invests a like sum in firm securities, and £2,000 in another company which turns out a failure. Neither of them has anything to do with the conduct of the business of the company in which he invests, but one has got a tip from some friend or other who thinks he knows of a good thing. The work of the two men is exactly the same; it is a mere fluke that one gets a huge return and the other puts his money into a company which, without any fault on his part, brings in nothing.

The tax suggested would be levied on the excessive profits distributed in respect of the capital embarked in businesses of every kind. It was pointed out long ago that a tax thus levied on all alike would be paid wholly by the capitalist and "would neither affect the prices of the commodities produced nor the distribution of capital." The duty might be graded according to the percentage to be received on the capital of each investor. It might be reasonable for the first 10 per cent. to pay only the ordinary rate of income tax. Money in fixed permanent securities may now produce 5 per cent. or 6 per cent., and the additional 4 per cent. free from the excess duty would be a fair return for risk and an inducement to enterprise. The rate of excess duty might be increased according to the excess of profits above 10 per cent. until when the profits reached, say, 30 per cent. the duty on the amount in excess of 20 per cent. might be very high. The effect of the tax would not be to reduce the spending power of the community; it would only be that the State instead of the individual would to the extent of the duty obtain the power of purchasing what it required, and discharging its liabilities with the money it took from excessive profits. The amount of the tax, the method of grading and mode of levying it, would require careful consideration; but if the difficulties and inequalities introduced by the War excess profits duty could be met, there seems no reason why the difficulties of the tax thus proposed should not be also solved; at all events, an attempt should be made to see how it would work out.

Where money is rapidly acquired by some stroke of fortune and is not the result of steady industry the result is constantly unwise and often harmful

expenditure either by those who have acquired it or their immediate successors. There is an old Lancashire saying as to fortunes rapidly made, that there are only three generations from clogs to clogs: "What is unreasonably gathered is also unreasonably spent by the persons into whose hands it finally falls." It may be spent "in a stupefying luxury twice harmful both in being indulged in by the rich and witnessed by the poor."

There is a great danger to the State at the present time from large amounts of money rapidly acquired being accumulated in few hands. There are many signs that we are likely to enter a period which may be described as the reign of the "nouveaux riches." The great financiers, the persons with enormous interests in huge combines, will exercise more and more an undue and dangerous influence on fiscal policy and political life. The old nobility and the class of country gentlemen will have less power. Their resources will be seriously crippled, and their families perhaps extinguished through losses in the War. The middle class, which, in the last century, exercised the strongest influence on political life, and from which most of our men of letters and science have sprung, may now be crushed. On the more highly educated part of the middle classes whose means are limited the burden of the War has fallen most heavily. Taxation seems deliberately arranged to place as heavy a burden as possible on those of the middle classes who have children to bring up and to educate in the way they think best, and who endeavour to provide means by which their families can occupy the same position in life which their parents have done. The rate of income tax paid by a bachelor and a spinster is increased if they marry, although their necessary expenses will be enormously increased if they have a family to support. A bachelor with £500 a year may be living in ease and luxury; if he marries and has four or five children to educate he may find difficulty in meeting the needs of his family with £1,500. In the same way the death duties are absurdly small on the estate of the bachelor who leaves no family, but are a real hardship on the family of the man who dies leaving a number of children.

The tendency is towards a rapid accumulation of huge fortunes. In considering the incidence of taxation Bacon's advice might well be remembered: "Above all things, good policy is to be used that the treasure and moneys in a State be not gathered into few hands, for otherwise the

State may have great stock and yet starve, for money is like muck, not good except it be spread."

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## CHAPTER XV

### NATIONAL EXPENDITURE

*But where is the money to come from? Yes, that is to be asked. Let us as quite the first business in this our national crisis look not only into our affairs but into our accounts and obtain some notion of how we annually spend our money, and what we are getting for it. Not the public revenue only; of that some account is rendered already. But let us do the best we can to set down the items of the national private expenditure and know what we spend altogether and how.—JOHN RUSKIN.*

The revenue and expenditure of the State have already been discussed; over that the State has a direct control. Over the expenditure of the nation the control of the State is only indirect. Though the two questions should be kept distinct, one affects the other. Both are vitally important and now more serious than ever in view of the huge debt and other conditions which will exist after the War. How are we to provide and pay for the commodities we need for the support of the nation? Before the War the balance required to pay for the excess of imports over exports was apparently provided, first, by interest on investments in other countries—Englishmen having provided capital all over the world—and, second, by freights. A large amount of these foreign investments has been sold. How far shall we still be a creditor country after the War? As regards freights, British shipping has suffered very heavy losses. One of the first duties both during and after the War must be to repair the losses and increase British tonnage available for trade. To this end no effort should be spared, and the State should do all that is possible to foster shipbuilding, or even undertake the work itself, if possible without interfering, as unfortunately it has already done, with the output of private shipbuilding yards.

As regards national as well as State expenditure, it will be essential, first, to increase the income, and second, to guard against every form of waste. To increase the income the only way is to increase production both from the land and the factory (*a*) of things needed for use at home, (*b*) of things which can be sold abroad, i.e., exported in exchange for the supplies that must be imported. In both cases it is necessary to consider not merely the increase in the amount produced or the volume of trade, but how far are the articles produced for home use or imported from abroad of real value in promoting the healthy life of the nation, how far are they things that are really needed. Books on political economy have sometimes stated that only "value in exchange is to be considered"; "value in use" is still more important. We want to ascertain the things that will really do us good, and devote our energies to the production and importation of such things. The teachings of the physiologist as to food values, the study of hygiene in its widest sense, must form part of political economy in the true sense as well as the laws of supply and demand or the theory of wages or of foreign exchange or currency.

Some of the methods for obtaining increased production from industry by better conditions of labour leading to more effective efforts have been discussed in another chapter; the question of obtaining increased output from the land so as to produce a larger amount of food for home consumption will be mentioned in a subsequent chapter dealing with reconstruction or reform relating to agriculture. Improved forestry may be regarded as a branch of the same subject.

With regard to expenditure, it will be incumbent on all classes to act rigorously so as to prevent waste, but it is not to be expected that the national expenditure as a whole can be greatly reduced as compared with the pre-War standard. The expenditure of certain classes of people might, of course, be greatly reduced without any injury to healthy life or development or in any way impairing real efficiency or even affecting their happiness; but as regards the majority this is not so. The conditions of life of the working classes, especially as regards such matters as housing, require to be improved. It is a wiser expenditure, not a reduction in expenditure, that must be the aim for them. The expenditure on drink is, of course, unnecessarily large, and in many cases absolutely detrimental, and a reduction in this respect is required for national well-being. The manner of

dealing with the question must be the subject of separate consideration; but it is a remarkable fact that, though no evil has been more prominent, though for more than half a century no subject has provoked more discussion, though none has been the object of more organised attempts at reform, in none has so little of value been done by State action or legislation, at least until the establishment of the Board of Control during the War.

A second source of saving would be to prevent the waste of food which goes on in all classes. It is not only that food is actually thrown away, but that too little attempt is made to choose and to use the healthiest and most nutritious forms of food, and there is an indisposition to try any unaccustomed form of food. If one were asked what would be the most useful practical reform at the present time, probably the best answer would be, "Promote more general use of oatmeal porridge." Attention to the best choice and use of food would do much to make a healthy nation, and at the same time effect a saving in expenditure. "Grow more oats and eat them" would be a wise precept for the nation to follow. With that, an effort must be made to secure a fuller supply of milk at lower prices. This is vital for the welfare of the coming generation. The cost of transport and of distribution of milk might be reduced by better organisation.

Allied to this subject is the enormous waste caused by ignorance of cookery. A really excellent dinner in France or in Switzerland is often made from materials which would be despised in this country. Anyone who is in the habit of roaming about the country on foot or on a bicycle will know that in many parts it is impossible to get a decent meal; the provision made is frequently nasty without being cheap. In rural districts in France delicious meals can be obtained at a lower price. Domestic economy should be taught in every school, and to people of every rank, but the teaching should be practical. I remember wishing to see in an excellent school something of the teaching of domestic economy, and found the girls and boys, instead of learning to cook, were learning what was called science, writing down in copy-books "the operative principle of tea is theme." This kind of pseudo-science, teaching people to write a jargon which conveys no meaning to their minds, is one of the things which is called education, but is really mental demoralisation. The process may be continued, perhaps, in classes on "practical citizenship" for adolescents, who will be taught to say "the operative principle for the amelioration of states is democratisation." Great

improvements in the teaching of domestic economy have been made during the last few years in many places, but there is no doubt that an enormous amount of waste is due to ignorance and neglect in the choice and preparation of food.

Again, every possible effort should be made to encourage habits of thrift, and to provide satisfactory modes of investment for small savings. As regards this question, War conditions have positively had a beneficial effect. The need for all classes to contribute to War Loans has been recognised; facilities to enable the small investor to contribute have been carefully arranged, and the War Savings Committees have done admirable work in bringing the question home to the people. The result has been on the whole most satisfactory. Not only has a very substantial sum been provided towards meeting the cost of the War, but habits of thrift have been fostered, and the sense of having a stake in the country, a direct financial interest in the national funds, makes for order and will form an element of stability in national life which will be invaluable.

Notwithstanding the "ingrained prejudice against thrift" among the majority of all classes, which is a marked characteristic of the English nation as compared, for example, with the French, the number of holders of national securities has increased enormously. Before the outbreak of the War it appears that only 345,100 persons held securities of the British Government. It was estimated that at the end of the year 1917 Government securities had been distributed among no fewer than 16 million persons, including 10 million holdings of War Savings Certificates.<sup>[8]</sup> It was further estimated that "during 1917 over 51 millions were contributed to the Post Office issues of War securities, which, together with the net value of nearly 64 millions from War Savings Certificates and an increase of deposits over withdrawals in the Post Office Savings Bank of no less than £5,683,000, provides in all a sum of £120,723,000 odd, the total contributions of small investors during the year." Since the beginning of the War the contributions of small investors already amount in all to a grand total of about £253,000,000.

Care in expenditure and a habit of saving will, in view of the financial position after the War, be alike necessary; the nation cannot afford waste in any form; after the War, as well as during the War, the national welfare

demands that any balance beyond what is required for healthy life should be saved and made available to meet the national needs, including not only the fulfilment of the national obligations, which is an imperative condition for the maintenance of credit and prosperity, but also the provision of the means for future betterment, material or moral. We do not wish to reduce useful expenditure, but to get money for what we need by increasing production and by more careful spending. It will be a time for all classes to refrain from expenditure on luxuries or ostentation, or in fulfilling those imagined claims which convention imposes. In different ways almost all classes are fettered by these conventional obligations. How much of the expenditure of a person with fairly good income is devoted to things which give him no additional pleasure and confer no real benefit on himself or others! Both rich and poor waste great quantities of food, sometimes because they are afraid of being thought mean if they did not do so. There is a strange power exercised over our acts and our liberty is curtailed by the opinions of our neighbours or members of the same class. Much might be accomplished if we could enlist these conventions on the side of economy. Why, for example, should it not be considered "worse form" to take on the plate good food that is not wanted and leave it, than to eat peas with a knife? How greatly did an alliance with Mrs. Grundy support morality in mid-Victorian days! If we could turn social observances from encouraging extravagance to promoting economy, it would go far towards eliminating national waste.

#### FOOTNOTES:

[8]

See *Economist*, July 13, 1918.

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# **Part IV**

## **REFORM**

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# CHAPTER XVI

## THE FIELD

*Above all things, order and distribution and singling out of parts is the life of despatch.*—FRANCIS BACON.

It has been usual to associate the term "reform" mainly with constitutional changes, and especially with the extension of the franchise. Fortunately, the present Parliament has dealt with that question in a manner which makes great further changes unnecessary, and will leave the new Parliament free to deal with others. Instead of taking up time with the discussion of alterations in the franchise and arrangements for elections, the legislative machinery should be ready for use. But it is not merely to legislation that we have to look. More and more will depend on the action of executive departments of Government. Their field of activity has been extended during the War, and new departments have been established. Some of the new activities should be continued after the War, others should be stopped as soon as possible. It will be necessary to discriminate carefully. The powers of local authorities may be increased, and those authorities may be urged to more energetic use of them. There will probably be strong demands for interference by the State and local authorities, and the advantage of the free action of private individuals is likely to be overlooked, although where it is possible for a reform to be carried out by private effort better results are usually obtained, and at less cost than by action of the State. We are suffering and shall probably continue to suffer from too much regulation. One of the first reforms will be to get rid of restrictions which the War has for a time rendered necessary, to restore liberty of action, and to stop the expenditure occasioned by State interference wherever such interference is no longer needed.

Using the term "reform" to include all improvements which can be made either by restoring former conditions or by introducing beneficial changes, it will be necessary to look into each question separately and see in what cases and to what extent action by the State is required to accomplish the end desired. The most convenient course will be to draw up a list of subjects which ought to be dealt with, and then see how far (i) legislation, and (ii) executive action by some department are called for in each case, and how far private action will be effective.

The following appear to be the most important and most urgent matters which require to be considered either during the War or immediately after peace is declared. All of them will involve some action on the part of the State, although in many cases that action will be to enable voluntary associations or private individuals to take up the work and to aid them in doing so.

The list, though by no means complete, looks formidable:—

1. Restore constitutional law and liberty.
2. Remove the fetters on trade, commerce and industry.
3. Demobilise the army and decide what naval and military forces will still have to be maintained, and what provision ought to be made in regard to military training in the future.
4. Reform the War Office.<sup>[9]</sup> Reconsider the constitution and procedure of courts martial, and provide for really judicial inquiry into grievances. Revive and use the Territorial system.
5. Complete the arrangements for adequate pensions and develop means for giving such technical training and providing such openings for work as will enable partially disabled men to earn comfortable subsistence in addition.
6. Provide permanent homes and sanatoria for those who are more seriously injured, and find suitable light employment for those who can undertake it.
7. Arrange the best places and provide proper training for discharged soldiers and sailors (and others) who may be willing to settle on the land.

8. Consider how to restore the discharged men to their former places or accustomed work, and how to meet the needs of the temporary workers who will be displaced.

9. Curtail the vast expenditure on the departments organised for War work, reducing the staffs and finding other work for those who must be discharged. Dispense altogether with some of the new Ministries. The question of employment for women after the War will be most urgent.

10. Organise and correlate the various departments so as to secure more efficiency, and so assign and arrange the work of each as to avoid circumlocution, friction and waste.

11. Reconstitute the Cabinet on clearer lines, and let competence for the work of each department, instead of recognition of party services, be the guide in appointing the Minister responsible for each.

12. Reform the procedure of the House of Commons to check verbosity and facilitate business.<sup>[\[10\]](#)</sup> Delegate certain powers and duties.

13. Find means for raising additional revenue and making the incidence of taxation fairer. In particular, revise the provisions as to income tax and death duties, so as to increase revenue without adding to the hardships and burdens due to the present conditions. Some definite steps with that object are quite practicable.

14. Examine what industries, if any, are to be specially fostered as "key industries," and whether this can be done without injury to other industries or adding to the heavy cost borne by the consumer.

15. Arrange plans for enabling labour to co-operate fully in settling the conditions under which industry is to be carried on, and make provision for preventing disputes, increasing production, allocating profits fairly, and for reducing hours of work without diminishing output.

16. Provide more and better housing, not only to secure the bare accommodation necessary for health and decency, but also to make attractive homes.

17. Increase the productivity of the land and promote agriculture, not only for financial reasons, but to maintain and induce the growth of a larger rural population. Stimulate education and research bearing on agriculture.

18. Develop industrial villages, and also land settlements and co-operative farming. Multiply allotments, both urban and rural, so far as economic conditions permit and there is a supply of people desirous and capable of working them.

19. Introduce methods enabling persons without ready capital to acquire their cottages or small holdings by paying instalments on reasonable terms. Why not an Ashbourne Act for England?

20. Control the liquor traffic, not with a view to injure the publican, but to promote temperance, remembering that the business of the licensed victualler should be to provide wholesome food as well as drink, not to act merely as manager of a licensed house for extending the trade, and enhancing the profits of a brewery or distillery.

21. Simplify the Land Laws and make transfer easier and less costly.

22. Amend the law relating to marriage, and also on some points affecting personal status and devolution of property on death.

23. Consolidate the Statute Law and amend and codify the Criminal Law. Carry out the amendment of the Patent Law.

24. Aid the development of Education without destroying the liberty of teacher or scholar or the variety of methods by too much control, rigid system, or over-elaborate organisation.

25. Combat disease, encourage research in preventive medicine, and extend the application of its results. In particular carry on the campaign against infectious and contagious diseases, and especially against venereal disease.

26. Make better provision for playing-fields and open spaces, preserve places of historic interest and natural beauty, and make them accessible for the enjoyment of those who really care for them.

27. Develop fisheries.

28. Undertake afforestation systematically.

29. Improve and cheapen internal transport, especially by reviving waterways.

A fairly long programme, but it might be added to. Some of it is essential, all of it useful; some of it wants carefully guarding; none of it is beyond the sphere of practical politics. We cannot afford to neglect any of the items. All the activities of the Government, of the Legislature, and of private effort will be needed. It is worth notice that there is not a single question in the whole list that need divide Parliament or the country on party lines.

This list deals only with strictly home matters. Concurrently it will be necessary to deal with international questions, such as the formation of the League for securing peace, the constitution and regulation of tribunals for settling disputes, the resuscitation of International Law and reconsideration of its rules. An attempt should be made towards assimilating, by arrangement, the laws of the mother country and the colonies and also of different nations, affecting commerce, and also as regards personal status—nationality, naturalisation, and the validity of marriages.

The whole subject of co-operation between different parts of the Empire in determining its policy and dealing with matters affecting the whole demands earnest and immediate attention. The totally different question of the devolution of powers to any parts of the United Kingdom has yet to be settled. The claims of national sentiment have to be recognised while the welfare and safety of the whole are secured. What are the units to be on which powers can be conferred, and what should be their extent? Who exactly are those whose national claims are being asserted, and how far are they at unity among themselves? All these questions must be treated as matters for constructive statesmanship, not as pawns in party contests. They must be dealt with as practical problems having regard to the special circumstances of each case, not as opportunities for embodying some general political theory. There is a commendable opportunism which knows how to take "occasion by the hand," to do the wisest thing under the conditions subsisting at the time, as well as a blameworthy one, which looks out how to use them for personal advantage. There will be need, too, for the "trimmer on principle"—the man who, when the boat is going over

on one side, deliberately and quickly transfers his weight to the other, or the steers-man who tacks when the wind is contrary in order to bring his ship to the port where his passengers desire to land. Such a man, as was said of Lord Halifax in the time of Charles II, "must not be confounded with the vulgar crowd of renegades, for though like them he passed from side to side, his transition was always in the *direction opposite to theirs*. The party to which he belonged was the party which at that moment he liked least, because it was the party of which he had the nearest view. He was, therefore, always severe upon his violent associates, and was always in friendly relation with his moderate opponents."

It is obviously impossible to discuss all these questions in a volume, still less to propound in detail the steps to be taken in dealing with them. Most of the more pressing ones will be touched upon and some suggestions made with regard to them; a few worked out rather more fully as examples. In some cases the remedies are obvious, and could be applied without difficulty, in others they require great special knowledge and careful thought, and their application will involve serious risks unless very great care and skill are used. To appear dogmatic in speaking of these subjects is inevitable if one would be definite; mistakes may be made, but "truth emerges from error more readily than from confusion."

#### FOOTNOTES:

[9]

The last report of the Select Committee on Expenditure shows some of the grounds why this is urgent, and that very strong resolution will be needed to effect reform. The Prime Minister's determined action in insisting on unity of command for the Allied forces has already saved the country from enormous losses and done more than any other action of the Government to bring victory nearer. Any layman of average intelligence could see that the step was necessary; where did the opposition come from? There are politicians who would use their country's troubles to secure a party triumph.

[10]

The abuse of the power of asking questions in Parliament has become a scandal. There are a few persistent persons whose desire to embarrass a Government they dislike, in carrying on the War, makes them indifferent to the injury they may do to the national cause. Some check is necessary. The right to question Ministers is one of the most important safeguards against improper action by the executive, but the House of Commons is discredited by the manner in which that right has often been exercised of late. A report of proceedings in question-time constantly brings to mind a scene in "Alice in Wonderland," and the retort made to the arch-interrogator, "Why do you waste time asking questions to which there is no answer?"

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## CHAPTER XVII

### RESTORATION OF LAW AND LIBERTY

*What is long suspended is in danger of being totally abrogated.*—EDMUND BURKE.

It is hardly too much to say that English Constitutional Law has been scrapped since the War. Immediately after the establishment of Peace the first duty will be to restore the old Constitutional Law which has been suspended to meet the new conditions due to the War, and to revive again the old safeguards for the liberty and rights of the subject against arbitrary action by the executive. The nation has rightly acquiesced in the exercise of powers by the executive during the War in a manner which nothing but the necessity of the time could justify. Powers to take a person's property at the will of some executive department without any definite principle or procedure even for assessing compensation ought at once to cease when there is no longer immediate urgency for using such powers to secure the safety of the country. Powers to deprive persons of their liberty on vague charges, or to try anyone except by ordinary course of law in the regular Courts, should be discontinued. The Reign of Law must be re-established to control the executive Government as well as the private citizen. Nothing is more infectious than a habit of substituting arbitrary will for law. Tyranny breeds anarchy, and anarchy tyranny in regular succession, and "the authority of one man over another not regulated by fixed law or justified by absolute necessity is tyranny." With the advent of Peace "*Dora* must disappear."

Even before the War there had been a tendency, on the one hand, to substitute administrative action for regular judicial procedure, and, on the other, to allow certain associations to act without regard to law, to injure individuals and infringe their rights without remedy. That tendency must be checked or liberty will be destroyed. Law and liberty as well as law and

order are correlative terms. A real control over expenditure must be re-established and made more effective than it was even before the necessities of war in our unprepared condition made the present hand-to-mouth procedure to some extent excusable. The happy-go-lucky way in which new Ministries and new departments with vague and ill-defined but enormous powers have been created must come to an end. We should have some definite and recognised method of authorising changes in the system of Government. To set aside the Cabinet which, although it had no legal position, had powers sanctioned and established by long constitutional custom, and to concentrate authority in a small body selected and increased or diminished from time to time at the will of a Prime Minister, was probably necessary for successful prosecution of the War, but nothing else could justify some of the irregularities that have been committed.

Doctrines have been put forward sometimes in the Courts during the War by counsel representing the Crown—i.e., in effect some Ministry—which would have seemed questionable even in the days of the Stuarts. The whole of the special War Legislation, both Statutes and Orders of all kinds, will require to be revised and, unless there is strong reason to the contrary in any special cases, repealed. The burden of proof should be on those who think any of this exceptional legislation should be retained. Of course, care must be taken, especially in matters affecting commerce and industry, to give due notice of alterations and to change gradually so as not to prejudice arrangements already made and contracts in course of fulfilment.

Special attention will have to be given to the early removal of those restraints on trade—prohibition of exports and imports—which have been frequently necessary, either to retain in the country what is wanted to satisfy home requirements or to prevent goods from finding their way to the enemy, or to ensure that the limited tonnage available is used to bring the commodities which are vital to meet the pressing needs either of the forces engaged in War or of the civilian population. These restraints, however, are not only most harassing to merchants and involve much additional labour when labour is scarce, but if continued would prevent this country from carrying on the valuable entrepôt trade for which its geographical position, its financial resources, and its command of shipping specially fit it. That trade at least depends on the maintenance of a policy of the open door both for coming in and going out. England is a good distributing centre—unless

by artificial restrictions we destroy our opportunities. Merchants and manufacturers have been very patient as a rule under the fetters it has been thought necessary to impose to meet War conditions; these fetters should be removed as soon as possible. Unless this is done they will be fatally handicapped when Hamburg and Bremen again come into competition with them as distributing centres for the countries now neutral, and even for those which have been in alliance with us.

There is sure to be a cry to protect certain industries; in some cases it may be necessary to do so for a time at least, but every such claim should be most jealously scrutinised. The interests of any powerful section of the community always find influential advocates. They can exercise strong pressure on any Government or on Members of Parliament. The general interests of the people who have no trade organisation to support them will be likely to be overlooked. The restoration of freedom is the first reform that should attend the restoration of Peace.

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## CHAPTER XVIII

### RESTORATION OF INDUSTRY

*Neither one person nor any number of persons is warranted in saying to another human being of ripe years that he shall not do with his life for his own benefit what he chooses to do with it.*—JOHN STUART MILL.

The next task will be the restoration of industry to its ordinary channels, and the return of the men who have been in the army to civilian occupations. Mr. Bonar Law has said that nothing has ever happened more wonderful than the way in which the British Empire has changed its Peace organisation into a War organisation. To reverse the process and change the War organisation into a Peace organisation may be still more difficult. In creating the War organisation enormous sums of money have been expended, the wheels have been lavishly greased to enable the new machinery to work. That process cannot continue, as with the reorganisation after Peace there must also be retrenchment. In the War Cabinet's Report for 1917 it is said that "1917 may be described as the year in which State control was extended until it covered not only national activities directly affecting the military effort but every section of industry, production, transport, and manufacture." To get rid of some of that control as regards industry as well as commerce, must be one of the first steps in reconstruction. State interference not only involves the expense of an enormous army of officials, inspectors, clerks, accountants, and others, but also causes friction, while the regulations which it has been found necessary to impose have been one of the causes of labour unrest. Any State regulations of labour are rightly watched with the greatest jealousy. Pledges have been given that certain pre-War conditions as regards labour shall be re-established as soon as possible.

During the War the exceptional conditions demanded exceptional measures. To prevent competition for labour in order to fulfil the enormously profitable contracts when the demand for munitions was so imperative, special legislation was found absolutely necessary before the end of the first year of the War. Employers had to be prohibited from engaging workmen who had been on munitions work within six weeks before taking up new employment, unless they had a certificate that the workmen had left with the former employer's consent, or a tribunal held that consent had been unreasonably withheld. Many persons who were in a position to form a sound opinion consider that this provision "saved the situation." At all events, it prevented the workmen, under the influence of the inducements offered by competing employers, from running from place to place to find where the highest wage could be obtained, and dislocating the work in which they had been engaged.

The provision for manufacture of munitions had to be made very hurriedly, as it took the Government and the heads of the army a long time to realise the fact that in a war against the organised forces of Germany greater quantities of munitions of all sorts, some of an entirely new kind, would be required by the army and navy. Our infantry were exposed to the bombardment of the enemy while the British artillery was unable to reply. Nothing is more wonderful and more creditable to the Minister who first took charge of the matter, to the heads of producing firms, and also to the workmen and the leaders of their Trade unions all over the country, than the way in which new factories were built, old factories enlarged, and output increased to the utmost. In the course of a few months rough vacant spaces all over the country were covered with admirably planned and well organised works. In a short time employers generally learned to understand and to observe the restrictions imposed, which were for the common good, though often irritating to individuals.

There was, however, some dissatisfaction among many of the workmen, and after two years the provisions as to certificates were repealed, and the Ministry of Munitions obtained wide powers for giving directions as to remuneration, and also to prevent munition workers from being taken for other work. The Ministry also exercised powers for regulating what workmen of different classes should be allowed to go to various establishments. Such regulation was and is necessary, but it will be a relief

to British industry when this State control and the restrictions and regulations it involves can be done away with. The process of reversion to normal conditions as regards industry will take time, especially in adapting establishments where the products of the munition works are articles which are not required in time of peace. Fortunately, there will be a great demand for labour after the War to resume work that has been postponed, as well as for new undertakings, especially for housing and for repairs and renewals in railways, roads, and buildings. Work that has been put on one side to allow undivided attention to be given to munitions will require the services of a great number of persons and help to prevent unemployment which might otherwise arise when the new army is disbanded.

Of the questions affecting employment after the War, the position of discharged soldiers and sailors naturally comes first. They may be divided into two classes, namely, those who are in any way disabled, and who are discharged during the War suffering from some kind of injury to limb or to health, and, secondly, those who will be discharged when the army is demobilised. For the first class, the honour of the nation demands that proper and liberal provision should be made by pensions, having regard to the nature and extent of the injury received. For the totally disabled there must be an adequate subsistence; for the partially disabled the object will be, in addition to the pension, to find suitable employment and to train those who wish to take up some new employment suited to the varied requirements of men who have been disabled in different ways, and also in which higher remuneration may be obtained by reason of a skill thus acquired, and the greater demand for work of the class. It has been estimated that, apart from the provision for officers, forty millions a year will be required for pensions for soldiers and sailors. It is an expenditure which the country would least think of grudging. The Ministry of Pensions, in co-operation with other Departments concerned, has already taken in hand the question of dealing with the disabled, not only as regards the regulation and payment of pensions, but also as to qualifying those who are partially disabled to take up suitable employment. The work thus begun will have to go on for a considerable period after the close of the War. So far as inquiries have at present been made, a large percentage of the partially disabled men will be able to go back to the employment in which they were engaged before the War; others will be able to find similar employment

without special training; many will be engaged in various simple light occupations.

In selecting men for positions as caretakers, office porters, and others of a similar kind, good feeling will naturally cause preference to be given to the men who have met with injury while fighting for their country. There will be a large number, however, who may wish to take up employment of a different description from that in which they were engaged before the War, and they will be glad of the opportunity of preparing themselves for it. For these men the Ministry, acting in co-operation with local authorities, and especially with local education committees, is arranging courses of technical training. During the period of training a payment, usually about twenty-seven shillings per week, is made to the men. The character of the training to be given and the provision to be made for it have been settled with advisory committees of persons engaged in and well acquainted with the requirements of the trade. This kind of co-operation and the practice of taking the advice of members of the trade from the very beginning, have been invaluable both in preventing mistakes and in creating goodwill towards the schemes which have been set on foot. The training, of course, differs according to the needs of different localities, but already suitable courses have been provided in different places, in boot-making, tailoring, furniture-repairing, basket-making, building, printing, aircraft-manufacturing, dental mechanics, and many other trades. Men who otherwise might have been condemned to useless lives with a bare subsistence will, through the measures thus taken, be able to earn a comfortable wage in some employment where their disablement does not seriously interfere with their work. What has been done in this matter should be as widely known as possible, and facilities for training should be extended to give preparation for other suitable trades.

Most of all, it is desirable that as many men as possible should be trained for agricultural and horticultural work, and should have the opportunity of healthy outdoor employment. To do such work efficiently, training for those who have not been brought up to it is, of course, necessary. This training may be given on farms acquired for the purpose either by some public authority or by individuals or by philanthropic associations. Work of the kind has been already started, and should be extended as fast as any demand for such training is found to exist. There is, unfortunately, reason to believe

that the number of discharged men able to take up work on the land and desirous of doing so will not be very large.

In connection with the permanent employment of these disabled men, schemes have been set on foot which hold out the most attractive prospects as affording healthier conditions, brighter and pleasanter homes, and as enabling useful production to go on with efficiency under conditions in which the life of the worker may be passed in surroundings which will give some satisfaction to the aesthetic sense. These schemes include the formation of (i) industrial villages in the neighbourhood of towns, of which the one at Lancaster, referred to in the next chapter (p. 145), may be taken as a type, and (ii) new villages established, or old villages extended in places which are easily accessible, and not too remote from facilities for the education of children and from the attractions of a town. In these villages organised cultivation will be carried on.

Co-operative farming is already being tried. A very interesting and hopeful experiment in working a farm on co-operative lines under the management of a skilled director has been made near Maidstone, where a farm has been acquired by private effort. It has received a name of good omen—the Vanguard Farm.

Another proposal which may lead to very valuable results is the establishment of nurseries for forest trees on land reclaimed from the sea, or in other places where the soil is light and can be acquired at moderate cost. These and similar schemes, though intended in the first instance specially for partially disabled men, should be permanent. When fairly started they are expected to be self-supporting.

It is obviously impossible to treat of all the questions in the long list given above, and also impossible to deal with any of them completely. All that can be done is to give a general idea of the kind of thing that is wanted; then to select a few subjects as furnishing rather fuller indications of possible lines of action; and then—just as examples—work out one or two in more detail.

Two subjects, namely, Housing and Agricultural Development, must be selected, because their vital importance demands attention from all who care about the welfare of the nation. Another subject, namely, Law Reform,

is selected because it is comparatively easy to say what ought to be done and to frame Acts embodying the required reforms.

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# CHAPTER XIX

## HOUSING

*Owing to house shortage in Sheffield, two wooden pigsties are being inhabited, one by a man and his wife and two children, and the other by a man and his wife. Both men are discharged soldiers.—DAILY PAPER.*

There will be no rest, and should be none, until every industrious man or woman who wishes to have a real home can have one, where everyone who has children can bring them up under conditions where decency can be maintained and healthy life be possible. It is a question of urgency in rural as well as in urban districts, in the most remote places equally with the great cities. In this matter it is no case of having to create or stimulate a desire for improvement. The demand has existed for years, but after the War will be more imperative than ever. Somehow or other it must be supplied more fully. Attempts have been made again and again to deal with the question. Its importance is recognised and special inquiries are now being made as to the best means to be adopted. It is stated that at the present time half a million additional houses for working people are required, and that 100,000 more should be provided annually to meet the normal increase of population and to replace houses which have to be demolished.

It will be necessary to consider, first, the provision to be made to meet the existing shortage of house accommodation both in urban and rural districts. At present a large portion of the population cannot find a home or even any kind of accommodation that affords reasonable comfort and decency. Since the War, in some places, such as Barrow, the conditions have been absolutely intolerable, and when those who are engaged in the army abroad return, the state of things in some districts may be worse. The President of the Local Government Board recently stated that 1,103 local authorities in England and Wales had reported that houses for the working classes were

required in their areas, and that the number of houses they needed probably exceeded 300,000. As above stated, the total requirement is much greater. The deficiency of accommodation has been one of the prime causes of labour unrest; the prices charged for any kind of shelter have been enormous; in some cases the same bed is occupied by one set of people immediately the prior occupants have gone to work, and "the bed is never even cold." The overcrowding of agricultural labourers and their families in miserable cottages, often out of repair and letting in the rain, has long been a scandal. Something has been done by benevolent landowners, who build cottages which they let on terms which bring little return for the money spent on them; but it is quite impossible to rely either on the working of the law of supply and demand or on private benevolence for meeting the difficulty. Strong and immediate action by the State is needed. Adequate powers should be given to local authorities, and pressure put upon them, if needed, to ensure that such powers are exercised. Such action is already being taken, and compulsory powers to acquire land will be given. In assessing compensation, the great urban landowner who has done nothing to contribute to the growth of the town or to promote its industries, ought not to receive the full value of the land, as enhanced by the necessary expansion of the town and thereby converted into building land, with an added amount for compulsory purchase. The manner in which the Lands Clauses Consolidation Act has been worked has added enormously to the burden of most great public undertakings. The compensation awarded has often been outrageous, and the expense incurred in assessing it one of the grossest scandals. It would be easy to give numerous instances from actual experience.

But there is not only need for more accommodation, but also for more attractive accommodation. There is no reason why the home of a human family should as a rule be, as it is in most of the towns in England at present, a hideous object. What has been done at Port Sunlight, at Bournville and other places shows that, by proper forethought and wise expenditure, small houses which it is a pleasure instead of a pain to look upon, can be provided. Another good example of what can be done may be seen in the change effected in the residences for the poorer classes made on the property of the Ecclesiastical Commissioners at Walworth in South London. What is now a pleasant exception ought to be a regular rule. Means

ought also to be taken to ensure that urban workers should have the opportunity of obtaining an allotment, if not adjoining, at least within reasonable distance of their homes, where they may grow fruit and vegetables and enjoy what is, after all, one of the greatest of the quiet pleasures of life, watching the growth of the plants which they have cultivated, and enjoying the products.

Round some towns, the estates of great landowners form a ring fence barring any growth of the town until, when trade is good and the town is expanding, extravagant prices can be obtained for the land of which they have the monopoly. High ground rents are fixed when trade is inflated, jerry-builders then start erecting houses, borrowing sometimes from building societies the whole amount required to enable them to build, and the houses are either sold or let at very high rents. The cottages are put up in the cheapest possible way consistent with the by-laws of the local authorities. When a cycle of bad trade occurs the property falls in value, it goes out of repair, tenants have no interest whatever in keeping it decent, it falls into a disgusting condition, mortgagees foreclose. In many cases the building societies that have lent money on the property to its full value, by arrangement between the secretary of the society and the speculative builder, have gone into liquidation, and the industrious people who have placed their money in the societies have lost their investments. And last, there have even been disputes between the owner of the ground rent who wishes to re-enter and the local authority as to the payment of charges for making streets in the district which has fallen into decay. This is no fancy picture. Those who have had legal practice over a period of years in some of our large towns will confirm it from their own experience.

There is no valid reason why, when land is converted from agricultural land into building land in the neighbourhood of a large town without any effort on the part of the landowner, a definite portion of such land should not be set aside for allotments or open spaces without payment, on the same grounds that a person who is erecting buildings on the land is obliged to comply with building regulations to secure proper sanitation, although it might be more profitable to build without any regard whatever for the health of the prospective tenants. Of course, it may not always be possible to set aside a portion of any given piece of land which is sold for building, but in that case the landowner should contribute an equivalent value out of

the proceeds of the land which he sells towards providing the allotments or open spaces required elsewhere in the neighbourhood. Such a provision would not be really burdensome, as no contribution either in land or money would be made except at the time when a largely increased revenue was to be derived from the land. It is not to be forgotten that the large urban landlord usually pays no rates towards meeting the requirements of the town, and receives the full amount of the rent fixed practically for all time at a period of inflation, although the rates may have enormously increased to meet the cost of the things which the municipality has to provide for the needs of a large and industrious but often very poor population.

An example has been given of what private enterprise may do in providing not merely accommodation for working people, but accommodation with really attractive surroundings, in the action taken by the family of the late Sir Thomas Storey, at Lancaster. They, under the advice of one of the highest authorities on town planning, Mr. T.H. Mawson, have given an estate adjoining the town, which will be laid out in an attractive manner, with avenues arranged to afford pleasing prospects. The primary object at present is to provide homes in the neighbourhood of a factory to be erected where disabled soldiers may engage in some kind of suitable manufacturing work, but the scheme is intended to be permanent. The houses will be near the factory; there will be playgrounds, drying-grounds, probably garden allotments, a hostel for single men, a reading-room, and some place of amusement. The development of industrial villages by private enterprise, encouraged in every possible way, is one of the most hopeful things to look forward to in the rebuilding of Britain. There can be no greater pleasure for anyone who has any vision of what the future of housing accommodation for the working classes may be than to read Mr. Mawson's charming volume on "Industrial Villages for Partially Disabled Soldiers and Sailors as an Imperial Obligation."

Another useful means of improving the conditions of housing for working people has been adopted in many places by carrying on the movement initiated by Octavia Hill. Property has been acquired and placed under the management of some voluntary association, usually of ladies, who will collect rents of reasonable amount and see that the property and its surroundings are kept in proper condition. Various associations of the kind have been established; the Manchester Housing Company, Limited, may be

taken as an example of such arrangements for managing urban cottage property. In the last report it is stated that the Company has owned or managed 114 houses, and the directors are assured that the sanitary conditions under which the tenants are housed have steadily conduced to the lowering of the death-rate. The personal interest taken in the tenants as well as in the houses by the managers has had a marked influence for good. The scheme is self-supporting, and in 1917 a dividend of 4-1/2 per cent, was paid.

Lastly, there should be some method, provided by public authority, through which workers or other persons of small means can become owners of their houses. Building societies came into existence with this object, and were put under statutory regulation by the Legislature in 1836, and subsequently by an Act of 1874. In many cases facilities given by building societies have been very useful in accomplishing the original objects of such societies; in other cases, for reasons above indicated, they have been a failure. By using the credit of the Government money to enable properties to be acquired can be obtained, or could have been obtained, at a lower rate. Instalments covering interest at that rate and providing a sinking fund towards the repayment of the principal would be of substantially less amount than the subscriptions to the building societies, and would not exceed the rents tenants have been accustomed to pay without any prospective advantage. Schemes to practise thrift and to induce people to take a greater interest in their homes and to enable them to acquire homes which are really attractive on reasonable terms are to be encouraged by every means which the Legislature or private individuals can adopt without causing pauperisation. The object can be achieved on fair business terms and without substantial risk of loss. Under the Ashbourne and the Wyndham Acts in Ireland there has been, at all events until recently, practically no failure to pay the required instalments.

A committee has been appointed to investigate the housing question, and its reports will no doubt contain valuable suggestions for dealing practically and at once with a matter so vitally important to the rebuilding of Britain.

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## CHAPTER XX

### AGRICULTURAL DEVELOPMENT

*In all kingdoms this first and original art [agriculture]—this foundation of all others—must be pursued and encouraged, or the rest will faint and be languid.—*  
ARTHUR YOUNG.

The most important practical reform of all is to make the land more productive, to put it to the most profitable use. By profitable use we do not mean using it so as to bring the owner the largest return in money per acre, aiming at the largest net profit by reducing expenditure as much as possible and growing whatever will fetch the highest price at least cost of production. The really useful object is to lay out and use all the land of the country in such a way as to produce the greatest aggregate of commodities which are of real intrinsic value for use or which can be exchanged for useful commodities coming from other nations; in particular to produce in our own country as much wholesome food as possible, and in so doing to support as large an agricultural population as possible in reasonable comfort and health. To grow in our own country a larger proportion of the food we consume is necessary, first, in order to meet our own needs from our own internal resources, and so reduce the amount which has to be paid to other countries for the commodities they supply; secondly, in case of war, to avoid the risk of starvation and reduce the strain on the Navy and on the Mercantile Marine due to the necessity of bringing the larger part of the essential food of the country overseas and also, what may be equally important, to avoid the distress which may be caused owing to the country being unable to provide the means of payment for the immense proportion of the food required which must be brought from overseas. It was long ago pointed out that the "trades by which the British people has believed it to be the highest of destinies to maintain itself cannot now long remain undisputed in its hands."

The next object is to increase the agricultural population. It has been found again and again in other countries as well as our own that a large and healthy agricultural population is essential to keep up the physique of a nation. The town folk tend to decay unless constantly replenished by influx from the country. One good effect of the War has been to direct attention to the vital importance of this subject, and careful inquiries have been made and useful steps taken which have had the effect of greatly increasing the home production of food.

The subject is treated clearly in a popular way in a book published in 1917 on Agriculture after the War by Sir A.D. Hall, now secretary of the Board of Agriculture, and in fuller detail in the report of a committee of which Lord Selborne was chairman. The report was published at the beginning of 1918; some of the proposals have been already acted upon, others will no doubt be the basis of future action by the Board of Agriculture and the Ministry of Reconstruction.

Before the War the imports of food less re-exports amounted to about 229 millions annually, or, to put the case in another way, about half of the total food consumed in the British Islands was brought overseas; but "if the most essential foodstuff, wheat, is considered, less than one-fifth of what we required was produced in the country." The position was one of terrible insecurity; but for the efficiency of the Navy the country would have been starved into complete submission in this War, and its prosperity and liberty would have been lost for ever. After the War the financial question of the continued ability of the nation to pay for the food we require is probably the most serious we have to face. The first remedy for the existing state of things is the increase of tillage. Assuming that the same pecuniary profit can be obtained by using any land for tillage as for pasture or other purposes, it is obvious that it is right to do everything possible to get that land devoted to tillage, first, as national insurance for the reasons above stated, and, second, to support a larger population under healthy conditions. One of the great causes of discontent, of vagrancy, and of distress in the sixteenth century was certainly the conversion of large tracts which had formerly been arable into pasture land, because the land laid down as pasture would produce a larger profit to the owner though it supported a much smaller population and required far less labour. A considerable portion of the rural population was thrown out of employment and the supply of food was

diminished. Again and again the decay of the agricultural population has been the ground of complaint. Goldsmith speaks of it beautifully and pathetically in the "Deserted Village," and the process went on, becoming year after year a greater national peril; but the Government and Parliament seemed to care little about it, so that even during the last forty years, according to the statement of Sir A.D. Hall, "the productivity of the land of Great Britain as a whole has declined." Although a far larger rent might be obtained from the wealthy who use a great part of Scotland for shooting than could be obtained from crofters, national welfare demands that it should be used for crofts and to raise the population which has supplied our armies with many of the finest soldiers and the whole Empire with many of its best colonists. Of course, there are large tracts of such a character that people cannot support themselves in tolerable comfort by tilling them, and it is better that land of that kind should be used for sheep if possible, and, in cases where even this is impossible, for deer forests or grouse moors, subject to reasonable public rights of access.

Among the measures which may be taken to increase the home production of food the following may be mentioned:—

1.—*Improved farming or intensification of agriculture under the existing system.* It is admitted that English, and perhaps still more Scottish, farming at its best is admirably conducted. Fortunately, very many of the large landowners are themselves keenly interested in agriculture and take a pride in promoting it. It is perhaps not generally known what a useful and valuable trade the country carries on in the export of pedigree stock. The prices obtained for the best bred British bulls, rams and boars are very high. An extension over all suitable parts of the country of the highest type of British farming would add to the wealth of the country immensely.

Connected with this subject is the promotion of agricultural education, and along with that of agricultural research. Very great advances have been made of recent years, and it would be an utterly false economy to starve productive work of this kind. It ought to be held a disgrace for a country landowner not to have some knowledge of agriculture and interest in it.

2.—*Industrialised farms*, i.e., the organisation of large farms to be managed as business enterprises under the control of a general manager. If farming

was thus carried on on a large scale machinery would be employed to its full advantage, and there would be economy in buying and selling wholesale and avoiding waste in preparing for and placing commodities on the market. The most highly trained, skilled and energetic management would be obtained for farms of this kind. It is to be noticed that, although some commodities can equally well be produced by small culture, it is generally only on a large scale that cereals can be profitably cultivated.

3.—*Co-operative farming*.—The subject is one of special interest, as co-operative farming in some form was historically the basis of the whole system of society in many countries. Experiments in co-operative farming may be tried with advantage. They may take various forms. It will, no doubt, be found that in certain branches of farming, such as dairy farming in some districts, co-operative action is almost necessary to success. The experience of Denmark has shown how much can be done to keep up a definite standard in butter, for example, by sending milk to some large, well-equipped and well-managed dairy. Such establishments have also far better opportunities for dealing with transport and distribution.

4.—*Colonies of Small Holdings*.—It is to be hoped that when the troops are demobilised, and the Small Holdings Acts are put into fuller operation, the number of small holdings will be increased. A population of independent yeomen is the best reservoir of the manhood of any country. No finer race has existed than the statesmen who cultivated the small farms among the hills of Cumberland and Westmorland.

5.—*There is a great deal of land, both on the seashore and in inland districts, which might be reclaimed*.—The cost of such work would be heavy, but the return in greater aggregate production and in providing means to support a larger country population would be most important. This question will be alluded to briefly in Chapter XXI.

6.—*Important industries*, such as basket-making and many others, might be carried on in rural districts along with their principal work by those engaged in agriculture or horticulture, just as Swiss peasants by wood carving, when agricultural operations are impossible, produce a number of articles for which there is a substantial demand in other countries.

7.—Last, and perhaps the most interesting and important step of all, is *to increase allotments*. The demand for allotments, both by the agricultural population in rural districts and by the urban population who are engaged in industrial or even in commercial pursuits in the forge towns, is very keen. The effect of the War and the more pressing need for home-grown food have stimulated the demand, and in trying to meet it, both the Board of Agriculture and private individuals and local authorities have done splendid work, which ought to be recognised as one of the most beneficial movements which have taken place within living memory. More than seventy years ago William Howitt called attention to the advantages derived from the system of urban allotments adopted near his own town of Nottingham, and attention has been subsequently drawn to the subject, but its importance was not fully realised until the outbreak of the War. An enormous advance has already been made, and if the right steps are taken for securing more permanence of tenure, and for obtaining land on fair terms near to the homes of the workers, a far greater and more lasting advance will be made. The number of allotments in England and Wales before the War was about 570,000. It is estimated that now there are upwards of 1,400,000. The urban allotments have increased enormously, an interest has been added to the lives of many workers; their supply of wholesome food of their own growing has been increased and the health of these urban workers promoted. At present the total area taken up by allotments is about 200,000 acres. If half of these are devoted, say, to growing potatoes and produce an average of seven tons per acre, the allotment holders in England and Wales would this year grow "700,000 tons of the most essential war-time crop practically on the spot where the crop is to be consumed." It appears that, taking the whole of England and Wales, there was an allotment holding for one household in twelve before the War. On May 1st, 1918, one household in five held an allotment. In the county boroughs before the War one household in thirty-two possessed an allotment, now the proportion is one household in nine, and the process is going on. It is the most encouraging development, whether looked at from the economic point of view or from the point of view of national health and happiness, that has taken place within living memory. The urban allotments are regularly worked by persons who are engaged in various forms of industry during the greater part of their time, and it is found that the allotments must be small, usually about fifteen to an acre. They ought to be

as near as possible to the homes of the people who work them. One of the reasons pointed out for the slow development of the system, even where it has been so successful as in Nottingham long before the War, was the distance of the allotments from the homes of the workers. In town planning there should be an attempt wherever possible to arrange for allotments close to the new small dwellings which are erected. It will be essential, however, to insist (i) on more permanent tenure for those who work their allotments properly and keep them in good condition; (ii) that the land required should be obtained on reasonable terms. Some landowners have themselves voluntarily taken the matter in hand, but in other cases compulsion will be necessary, and, as already stated, it will be right that where the land has been agricultural or vacant land, bringing in a small or even no return, the price or rent paid for it should be based on its agricultural value plus some reasonable addition, and not on the enormously enhanced value of the land as land which has become building land owing to the growth of the urban population in the neighbourhood. It will be desirable to arrange by co-operative or municipal action for the supply of seeds, plants and fertilisers, and also for the sale of any surplus produce not required by the holder for his own use.

The admirable work which is being done by the Board of Agriculture in encouraging allotments ought to be recognised and supported in every possible way.

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# CHAPTER XXI

## AFFORESTATION

*Thou, too, great father of the British floods, With joyful pride survey'st our lofty woods, Where towering oaks their growing honours rear And future navies on thy shores appear.*—ALEXANDER POPE.

We shall use the word afforestation here to denote the steps to be taken for promoting the growth of timber on a large scale. The original sense in which it is employed in any historical or legal work is quite different. There it means turning a track of land into a forest, and a forest did not mean land covered with timber trees, but a "certain territory of woody grounds and fruitful pastures, privileged for wild beasts and fowles of the forest to rest and abide in," in "the protection of the King for his princely delight and pleasure." It was subject to special jurisdiction, and special officers were appointed over it "to the end that it may the better be preserved and kept for a place of recreation and pastime meet for the royal dignity of a prince." The Forest Laws were oppressive, and for the purpose of afforestation many wrongs were committed. In the Crown forests, like Epping Forest and the New Forest, there were a number of commoners who had special rights of pasture and of taking certain things from the forest, such as firewood "that might do them good." It is by the assertion of such ancient rights of common that Epping Forest has been preserved as a place of recreation for the people of East London, and that so much of the New Forest remains open land. The latter is a source of perennial enjoyment to those who visit it, and maintains the successors of the old forest commoners in prosperity, due largely to the fact that they can graze ponies there and feed pigs on the acorns and beechmast. Whatever steps are taken to promote the growth of timber—and much has been done from time to time in the New Forest with that object—it is important that these valuable common rights should be

preserved, and that the value of open lands for the health and recreation of the people should not be overlooked.

The need for systematic action and for the Government to take steps to promote the growth of timber in the United Kingdom has been pointed out from time to time. The Board of Agriculture in 1911 drew up a memorandum pointing out that "British forestry was far behind that of other leading European States," and that "the growing of timber had never in this country been recognised as a business"; that "there had been no continuity of policy with regard to it." When the War broke out it appears that only eight per cent, of the total amount of timber required for home use was grown in the United Kingdom, ninety-two per cent, had to be brought from oversea. The War showed how perilous and how costly a thing it is to neglect home production of necessities.

When all our shipping was required for other purposes, it was a most serious matter to take up tonnage with a cargo so bulky as timber, occupying probably more ship space in proportion to its value than any other. More timber was required for huts and sheds, for railway sleepers, and a variety of other purposes. For the construction of aircraft special kinds of timber were needed. The demand for pit props in enormous quantities was urgent and continuous. At the same time the loss of shipping through submarine action became very serious. Fortunately our French Allies had been more provident in conserving and promoting their home supplies. Forestry in France had been carefully fostered by the Government. To take one example alone, the Landes, the district near the coast between Bordeaux and Bayonne, which had once been a region of dreary marsh, shifting sand, or scanty pasture, had been turned into splendid forest by wise forethought a century ago, and yielded great supplies of valuable timber. Science has pointed out many ways in which small and waste wood also can be used for the production of a number of substances necessary in peace and still more urgently required in war. The Landes country was noted for its production of rosin. Thousands of cups into which it exudes from cuts in the trees are to be seen when passing through the forests in that region.

Shortage of tonnage during the War made it necessary to use the home supply of wood of the United Kingdom to the fullest extent. A controller of

timber supplies was appointed, though, as usual, rather late in the day. Under his energetic management a very large part of the timber needed was obtained in this country. It was essential to get all that was possible, but the result is inevitable "that we shall have to face a period in which production will be much below even the low figure which it had reached before the War. Not only have mature crops been felled in all parts of the United Kingdom, but thousands of acres of young or immature woods have been felled for pit-wood and other purposes, or have been thinned to a degree which renders clearing and replanting absolutely essential."

One painful result has also been to deprive certain places of the beautiful trees which gave the countryside there its special charm. There is no plainer case for taking in hand the question of reconstruction at once, for framing a clear policy as to the steps to be used to repair the losses caused by war, and to ensure that in the future we shall not be so completely dependent on supplies from abroad through neglect of the possibilities of production at home. A Committee, under the chairmanship of Mr. F.D. Acland, was appointed in July, 1916, "to report upon the best means of conserving and developing the woodland and forestry resources of the United Kingdom, having regard to the experience gained during the War." The report of that Committee, dealing with the whole subject, was issued in 1918, and is a model of clear statement, and a mine of information made readily accessible. It gives a full survey of the present position, and sets forth a "forest policy recommended" which is definite and worked out in detail. The Committee find that "the timber position at home is bad, that prospects of supply from abroad are becoming doubtful, that ample supplies in time of emergency are a national necessity of the very first importance, that they can only be secured for certain if the timber be grown at home, and finally, that it is essential for the State to take a very much more active part in forestry than it has been content to take in the past." State action is becoming, perhaps, too much the fashion—free individual action is generally far better—but in this matter, which is one of "national insurance," State action is necessary, and reasons of a conclusive character are given—such as the long period required before the crop can be matured and any return obtained, and the uncertainty as to the future conditions and factors on which its ultimate profitableness will depend—showing why the matter should be taken in hand by the State. Such action would, of course,

not exclude individual or local action; indeed, private enterprise might also be helped by the State in many ways, including the giving of expert advice and making the results of the best scientific research available to all.

The work of afforestation would provide a healthy and suitable employment for discharged soldiers who preferred a country life to resuming their occupations in towns. The number taking up forest work, however, would probably be very small. There are also some branches of forest work which would be suitable for partially disabled soldiers. A very interesting scheme has been framed for establishing forest nurseries on reclaimed lands. One specially suitable site has been suggested on the shore of the River Kent at the head of Morecambe Bay, near Grange-over-Sands, where land was reclaimed after the making of the Furness Railway. The reclaimed land would be suitable for a forest nursery for raising young trees. The soil is light, so the work would be healthy and would not be too strenuous. The scheme has been worked out in detail, and an attractive description of it is given by Mr. Mawson. There are other places where reclaimed land or other land with light and suitable soil might be used for such nurseries. Partially disabled men might also be trained for the lighter kinds of forest work, such, for example, as the "marking of thinnings." It is of a technical character, but does not involve any serious physical strain.

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## CHAPTER XXII

### LAW REFORM

*I should not be an advocate for the repeal of any law because it happened to be in opposition to temporary prejudices, but I object to certain laws because they are inconsistent with the deliberate and permanent opinion of the public.*—SIR JAMES MACKINTOSH.

Compared with some of the other great questions involved in Reconstruction, mere reforms in the law may often seem almost trivial, but they have the advantage of being easier to handle than social and economic reforms. It is not so difficult to state exactly what is wanted, to embody the proposals in definite shape in a Bill, and to pass it if the Parliamentary machine is properly used. The incapacity of Parliament to deal with remedial legislation embodied in a Bill clearly drawn is often exaggerated. A reform merely in Parliamentary procedure would go far to remedy the existing congestion. A case could be quoted from very short Parliamentary experience where a private member, surprised at getting first place in the ballot, adopted a friend's suggestion to attempt a long-needed practical reform. The subject has too much technical difficulty to be explained here, but the Bill was drafted in an hour or two, passed the House of Commons early one afternoon without alteration, and the House of Lords with slight verbal changes. It became law in two or three weeks, and the Act is now used with beneficial results in the Courts almost daily. A real injustice was prevented and practical inconvenience removed, but the measure was nearly wrecked by some theorists who wished to extend the principle of the Bill logically, as they said, but in a manner which would have made it virtually unworkable, without benefit to a single human being. A small matter, but instructive.

Much may be learned from the procedure of Grand Committees. In some, at least, the average length of speeches is about three minutes, and they are confined to the definite point in hand. Members vote according to their view of the merits, knowing what they are voting about, and may defeat the Government without causing a political crisis. A case has occurred where the representative of the Government, who knew little of the subject in question, was left in a minority of one against a solid vote of the rest of the Committee. "Downstairs" the point might have been decided the other way by a score or two of members rushing in, as Sir George Trevelyan once described it, "between two mouthfuls of soup," asking, "Are we Ayes or Noes?" and shepherded into a division lobby accordingly.

Another step needed to aid Law Reform would be the appointment of a Minister of Justice, whose business it would be to consider proposed reforms, to see that they were put into proper shape and to assist in getting them passed. The same Minister might have the duty of attending to arrangements for the convenient and prompt administration of justice, but should have no judicial functions of any kind and should not interfere in any way with the action of the Courts. It is impossible to guard too jealously against substituting decisions of any department of Government for the law of the land as declared and administered by the regular Courts of Justice. Mr. Samuel Garrett, the President of the Law Society, dealt with the question very fully in January, 1918, in an address which has since been published. We may view the establishment of another new Ministry with something like horror, but a strong case is made out for it here. Definite functions are suggested for such a Ministry, and it is probable that it might in the long run save expense as well as promote efficiency. Mr. Garrett very forcibly says:

"Law Reform hangs fire for want of an officer of State armed with the power of conducting the necessary inquiries and investigations, and supplying the necessary driving force to initiate and prepare the requisite legislative measures and to pass them through Parliament, and with strength to overcome the *vis inertiae* of a preoccupied and ill-informed public and the active opposition of vested interests. Without such an officer the cause of reform is hopeless." It is now and in the immediate future that such reform is, and will be, most pressing. A reformed is naturally also a reforming Parliament as it was after 1832.

There are a large number of reforms in the law which ought to be taken in hand at once. The nature of the amendments needed is clear; all that is required is that they should be brought in proper form before Parliament, and that the Government should use its influence to get them passed. It would be difficult for the Lord Chancellor to see to this work efficiently and regularly along with his other duties, and it is certainly impossible for the Law Officers, whose duty it is to represent the Crown in the Courts and to advise the Government on questions of law, to undertake this duty. It could be done if a capable solicitor or barrister who had experience of cases relating to property, not just a successful advocate but a lawyer well acquainted with the practical difficulties which make amendment in the law desirable, were put in charge of the work.

It is a complete mistake to imagine that devolution to other bodies of the legislative powers of Parliament would do what is required in this respect. Such a delegation as regards many subjects would make confusion worse confounded. Questions relating to marriage and personal status, naturalisation, the law of companies, all branches of commercial law, the law of contracts, and the law relating to devolution of property, should be dealt with by one body, whose aim should be to assimilate the law on these subjects over as wide an area as possible. Endless trouble, litigation and uncertainty arise from an unnecessary variety of laws on such subjects as these. It would be well, indeed, with regard to such subjects, to endeavour to assimilate the law of the Colonies and of the Mother Country, and to enter into negotiations with other countries to facilitate their commercial intercourse by enacting similar laws on subjects of this kind as far as may be.

It is impossible, without taking up too much space and entering too much into technical detail, to do more than indicate in general terms some of the reforms in the law which demand early attention. The following may be given as examples:

- (1) The complete revision of the Statute Law, consolidating the law on each subject as far as possible, and in some cases amending it at the same time. The present state of English Statute Law is a disgrace to any civilised nation. There are subjects on which it is almost impossible to say what the law is, owing, amongst other causes, to the pernicious habit of legislation

by reference from one statute to another. Judges, the legal advisers to parties in litigation, clerks to local authorities, and others, ought to have in compendious form before them the whole Statute Law on a subject under discussion. Much good and very laborious work has been done under the direction of the Committee on Statute Law, but their duties should be extended and fuller facilities afforded for more complete and more rapid revision. These powers should include that of presenting at the same time to Parliament minor incidental amendments in the Statute Law which would remove doubts and inconsistency, and get rid of obsolete provisions. Either a Minister of Justice or one of the existing Ministers along with his other duties should be definitely responsible for seeing that the work is done without undue delay or expense. Probably a small Joint Committee of Lords and Commons might consider any cases where amendments were made, and, if they approved of the revised and consolidated Statutes, the Committee stage in both Houses might be dispensed with, and a single reading of the Bill of revision or even merely "to lay it on the table" would be quite sufficient to preserve the general authority of Parliament over legislation of this kind. A small executive department should be established under the direction of the Minister for dealing with all details and drafting the proposed Bills. There should be a permanent head of such a department with a small but efficient staff and proper accommodation for carrying on the work, which would be continuous, in order not only to put but to keep the Statute Law in proper form. The head of such a department should have a very free hand as regards the mode of carrying on the work, subject to certain general regulations laid down as to the scope of his duties, and the expense that might be incurred, and the department should be free from some at least of the ordinary conditions relating to the Civil Service. With the advantage of existing experience, such a department might be constituted on sound lines within a week or two, and its work would result in saving time and trouble to Courts, to local authorities, to private individuals, and to various government departments themselves. The cost of such a department would be covered over and over again by the improvements effected. It is a comparatively small matter, but the lines of action are so clear and so definite, and it would be so easy to make the necessary arrangements in a few days, that it might be taken as an example of the way to effect a reform promptly.

The huge mass of emergency legislation which has come into existence since the War would no doubt require separate consideration. That exceptional legislation will have to be revised and almost the whole of it repealed, in some cases at once and in others within a short time after the close of the War. This question is already engaging the attention of the Government. It is not an easy task, but the transition to freedom should be made as rapidly as possible. The action to be taken, however, in many cases, will very closely affect trade, and in these cases the question is not one primarily for lawyers; even the officials with most experience will require the advice and guidance of those who know each trade practically. The more anyone in the discharge of official duties learns of the course of trade in any commodity the more he will recognise the necessity for practical knowledge of the conditions of *that* trade, and the futility of attempting to deal with any question affecting it without hearing those who have been actually engaged in it. What an intelligent open-minded man might expect to happen is very often exactly what does not in fact happen. It is tempting to give concrete examples which have forced themselves into notice, but limitation of space forbids.

(2) The law on certain subjects should now be codified. This is a different question from the revision of the Statute Law and the introduction of something like order into that chaos. It is, however, probable that a general codification now would do harm, and there are strong grounds for contending that Case Law, with its capacity for growth and adaptation to new conditions as they arise and to unforeseen circumstances, is often more convenient and indeed more scientific than a code. Criminal Law, however, at least so far as it relates to indictable offences, ought to be embodied in a definite and complete code, and in the process of codification certain amendments might be made.

(3) The law as to murder and homicide, for example, urgently requires considerable amendment. The present state of the law classing together as murder acts of totally different character and decreeing the punishment of death for all alike is most unsatisfactory, and in some cases revolting to the moral sense. The whole doctrine of "constructive murder" should be done away with, and only those acts treated as murder and punishable with death where the accused intended deliberately the death of his victim, and was not acting under great provocation or under the kind of mental distress or

anxiety which might be reasonably supposed to affect his—it might indicate the usual nature of such cases better to say "her"—judgment and power of control.

There are also a number of alterations in the law relating to the devolution of property, and to personal status which ought to be made by the new Parliament at an early date. Most of them have been suggested long ago, but as no party capital was to be made out of law reforms, such reforms have generally been neglected unless taken up by a Lord Chancellor or some other legal authority with political influence. A few of these alterations may be enumerated.

(4) The devolution of real estate in case of intestacy should be assimilated to that of personal estate. The present state of the law is often a great injustice, especially to women, and women will now be in a position to demand its amendment. If a man dies intestate, leaving a wealthy son and half a dozen daughters quite unprovided for, the son takes all the real property, and the daughters may be left penniless, but if the property happens to be leasehold for 1,000 years, the daughters share equally. The present state of the law is a survival of the time when ownership of freehold land implied personal service.

(5) Estates tail might be abolished or at least alienation of such estates made simpler.

(6) Copyhold tenure with its inconvenient incidents should be converted into freehold.

(7) Both as a means of raising revenue, and to prevent useless litigation without in any way discouraging thrift or disappointing legitimate expectations, the State should take the whole property as to which anyone dies intestate without leaving near relations. The whole subject of Death Duties needs reconsideration; a mere increase of these duties all round would cause intolerable hardship in some cases and would discourage people from attempting by careful foresight to make provision for those dependent on them, but when very large sums devolve on death to persons who are not dependents, the State might take a much larger portion of a deceased person's property than it does at present. If a multi-millionaire dies without leaving a wife or lineal descendants, there would be no hardship in

taking fifty per cent. of his property—not devoted to charitable purposes—for the State. It would not be difficult to frame provisions to meet the possibility of settlements being made to evade the duty.

(8) Legitimation by subsequent marriage would remove many cases of great hardship, and might aid in inducing fathers to recognise their duties to children for whose existence they are responsible, and also to the mothers of such children.

(9) A regular form of legal adoption should be provided by which, subject to some form of public sanction to secure that the adopting parents are fit and able to take such responsibility, persons might give children, whom they desire to adopt, a recognised legal position. The losses caused by the War make this question one of increased practical importance.

(10) The reform of the law as to marriage ought not to be longer delayed. The question has already been carefully considered by the Commission of which Lord Gorell was chairman. This subject will, no doubt, provoke controversy, and it is impossible to discuss it fully here, but delay may have serious consequences.

The above incomplete list will be sufficient to indicate in a fairly definite way some of the work that has to be done in Law Reform. It is certainly a heavy task, but in almost all cases the lines on which reform could be carried out are clear, and it only requires that the matter should be resolutely taken in hand. If a small expert committee to consider each branch of the subject and draft the necessary Bills were appointed, or some Minister were made definitely responsible for attending to such matters, and if the procedure in Parliament were reformed as suggested, the congestion in Parliament need not prevent these reforms from being carried through rapidly.

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## CHAPTER XXIII

### PURIFICATION OF POLITICAL LIFE

*Find us men skilled, make a new Downing Street fit for the new era.*—THOMAS CARLYLE.

No one will imagine that the long list of questions that have been mentioned covers the whole field of reconstruction, still less that the answers suggested are complete. Some of the suggestions made may be fruitful, others not. Enough has been said to show how huge that task is, and how it will need for its accomplishment all the knowledge and wisdom, and all the energy available. It is, therefore, clear that every proposal which may be made must be examined on its merits, not as it affects any party or personal interests, and that those who are elected to decide or appointed to deal with any matter shall in each case be chosen because of their fitness for the work assigned, not because their influence or support may be useful to any party or coterie.

Political life from bottom to top must be purified if reform is to be carried out on just and sound lines. On this question plain speaking is essential. For some time elements of corruption have been growing up in English politics, which it will be one of the first duties of the electorate and of a new and reformed Parliament to get rid of. The very word "politician" has become a term of contempt. The country is alive to the evil and ought to insist that it shall be promptly dealt with. The task is not an agreeable one. Those who have anything personally to gain or to lose in political life will naturally shrink from it. At the same time, nothing is worse than to overstate the case, and nothing easier than to create an atmosphere of suspicion without definite evidence. Directly the word "purity" is mentioned in any sense, there is a tendency to put forward something startling, "to pander to the lust for the lurid." It would be an excellent thing to put a tax on the use of adjectives, at all events in the discussion of any question of politics or

morals, as fines are sometimes imposed for the unnecessary or offensive expletives employed as a common form of emphasis.

One or two definite changes could be made which would go far to promote political purity. (1) No "honour" should be conferred on any Member of Parliament while he retains his seat there. It ought to be considered sufficient honour to belong to that assembly. Gratitude to a Government for personal favours of this kind, either already conferred or to come, should not enter as a disturbing element affecting a man's political action. There is much to be said for the rule that acceptance of an office of profit under the Crown vacates a seat in the House of Commons. The rule should apply to the acceptance of any honour. Perhaps an exception might be made allowing a limited number of members, who had served at least ten years in Parliament, to be placed on the Privy Council on the advice of a Select Committee of the House. Such a course would strengthen the Privy Council by the addition of experienced men who had won the respect of their fellow-members irrespective of party, but had never taken office. An appointment so made would neither be the reward of docility or assiduity in attending divisions, nor a prophylactic against too critical tongues; it would be a mark of respect from those whom long association had given the means of judging. There are some men in every Parliament whose high character and unobtrusive work through a long period of service have won the special regard of their fellow-members, even though opposed to them in politics, and an opportunity of expressing that feeling would be welcomed. The selection would be a real honour, and would be bestowed in recognition of independence of character and steady useful work. Peerages might still be conferred on the advice of the Prime Minister, as a peerage renders the recipient incapable of sitting in the House of Commons, and the existence of Ministries does not depend on votes in the Lords.

(2) The party whips ought to have nothing to do with the conferment of honours of any kind, whether on members of the House of Commons or others. The considerations which must be uppermost in the mind of a whip, whose duty it is to fill the division lobbies for his party, ought not to affect the fountain of honour.

(3) The accounts of the party associations ought to be published. It may be right for well-to-do people who feel keenly on political questions to

contribute to help party organisation, to aid in providing the money necessary to enable promising men, who have not the means for paying their own election expenses, to contest a seat and to enter Parliament. There is nothing derogatory to a candidate in accepting assistance of the kind. Many men who were unable to fight an election without it, would prefer to have it openly stated that they had received such assistance. Why should a young man whom a poor constituency would like to adopt, and who can only afford, say, £100 towards the cost of contesting a seat, object to his constituents knowing that the balance had been found from funds provided by others who wish well to the cause he is advocating? If the system is wrong, let it be abolished; if right, why try to preserve secrecy?

(4) No one should be allowed to contribute to party funds who has received a peerage or other "honour" within a given period, and if anyone has contributed to such funds before receiving an honour the amount paid should be publicly announced. Everyone has heard, and anyone acquainted with what goes on could give instances, of cases where a contribution has been asked from those whose services to the community are supposed to be recognised by some title of honour.

A change is needed in the method of selecting candidates. Two examples will illustrate the kind of thing that takes place.

A.B. had made a respectable fortune in a well-known and useful business, and retired to a comfortable home in Parkshire. His practical good sense and knowledge of affairs had made him a useful member of the county council, and he was a regular supporter of all benevolent movements in the district. A vacancy was expected in the parliamentary representation of the neighbouring borough of Slowcombe, and A.B., feeling the call to a larger sphere of usefulness—prompted also by Mrs. A.B., for whose charming social qualities the society of Slowcombe was unable, and the antiquated exclusiveness of Parkshire families was unwilling, to afford sufficient scope—desired to fill the vacancy. The party managers were approached, and were delighted to find so suitable a candidate, provided that A.B. would agree to spend at least £—— a year "in nursing the constituency," which was unable to move without such nursing. It is better not to name the amount asked lest it should lead to a painful identification of the real name of the place, and also because it was so large that it would be discredited by

all except the unfortunate candidates for similar places. A.B. was compelled to answer, "It is more than I can possibly afford," and added in his own mind, "Would it be right if I could?" He has had to console himself with growing roses and breeding pigs, and attending the county bench; no doubt in every way a valuable member of society, but the larger sphere of usefulness is closed to him.

Dyeborough is a town where business methods are better understood. The late member having resigned, the chairman and agent for one party, greatly exercised as to the means of providing for the expenses of attending to the register and maintaining local interest in the principles of the party, and in the "great cause" which it supports, wisely communicated with "headquarters." As to what passes there, religious silence should be observed. There is no evidence available, and to pry into such mysteries were profane, but shortly afterwards it is announced that Mr. X., with the highest recommendations, will address the association. The local managers are quietly informed that he is willing to pay all expenses of the local organisation, to subscribe to the party clubs, and to spend money freely in the constituency. X. appears from Weissnichtwo with a bevy of carpet bags and some heavy cheque books. He is a man of business, has "made money"—meaning usually acquired money of other people by any means not forbidden by law. The oratorical arts which served to influence prospective shareholders are sufficient to fill the prepared caucus with at least an appearance of enthusiasm, and the open-minded candidate has sufficient democratic sentiment to adopt every plank in the party programme, or "any other damned nonsense" that he thinks will be agreeable. The virtuous Dyeborough yields to the golden shower, and embraces the charming stranger. It takes his subscriptions with content, and watches his career with pride. A far-seeing sporting man offers two to one that in three years the new member will be recognised by a title—of course a "marketable title" suggests a lawyer—but no one is rash enough to take up the bet. (No wonder that Proportional Representation or any other proposal which would interfere with the working of such a convenient system is rejected by the party politicians.) Everyone has been satisfied. The local party managers have been relieved from all anxiety, the local charities and political clubs add handsome subscriptions to their lists, headquarters and the whips have—to put the case mildly—not diminished their funds, and

can reckon on a safe seat and steady vote. X. has entered on a career of public service marked at each step by successive honours. The only drawback is that if he should be translated to "another place," it would be found that the borough had become accustomed to such a scale of expenditure from its member that "no one but a very rich and ambitious man would venture to come forward as a candidate there." It offers, however, a splendid chance for a Socialist who can make unlimited promises as to the benefits that he and his friends could confer by taking the money of other people and distributing it in a liberal spirit. As for X., we must see that talents so pre-eminent are not lost to the State, and if no Ministerial office is vacant we must create one, and ask no questions as to its cost or the nature of its operations.

Could these claims on the purse as a condition in the selection of candidates be prevented, a great step would be taken towards purifying political life. If the question were resolutely faced, the abuse could be stopped. The late Lord James, when in charge of the Corrupt Practices Bill, was told that the stringent clause limiting election expenses would wreck his scheme. He persisted, and afterwards said that it was that clause which did most to help the Bill through, because so many country gentlemen who had suffered through agricultural depression gave it their hearty support as affording a means of freeing them from the extortionate claims of a set of persons who used an election to obtain money for imaginary services to the unfortunate candidates.

To read in the various biographical memoirs and reminiscences which have been published during the last twenty years how Cabinets have been put together, may amuse the cynical and evoke interest in those who watch politics as a game, but is painful to the citizen who wishes to see the country well governed, and who suffers if it is not. Sometimes, indeed, the formation of a Ministry seems more like the distribution of loot among successful campaigners, or a tactical disposition of the officers for continuing a contest than the provision of the best means and selection of the best men for each part of the work of governing the country.

In spite, however, of some glaring instances where such appointments have led to disaster or serious loss, the result has, on the whole, been not so bad as might have been expected. Those who have won their way in the open

conflicts in Parliament and the country have been men who have played a fair game according to the rules. Their personal characters have stood high. Dishonourable action has been rare, almost unknown. As a rule, the abilities of those called to the Front Bench have probably been rather above the average among the country gentlemen, lawyers and men of business who have been associated with them; a few have shown conspicuous ability; most by experience of affairs soon gain a special aptitude in dealing with them. Anyhow the open recognition of party claims publicly recognised is infinitely better, as Burke urged, and history from his day to ours proves, than backstairs influence or merely personal ties, and still more than using official position as a tribute to wealth, and the advantages which wealth can confer on those who do it homage. It is the system which is to blame, not the men to be condemned. Those who denounce the members of a Government most fiercely would be only too happy to accept an invitation to meet them at dinner. Ask the most eloquent writer of philippics who has known, say a score of Ministers on both sides personally, and who is reasonably tolerant, modest and candid, which of them does he believe really to be either a knave or a fool; he will answer, "None, though I am not quite sure about X." We all have our ineradicable antipathies. Fortunately there is something forensic about English political contests. The astonished client sees the advocates who have been hottest in conflict walking away arm in arm. We must make allowance for the requirements of the forum, and at the same time be thankful that while there may be something rotten in the state of politics, those who become prominent in political life are honourable men. To some it may seem half an insult to state the fact, but the kind of talk both public and private too frequently heard to-day makes it necessary to insist upon it. Even Members of Parliament on the opposite side are as a rule quite respectable citizens. To maintaining a correct attitude of antagonism too close knowledge of opponents may sometimes be a hindrance, and it was not without reason that one engaged in a violent controversy on being told that if he knew Y., his antagonist, he would be sure to like him, replied, "That is the reason why I have always refused an introduction to him."

Lastly, when the right men have been selected, they should be supported, their acts and proposals, of course, criticised if necessary, but not made the subject of perpetual and irritating nagging, or dull refusal to understand and

appreciate what they are doing and aiming at. They may not expect gratitude. Most people learn in the course of life that recognition given and gratitude shown for any work done varies inversely as the trouble they have taken, and the difficulty of the task, even if it has been successfully carried through, but while they are engaged in it they must claim not to be hindered and thwarted in their work by those who can prove that every possible way of doing something which must be done is wrong, but never show the right way to do it. It is marvellous how some of those in the most responsible positions manage to get through their business at all in face of the constant sniping of those who, like the Scots elder in the story, can neither work nor pray, but can "object." The splendid service rendered to the country by the present Prime Minister in bringing about a unity of command was carried through in face of bitter and persistent opposition set up both by those who claimed to be guarding the proper position of the military profession, and also by those who do not regard victory in the War as an object of their desire.

In the earlier part of 1918, when speaking of a question above mentioned to one whose services had been called for by the State to meet special difficulties, the conversation somehow turned to speaking of our ages, and he, said of himself: "I wish I were twenty years younger, that I might see the results of what is going on now." It is the natural attitude of the true worker to think of the "far goal." He has been called away in the midst of his work, and "from this side" will not see what is to come in these next twenty years, but the history of this age will be very incomplete if it does not record and show the deep significance of the fact that one who undertook a task bristling with difficulties, affecting the daily life of almost everybody, subjecting it to many restraints, who never felt under "an obligation to the popular," won more general regard—it might fairly be said affection—than any other Minister in so short a time. But if the nation appreciated the Minister, we may be sure that the Minister appreciated the nation which accepted inconveniences and restraints with so little grumbling and such ready acquiescence.

Does not everything point to the fact that one of the most necessary reforms is to appoint as Minister for each department the most capable man to do the work required there, one who has the knowledge and foresight to direct

aright, instead of looking round to see which of the various offices to be filled will satisfy the "claims" of such and such a politician?

Above all, we want to see the Government of the country kept free from the influence of financial rings or of commercial organisations which may exercise an undue power in determining national policy. Patriotic feeling may be exploited to promote the self-interest of sections of the community. Those who direct the State should never be involved, whether directly or indirectly, in schemes which have for their object the acquisition of individual gain at the expense of the nation as a whole.

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# **Part V**

## **THE GOAL**

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## CHAPTER XXIV

### UNION AND REGENERATION

*So from day to day and strength to strength you shall build up indeed by art, by thought, and by just will an ecclesia of England of which it shall not be said, "See what manner of stones are here," but "See what manner of men."—JOHN RUSKIN.*

One subject most vital to all progress on sound lines, which affects not only present reconstruction, but the whole future of the nation, and involves not only definite action now but also steady and continuous action in all future time, has been deliberately omitted. The question of Education, of the training of the coming generation on right lines, requires separate treatment in a way more complete and thorough, if it is to be of any use at all, than can be given to it incidentally among a large number of other subjects.<sup>[11]</sup> The Education Act, which was passed in 1918 with so much goodwill, will give opportunities for the development of education, but whether it is a benefit or not will depend on how it is used and the kind of education given. The example of Germany shows how education, highly organised at every stage, reduced to a system in accordance with theories thought out most carefully, may have disastrous effects. From the Kindergarten to the University the Germans have had their completely graded system extending to all classes of society; they have elaborated their theories with care, and applied them thoroughly at every stage. Thoughtful students of education, both in this country and in America, have made German methods the subject of their study, and offered to them when they could the flattery of imitation. Those who wished to learn the best methods of teaching have made the works of Herbart their text-book; they have studied the work of Kirchensteiner and attended the lectures of Rein at Jena. To know the last thesis published in a German university had become a necessary qualification for recognition as a scholar, and the best passport for an

appointment to many of the higher teaching posts in England. But the emphatic warning comes from the experience of Germany that even the very perfection of educational systems and methods may be used so as to be a curse to the country which has adopted them. Published statistics show that juvenile crime, often of the most revolting kind, is rampant, and has been increasing in Germany, that suicides have become common even amongst the very young. The highly efficient mental drill provided by German education, even the devotion to knowledge shown by the German people, whatever benefits it may once have conferred, applied as it now is, must be recognised as one of the causes why Germany, so long as it retains its present spirit and its present aims, has come to be rightly regarded as an enemy to mankind. It is essential that there should be something more than a keen desire to acquire knowledge of every sort, and to apply it for practical purposes—the Germans have that pre-eminently; or a love of order and organisation and a persistent and plodding industry in carrying out plans that have been carefully thought out beforehand—the Germans have that also; or an intense devotion to the Fatherland—the German people have a fervent and perfectly genuine love for their country. The moral downfall of Germany, and the material losses which she will suffer whatever the other results of the War may be, are not simply due either to autocracy or to the domination of an aristocratic class, or to deficiencies in art—the power to make things well—or in thought—the power to plan a course of action clearly—but to the absence of a "just will." The regeneration of Germany means the substitution of a just for an unjust will, not simply the spread of democratic ideals, desirable though these may be, nor the substitution of democratic for autocratic or aristocratic government. For our own nation, too, a "just will" amongst all classes of the community is the necessary condition for future welfare.

Another warning is necessary. In elaborate plans for reconstruction and reorganisation by more deliberate and far-reaching action of the State and of organised associations there is often a risk of impairing or even destroying individual liberty. The more complete organisation and reduction to definite system of education, for example, may result in hampering free thought and action both of teacher and scholar. For them, as for an army, it is the "initiative" that counts. In industry, in commerce, in political life, and also in intellectual and even in religious life, there is a danger that the free

development of the individual may be checked and healthy growth prevented by over-regulation. In education especially, "self-determination" within reasonable limits is as necessary for the well-being of the individual as it is in government for the well-being of nations. We may dread the extended exercise of the powers of "directors of education" when they go beyond administration and include the choice of subjects and of methods. The best educational movement of our day—the Boy Scouts Association—was initiated and is carried on without the intervention of the State or of local authorities.

In conclusion two other points may be offered for consideration. In our methods of education do we not find the idea more and more prevalent that it is necessary for all, in order to be thorough, to devote their time and energy to exact manipulation? It is true that you cannot make a good chemist, or even apothecary, without giving days and weeks to exact use of balances or to watching filter papers and the like but the mere layman may learn in a short time with profit the meaning of a chemical equation, and find a kind of diagrammatic knowledge sufficient to meet all he requires. To discard what is irrelevant to the purpose is one of the most difficult but most important things to be learned. Instead of using "Euclid" as a means of teaching scholars to reason, they are expected to use compasses carefully to make circles round—a matter of no importance whatever for the matter in hand—but it diverts their attention from the true object of study. There is a lesson for others in the highly emphasised remark once addressed by a great advocate to his junior who was taking an over-elaborate note, "Stop that scratching and attend to the case." But intellectually the worst of all is the danger that education will be directed to teaching and to learning mere phrases. It saves thought and provides us with a kind of paper currency conventionally accepted, though of no real value. In every subject we study, in every department of life, in law, in politics, and in religion, the domination of the phrase fetters thought and perverts action. It is tempting to give examples, but we must forbear.

"Time is our tedious song should here have ending," but those who can never see the accomplishment of what they hope for, the old "who dream dreams," may be forgiven if they try once more to get some vision of the land which others "if strong and of a good courage" will "go in to possess." It may, perhaps, in the sunset light seem brighter from far off than those

who first enter it will find it to be, or, it may be, the distant prospect discloses but a part of what they will conquer.

Again the question will be asked, What will emerge from this struggle, this untold bloodshed, these bitter losses and widespread destruction, what will be the harvest that this "red rain" will make to grow, what Church will spring from the blood of the martyred youth—a great multitude which no man can number? Again we may answer, as after the war half a century ago, so short in its duration, and so limited in its extent as compared with the World War of to-day, "For the victors Union, for the vanquished Regeneration." Who will the victors be? Rightly shall we think first of our own land of Britain with all the dominions that form the Empire built up by the labour and the valour of its sons and called by its name, united now by the closer bonds of common efforts, common sacrifices and common resolves, loyal to one throne, the symbol of its unity, cherishing one record of heroic deeds, the example and the inspiration for the generations to come; above all, as a country that is "at unity with itself," free from intestine war of party against party, creed against creed, and class against class.

But this War has not been a war of Empire against Empire, of Nation only against Nation. It has been waged by the alliance of the people all over the world who believe in justice, in a law which says, "Thou shalt not, because thou hast the power and the will to thine own advantage, use that power to dominate others and exercise that will regardless of their rights." The victors will be all the Nations who are leagued together to resist such a claim, and the union must be a union of all who joined in the struggle with that common purpose, united when peace comes in the prayer and the determination that there shall be war no more. Yet the prospect opens for a union wider even than that. Those who took no part in the conflict, some perhaps because the peril was too deadly, their opportunity of defence too weak, may also join the League. Some, like the Swiss, have served the cause of humanity by their generous reception of sick and wounded. Some, like the Norwegians, have themselves suffered cruel wrongs by the ruthlessness of our foes.

Lastly, we must look forward to the possibility of a real peace with Germany, a readmission of Germany to the commonwealth of Nations, a

restoration in the future of friendly intercourse with the German people.

Never again shall we of the older generation cross the German frontier save in answer to some clear call of imperative duty. We should be more—or perhaps less—than human to wish it. Day after day we have read or our eyes have seen the reiterated and continued acts of infamy done under the direction of those whom the majority of the German people not only submit to as their rulers, but follow willingly as their guides.

Nor for years to come will many of the men of younger age risk the chance of contact with those who were responsible for or committed such crimes as they have witnessed from the day when German troops first entered Belgium four years ago to the sinking of the last hospital ship or last murder of wounded men and of nurses under the shadow of the Red Cross.

But a new generation will follow us who may find and may accept a welcome from a younger German race who had no part in the sins against humanity committed by the Germans of to-day. Some, indeed, of that younger race will have learned from their own fathers who suffered for them, to detest those crimes.

For another generation of Englishmen it may be possible once again to find even in Germany something to enjoy and to admire. They may watch from the Schlossgarten at Heidelberg the sun go down beyond the Rhine over Alsace, then again united to France; they may wander again in friendly talk with some forester under the pines of the Schwarzwald and listen to the singing of the familiar Volkslieder—Tannenbaum or Haiden Röslein—by a people who have a natural gift for song; they may in Nuremberg again look with delight on the marvels in stone wrought by its craftsmen or seek out the hidden meanings in the mystic art of Albrecht Dürer; perhaps be whirled along in the Isar "rolling rapidly" through the baths of Munich or plunge in the crystal depths of the König See; from the highlands of Bavaria they may lift up their eyes to the long ranges of the snowy Alps of Tyrol, and, as the decennial cycle comes round and the reverent peasants re-enact the sacred drama, may make their pilgrimage to Ammergau and share the thrill passing along the crowded benches when the children's voices are heard, and they enter, waving their palm branches, that those who watch their beautiful

counterfeit may recall, with imagination vivid like a child's, another procession of joyous children, nineteen hundred years ago.

The rest of mankind would be the poorer if it were cut off for ever from some of the things which Germany has given and might again give to the world in the realm of thought—in science and literature—and in music; things which have added and may again add to the knowledge and to the beauty of life. But let there be no mistake. Such a future is possible only if the powers which are dominant in Germany are utterly destroyed; but that is not enough, there must be a regeneration of the German people. The alternative for Germany must be either exclusion from intercourse with the rest of mankind save those who desire to share in her crimes, and who will also share in her outlawry, or a change of spirit and of purpose in the nation. If such a change comes, we "dare be known to think" that the renewal of friendly relations with the German people is an object we desire to attain.

For us, too, comes the double warning. Strange voices are already heard among us; some seem like echoes of the German spirit we are fighting to exorcise, others of that anarchic spirit still more fatal that makes a lawless democracy the most deadly foe of liberty and ordered progress. If we in our turn make self-interest, regardless of the rights of others, our guide, find in hatred, envy and jealousy our stimulus to action, victory will confer no lasting blessing and the end of this War will bring no real peace. The recognition of dangers threatened must be for us the incentive to greater effort, with plans more carefully thought out and clearer understanding of the true goal we are striving to reach. Keeping our highest ideals always before us, labouring steadily day by day, moving forward step by step, though the way may be long, we may look with confidence to their attainment.

The earth moves onward, revolving in its course, bearing with it our older generation towards the inevitable night; it may be to the utter darkness where "there is no work nor device nor knowledge nor wisdom," or, "as the holy sages once did sing," when that night comes, "Creation" may "be widen'd in man's view," revealing the infinite depths and innumerable bright Existences which the light of common day has hidden. But whatever our destiny may be, let us trust, as we leave the sunshine of life behind, that those gleams of hope for mankind, "faint beams that gild the west" as our

stormy day closes, are to the younger race which is following on, the rising of a glorious dawn.

#### FOOTNOTES:

[\[11\]](#)

Perhaps a volume on Education, supplementary to the present work, may be issued at some future time.

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